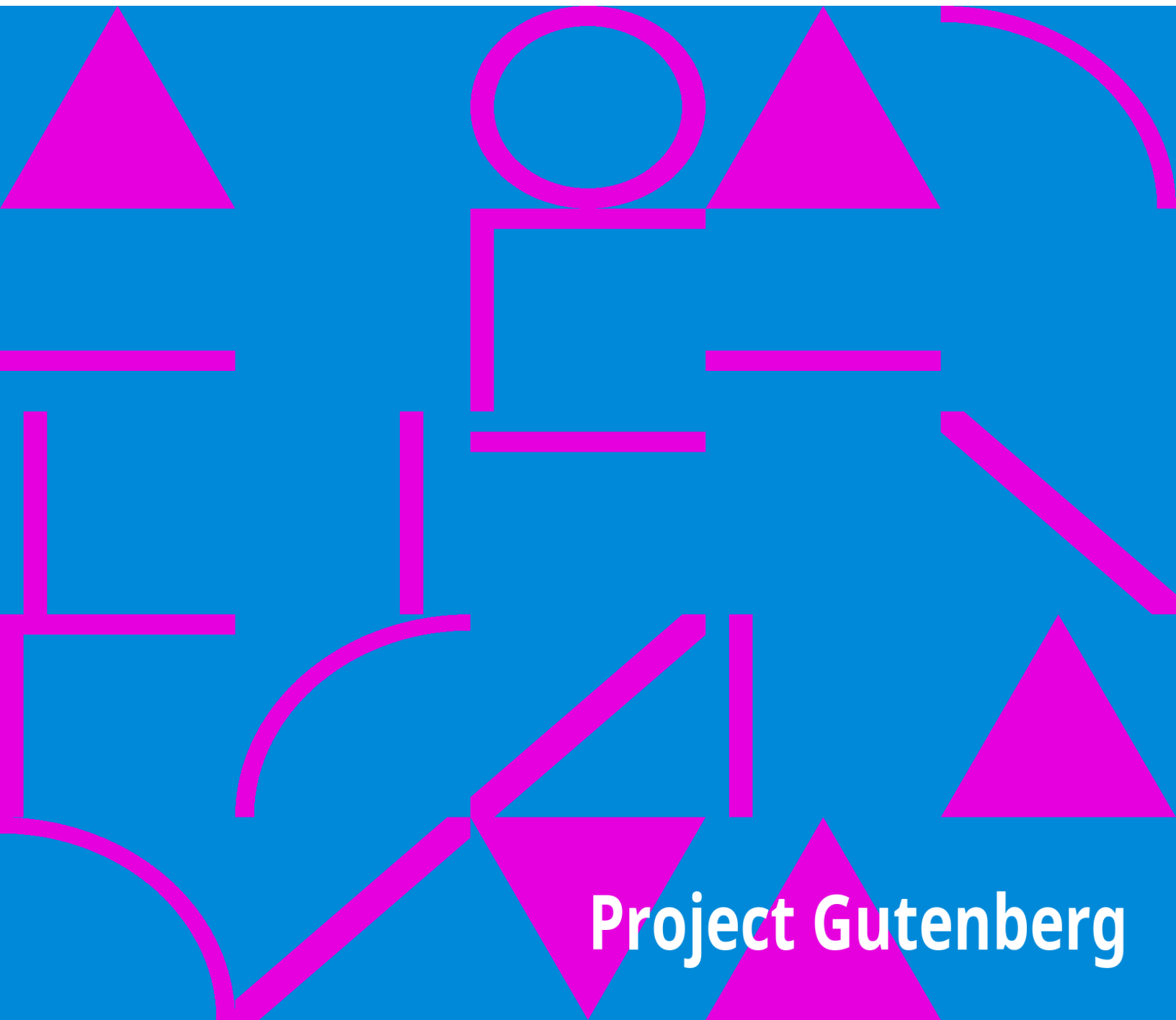


A Waif of the Mountains

Edward Sylvester Ellis

An abstract geometric pattern on a blue background, featuring various magenta shapes including triangles, circles, lines, and arcs.

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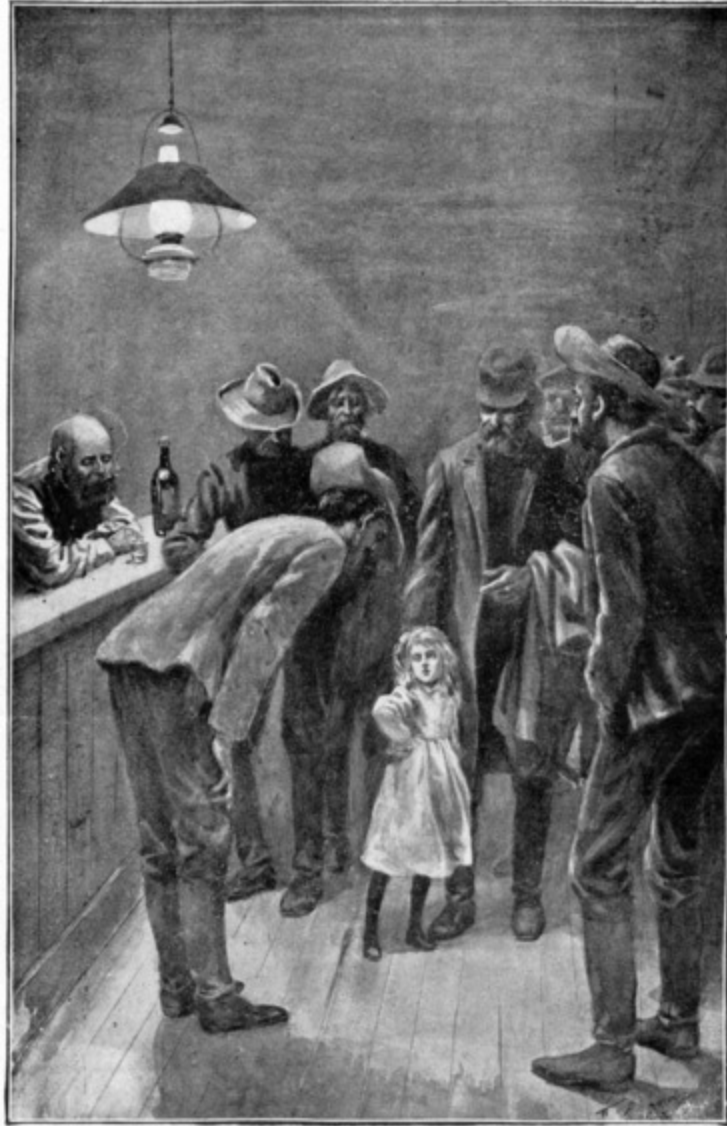
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SHE STARED BEWILDERED INTO THE SHAGGY FACES AROUND HER.—PAGE 21.

A WAIF OF THE MOUNTAINS

BY

EDWARD S. ELLIS

AUTHOR OF "UP THE TAPAJOS," "FROM THE THROTTLE TO
THE PRESIDENT'S CHAIR," "THE LAND
OF WONDERS," ETC.



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A WAIF OF THE MOUNTAINS

CHAPTER I

AT NEW CONSTANTINOPLE

IT had been snowing hard for twenty-four hours at Dead Man's Gulch. Beginning with a few feathery particles, they had steadily increased in number until the biting air was filled with billions of snowflakes, which whirled and eddied in the gale that howled through the gorges and cañons of the Sierras. It was still snowing with no sign of cessation, and the blizzard blanketed the earth to the depth of several feet, filling up the treacherous hollows, caverns and abysses and making travel almost impossible for man or animal.

The shanties of the miners in Dead Man's Gulch were just eleven in number. They were strung along the eastern side of the gorge and at an altitude of two or three hundred feet from the bed of the pass or cañon. The site protruded in the form of a table-land, offering a secure foundation for the structures, which were thus elevated sufficiently to be beyond reach of the terrific torrents that sometimes rushed through the ravine during the melting of the snow in the spring, or after one of those fierce cloud-bursts that give scarcely a minute's warning of their coming.

The diggings were in the mountain side at varying distances. The success in mining had been only moderate, although several promising finds raised hopes. The population numbered precisely thirty men, representing all quarters of the Union, while five came from Europe. The majority were shaggy, bronzed adventurers, the variety being almost as great as the numbers. Some had been clerks, several were college graduates, a number were the sons of wealthy parents, and one was a full-fledged parson, while there was a certain percentage who had left their homes to escape the grip of the offended law.

With that yearning for picturesqueness which is a peculiar trait of Americans, the miners felt that when their settlement had attained the dignity of nearly a dozen dwellings, it was entitled to an appropriate name. The gorge, which seemed to have been gouged out of the solid mass of

boulders and rocks, when the mountains were split apart in the remote past, was known from the first by the title already given, which also clung to the diggings themselves.

The single saloon presided over by Max Ortigies, was the Heavenly Bower,—so *that* point was settled, but when it came to naming the settlement itself, the difficulties were so numerous that days and weeks passed without an agreement being reached. No matter how striking and expressive the title offered by one man, the majority promptly protested. It was too sulphurous, or too insipid or it lacked in that nebulous characteristic which may be defined as true Americanism. It looked as if the problem would never be solved, when Landlord Ortigies, taking the bull by the horns, appointed a committee of three to select a name, the others pledging themselves to accept whatever the committee submitted.

But the mischief was to pay when on the night of the blizzard the committee met at the Heavenly Bower to make their report. The chairman insisted upon “E Pluribus Unum,” the second member’s favorite was “Murderer’s Holler,” while the third would not listen to anything except “Wolf Eye,” and each was immovably set in his convictions.

Budge Isham was not a member of the committee, but he was known as a college graduate. From his seat on an overturned box at the rear of the room, where he was smoking a pipe, he asked troublesome questions and succeeded in arraying the committeemen so fiercely against one another that each was eager to vote, in the event of failing to carry his own point, in favor of any name objectionable to the rest.

The chairman as stated favored the patriotic name “E Pluribus Unum,” and boldly announced the fact.

“It has a lofty sound,” blandly remarked Isham; “will the chairman be good enough to translate it for us? In other words, what does ‘E Pluribus Unum’ mean?”

“Why,” replied the chairman with scorn in his manner; “everybody oughter know it means, ‘Hurrah for the red, white and blue.’”

“Thank you,” returned Isham, puffing at his pipe.

Vose Adams, the second committeeman, felt it his duty to explain his position.

“The trouble with that outlandish name is in the first place that it has three words and consequently it’s too much to manage. Whoever heard of a town with three handles to its name? Then it’s foreign. When I was in college (several disrespectful sniffs which caused the speaker to stop and glare around in quest of the offenders); I say when I was in college and studying Greek and Chinese and Russian, I learned that that name was made up of all three of them languages. I believe in America for the Americans, and if we can’t find a name that’s in the American language, why let’s wait till we can.”

This sentiment was delivered with such dramatic force that several of the miners nodded their heads in approval. It was an appeal to the patriotic side of their nature—which was quick to respond.

“Mr. Chairman,” said Budge Isham, addressing the landlord, who, by general consent, was the presiding officer at these disputations, and who like the others failed to see the quiet amusement the educated man was extracting, “if it is agreeable to Mr. Adams, to whose eloquent speech we have listened with much edification, I would like him to give us his reasons for calling our handsome town ‘Murderers’ Hollow.’”

The gentleman appealed to rose to his feet. Turning toward the man who had called upon him, he gave him a look which ought to have made him sink to the floor with mortification, preliminary to saying with polished irony:

“If the gentleman had paid attention as he oughter, he would have observed that I said ‘Murderer’s Holler,’ not ‘Murderers’ *Hollow*.’ I would advise him not to forget that he ain’t the only man in this place that has received a college eddycation. Now as to the name: it proclaims our stern virtue and love for law.”

The orator paused, but the wondering expression of the bronzed faces turned toward him showed that he would have to descend to particulars.

“When violators of the law hear that name, what does it say to them? It says that if any murderer shows his face in this place, he will receive such rough handling that he will have to holler ‘enough,’ and will be glad to get out—I don’t see what there is to laugh at!” exclaimed Vose angrily, looking

threateningly around again with his fists clenched and his gaze fixed specially upon the grinning Budge Isham.

“There’s some sense in what Vose says, which ain’t often the case,” remarked Ike Hoe, the other member of the committee, “but the trouble will be that when folks hear of the name, they won’t think to give it the meanin’ that he gives it. They’ll conclude that this place is the home of murderers, and, if it keeps on, bime by of hoss thieves. If it warn’t for that danger, I might go in for backing up Vose with his name, but as it stands it won’t do.”

The argument of Ike had produced its effect. There was little sympathy in the first place for the title, and that little was destroyed by the words of Ike, who proceeded to plead for his own choice.

“Now as to ‘Wolf Eye.’ In the first place, it is short and easy to say. There ain’t any slur in the name, that might offend a new comer, who would think the ‘Murderer’s Holler’ contained ungentlemanly allusions to his past. It is warning, too, that the place has got an eye on everybody and has teeth as sharp as a wolf. Then there is poetry in the name. Gentlemen,” added Ike in a burst of enthusiasm, “we oughter go in for poetry. How can any one live in such a glorious country as this with the towering kenyens around him, with the mountains thousands of feet deep, with the grand sun kissin’ the western tips in the morning and sinking to rest at night in the east,—with the snow storms in summer and the blazing heat in winter—with the glo—”

“Hold on! hold on!” called Budge Isham, rising solemnly to his feet, with hands uplifted in protest; “if Ike doesn’t stop, he’ll have us all standing on our heads. There’s a brand of liquor down in Sacramento called ‘Wolf Eye;’ I don’t make any charges, gentlemen, against my friend Ike, but you can draw your inferences. Wolf Eye won’t do.”

A general laugh greeted this sally, seeing which the indignant Ike turned the tables upon Budge with an admirable piece of sarcasm.

“Seeing as how all of us together don’t know ’nough to git up a name that will suit, I move that the college eddycated gentleman supplies the brains and does it himself.”

The crushing irony of this remark was spoiled by Budge accepting it in all seriousness. He bowed his head and gracefully thanked the satirical Vose.

“I shall be very glad to do so. The committee meant well enough, but the trouble was that there were too many fools on it——”

At this point Wade Ruggles sprang to his feet, with the fierce question:

“Does the gentleman refer to *me*?”

His hand was at his hip on the butt of his revolver and matters looked squally, but the tactful Budge quelled the rising storm with Chesterfieldian grace. Waving his hand and bowing, he said:

“I did not intend the remotest reference to you.”

Vose Adams came up promptly.

“Then it’s *me* and I’m ready to make any man eat his words.”

“My good friend is mistaken; nothing could induce me to apply such a term to him; I hold him in too high esteem.”

Since this left Ike Hoe as the only remaining member, he began to show signs of explosion, perceiving which the incomprehensible Budge proceeded to mollify him.

“And Ike knows that I would be the last person in the world to slur a gentleman from whom I as well as the others have received so much instruction.”

Ike was mystified. He looked at the other members of the committee and then into the faces of the group. He couldn’t make it out.

“If it’s all the same, Mr. Chairman, since the gentleman has said there was too many fools on the committee, and has just explained that he didn’t mean any one of us three, I’ll be obliged if he’ll explain who in thunder he did mean.”

This sounded unanswerable, but the cunning Budge was equal to the occasion.

“It gives me pleasure to answer the question of the gentleman: my remark was made in a Pickwickian sense.”

He leaned forward with a beaming smile, as if his explanation left nothing to be added. No one understood to what he referred, but all were too proud to admit the fact. There was a general nodding of heads, and Ike, with the

manner of a man who magnanimously accepts the humble apology of him whom he has worsted, leaned back on his stool and audibly remarked:

“That makes it all right.”

Budge Isham resumed his seat, when he was reminded that he was expected to submit a name for the new settlement.

“I beg pardon,” he said, rising again, “it is a fact known to this highly intelligent assemblage, that every city of prominence in Europe has from one to forty namesakes in this country. There is one exception, however; doubtless all know to what city I refer.”

In response to his inquiring looks, the group tried to appear as if the name was familiar to them, but no one spoke.

“It is hardly necessary for me to mention the city, but I may say it is Constantinople.”

A contemptuous sniff greeted this proposal.

“That’s the worst yet,” said Wade Ruggles, drawing a match along the thigh of his trousers to relight his pipe, which had gone out during the excitement; “the man that insults this party with such a proposition, ought to be run out of the place.”

“What’s the matter with it?” demanded Budge.

“It’s too long in the fust place,” commented Ike Hoe; “it bothers a man to git his mouth around it and it hain’t any music, like the other names such as Starvation Kenyon, Hangman’s Noose, Blizzard Gorge and the rest. I stick to mine as the purtiest of all.”

“What’s that?”

“‘Blazes,’ short and sweet and innercent like.”

Landlord Ortigies was leaning with both elbows on the bar. The new name struck him favorably.

“I’m inclined to agree with Budge,” he said, “cause there hain’t any other place that’s hit onto it. All of them names that you chaps have tried to spring onto us, have been used in other places, or at least some part of the

names, but, as Budge has observed, no galoot has scooped ‘Constantinople.’”

“‘Cause no one ain’t fool enough,” observed Ike Hoe, who noted the drift of the sentiment.

“But they’ll pounce onto it powerful quick if we don’t grab it while it’s passin’; it’s a good long name, and what if it does make a chap sling the muscles of his jaw to warble it? All the better; it’ll make him think well of his town, which I prophesy is going to be the emporium of the West.”

“Let’s see,” growled Wade Ruggles, “Constantinople is in Ireland isn’t it?”²¹

“Where’s your eddycation?” sneered Ike Vose; “it’s the oldest town in Wales.”

Landlord Ortigies raised his head and filled the room with his genial laughter.

“If there was anything I was strong on when I led my class at the Squankum High School it was astronermly; I was never caught in locating places.”

“If you know so much,” remarked Ruggles, “you’ll let us know something ’bout that town which I scorn to name.”

“I’m allers ready to enlighten ign’rance, though I’ve never visited Constantinople, which stands on the top of the Himalaya Mountains, in the southern part of Iceland.”

“That’s very good,” said Budge Isham, who with his usual tact maneuvered to keep the ally he had gained, “but the Constantinople I have in mind is in Turkey, which is such a goodly sized country that it straddles from Europe to Asia.”

“Which the same I suppose means to imply that this ere Constantinople will do likewise similar.”

“No doubt that’s what it’ll do in time,” assented the landlord.

“I beg to offer an amendment to my own motion,” continued the oily Budge; “when the boom strikes this town, as it is bound soon to do, and it rivals in size the famous city on the other side of the Atlantic, there should be something to distinguish the two. We have no wish to rob any other place of the honors it has taken centuries to gain; so, while we reserve the

principal name, I propose that we distinguish it from the old city by prefixing the word 'New.'"

"You mean that this town shall be 'New Constantinople?'" was the inquiring remark of the landlord.

"Precisely; and I now make the motion that that be our name."

There were seventeen persons present and it looked as if a decision was inevitable. The landlord was shrewd. His first act was to invite all to drink at his expense, after which he made each pledge himself to abide by the decision, whatever it might be. These preliminaries being arranged, a show of hands was called for. The vote was eight for and eight against the new name.

"That's a tie," commented the landlord from behind his immense beard; "and therefore the question ain't settled."

"It's easy 'nough to settle it," said Ike Hoe.

"How?"

"Take another vote."

"I don't see how that'll do it, unless some one changes his mind; but again, gentlemen: all who favor the new name, raise their right hands."

Eight horny palms were elevated in air, while the same number were displayed in the negative. The landlord looked troubled.

"We must keep it up till some one weakens," observed Wade Ruggles.

The host scanned the earnest faces in front of him.

"Which of you gentlemen will promise to weaken if we keep this thing up for half the night?"

"I'll stay here a week," was the reply of Vose Adams, while the general nodding of heads showed that he echoed the sentiments of the others. The landlord met the crisis with becoming dignity.

"Gentlemen, when I was a member of Congress, all questions that was tied was settled by the presiding officer casting the deciding vote, and which as aforesaid we don't lay any claim to being higher than Congress, I therefore, by virtue of the aforesaid right vested in me, cast my vote in favor of this

city being called New Constantinople, which the same is on me again; gentlemen, what will you have?"

It was a coup d'etat, the victory being clinched before the opposition realized it. Ere the company had fairly recovered from their bewilderment, Budge Isham declared that the victory was really his, due to the good sense and high toned chivalry of his friends, and he insisted upon doing the honors. He would accept no denial and the engaging style in which he acquitted himself of this duty restored good humor. Thus it was that the little mining town of the Sierras in the days that are gone received its title.

The Heavenly Bower consisted of two large apartments, both on the ground floor. The one at the rear was used by Landlord Ortigies for sleeping, eating and partial storage purposes. When Vose Adams made his quarterly visits to Sacramento, he was accompanied by two mules. They were not necessary to take and bring the mail, since the pocket of Adams' great coat was sufficient for that, but they carried down to Sacramento several empty casks which came back filled, or rather they were thus when the return journey was begun, but to the dismay of the proprietor of the Heavenly Bower, he found that they were barely two-thirds full, when unloaded at his place. Vose explained that the leakage was due to the roughness of the trail. Since there seemed no other way of overcoming this, the landlord sent an extra cask with the request to Vose that he would confine his leakage to that and Vose kindly obliged him.

The stuff thus provided for the Heavenly Bower was generally in concentrated form, thereby permitting a dilution which insured a full supply for the customers who were afflicted with an eternal thirst.

The bar room was of extensive proportions. Nearly all of one side was occupied by the bar. Opposite was the huge fireplace, and scattered around were a number of stools, rickety chairs and strong boxes which served equally well for seats.

The crackling fire, the genial warmth and good cheer within the room were the more striking because of their contrast with the howling storm without. The gale roared around the corners of the rude but strong structure, rattling against the massive door and the log walls, spitting vicious gusts down the chimney and flinging great drifts hither and yon with a fury that threatened to send the building skurrying through the snowy space.

“It’s the worst blizzard we ever had,” remarked Wade Ruggles, after one of these violent outbursts; “God pity any one that’s abroad to-night.”

“It reminds me of that zephyr last winter,” observed Vose Adams, “when I was bringing your freight, Max, from Sacramento.”

“I remember,” nodded the landlord; “you started with two kegs and got here with about half a one; the leakage was tremenjus on that trip.”

“True; the blizzards is always rough on Mountain Dew, and sorter makes it shrink,” replied the unblushing Vose.

“Can’t you stop the casks leaking so much,” inquired Felix Brush, who had been a parson in Missouri, and claimed that he had never been “unfrocked.”

The landlord solemnly swayed his head.

“Not as long as Vose has charge of the freight——”

At that instant a dull but resounding thump was heard on the roof overhead. It shook every log in the structure, checked speech and caused each man to look wonderingly at his neighbor.

“The mountain has fell on us!” exclaimed Ike Hoe in a husky whisper.

“If it was the mountain,” said Budge Isham, slightly raising his voice, as the courage of the party came back; “none of us would be able to tell of it.”

“Then it’s a rock—well, I’m blessed! the thing is moving!”

Something was certainly astir in the mass of snow overhead.

“I guess it’s a angel that has lost its way,” submitted Hoe.

“More likely it’s a grizzly b’ar that’s stumbled off the rocks——”

But all these speculations were scattered to the winds by the sound of a voice muffled and seemingly far away, which came to them through the storm:

“*Helloa, the house!*”

CHAPTER II

WHAT THE BLIZZARD BROUGHT TO NEW CONSTANTINOPLE

A moment after the hail was heard from the roof, the muffled noise which accompanied it ceased. The stranger groping about in the snowy gloom had stepped off the roof into the huge drift outside the Heavenly Bower, and a minute later, lifted the latch of the door and pushed in among the astonished miners. They saw the figure of a sturdy man holding something in his arms, so wrapped round with blankets and coverings that no one could tell its nature. He stamped the snow from his boots, shook himself like a shaggy dog, then walked heavily to the chair which Budge Isham placed near the fire for him, and almost fell into it.

“Good evening, friends,” he said in a grave voice; “It was no fault of mine that I tried at first to enter by the roof.”

“When I built the Heavenly Bower,” replied Landlord Ortigies; “I meant to place a door up there, but there wasn’t anybody in New Constantinople with enough sense to know how to do it. I ’spose you was looking fur it, stranger.”

“No,” was the reply, “I wasn’t looking for anything; I was just walking, walking through the storm, not knowing or caring where I went. I can’t say how far I came, but it must have been a number of miles. I was still plodding on, when I set my foot on vacancy and down I went.”

“Gracious! you fell nearly a hundred feet,” said Parson Brush; “it was a wonderful providence that saved you from being dashed to death.”

“The snow on the roof must be five or six feet deep,” replied the stranger; “for it received me as if it were a feather bed. I saw a glow from the top of your chimney against the rocks and knew I was on the roof of a house. I hardly felt jarred and groped my way off into a lot more snow and here I am.”

The astonishment of the listeners did not make them forget the laws of hospitality. Budge Isham looked significantly at the landlord, but he had already drawn a glass of spirits and was coming from behind the bar with it.

“Stranger, swallow this; you look cold; you’re welcome to the Heavenly Bower, whether you come through the roof or down the chimbley.”

“Thank you; I’ll take the whiskey in a minute.”

And then feeling that he owed those who made him so welcome some explanation of his coming among them, the stranger said:

“My friends, my name is Maurice Dawson. About two months ago, I left Independence, Missouri, with an emigrant train for the Pacific coast. The elements, disease and the Indians made such inroads upon us that after a time only half a dozen families remained. As if that wasn’t enough, the few survivors quarreled over the course to follow, most of them aiming for a pass through the mountains into Southern California, while I, the greatest fool of them all, set out to find Dead Man’s Gulch, of which I had heard from a party of trappers. My canvas covered wagon, with a single span of horses, contained all my worldly goods, and my companions were my wife and little girl Nellie, only three years old. Everything might have gone well but for this blizzard, which jumbled up the points of the compass and made traveling so difficult that after a time it became impossible.”

All were listening with the closest interest, and every heart was touched by the emotion of the man, which he could not control for several minutes. No one interrupted, and, feeling that his story was not quite completed, he added:

“I fired my gun in the hope of attracting attention, but fortunately for others I was the only one abroad. By and by the horses stopped. They could draw the wagon no further. They stood panting and exhausted and soon lay down in the snow. I turned to speak to my wife, when I found she had been dead for some minutes, the cold carrying her off as quietly as if she were dropping asleep. Before she passed away, she wrapped nearly all her clothing about Nellie, who was cuddling beside her, so that really the mother, like the noble woman she was, gave her life for the little one. It was because Nellie was alive, that I jumped out of the wagon and began

floundering through the snow. I ploughed blindly forward until providence guided me to you.”

While uttering the last words, Maurice Dawson was tenderly unwrapping the bundle in his arms. There were many folds to draw away, but at last he reached the treasure within, which was his Nellie, still sound asleep.

If the miners were startled by the resounding thump on the roof, they were now almost struck dumb with amazement. They sat with open mouths, staring eyes and for a minute no one spoke or stirred.

“God bless you, my Nellie,” murmured the father, bending his head and touching his lips to the cool forehead; “I had no hope of this when I left your dead mother and started on my tramp through the snow.”

A general sigh went up from the group of awed miners. Wade Ruggles, who had been leaning on the bar, with his gaze fixed on that of the handsome stranger, was the first to recover from the spell which held them all. Tiptoeing across the room, he paused in front of the father and his child and stared, wondering and speechless. Then one by one the others did the same, until the whole company were grouped around the man and child, each afraid to whisper, as if doing so would dissolve the heavenly vision.

When the wrappings had been laid aside, and the little one was placed upright, she stared bewildered into the shaggy faces around her. Her big blue eyes were open to their widest extent, the mass of golden curls rippled about her shoulders and the fairy-like feet were inclosed in thick, warm shoes and stockings. The dress of a dull brown color and thick texture, fitted her tiny frame perfectly and she formed a most winsome picture of infantile beauty.

For fully five minutes all stared in silence at the marvelous picture. As before, Wade Ruggles was the first to come to himself, but when he spoke, it was in an awed, hesitating whisper:

“Is she really alive?”

The sorrowful face of the father lit up with a faint smile as he answered:

“Yes; thank heaven; alive and well.”

“May I touch her?” timidly asked Ike Hoe, extending his finger which faintly brushed the rosy cheek, and was instantly snatched away as if he felt

he had done a sacrilegious thing.

"I say," ventured Ruggles gathering courage, "I wonder now if she would let me take her in my arms for a minute or so; I won't drop her; but that's too much to ask, howsumever."

While he stood hopeful, hesitating and doubtful, Nellie with a half frightened smile, dived her head under the arm of her father, as if to get away from the embarrassing situation. He gently fondled the golden hair and drew her face into view again.

"There, little one, there's nothing to be frightened at; these people are all your friends and will do anything they can to please you."

"You're right!" exclaimed Landlord Ortigies, with a shake of his head; "we'll do anything in the world for you; if you say the word, I'll stand on my head or stand any one else here the same way."

And he showed an alarming inclination to invert himself for the amusement of the child, but she did not seem to grasp the meaning of the offer. She fixed her eyes upon Ruggles, who made bold by what seemed a favorable sign, took a step forward and invitingly extended his hands. She debated for a moment, whether to meet the proffer and then with the impulsiveness of infancy leaned toward him. With a thrill of pleasure the grizzled miner carefully placed his huge arms underneath hers, and lifted her as if she were a doll from her father's knee. As he did so, every one saw the big tears trickling down his cheeks.

"I can't help it, boys," he said apologetically; "the last child I held in these arms was my own Jennie, and she was dead."

With infinite affection, he pressed his bearded lips against the chubby cheek, while she, relieved of all fear, flung her dimpled arms about his neck and kissed him in return. With one hand, she lifted the flapping hat from his head and with the other smoothed away the luxuriant hair from his forehead.

"I like you ever so much, but you are crying," she said sympathetically; "what makes you do that? Haven't you got a little girl like me?"

"No, my precious child; I once had just such a sweet tot as you, but the good Lord took her from me, and I love you just as I loved her."

“And that’s what we all are going to do,” remarked Ike Hoe, with a sniff as he drew his sleeve across his eyes; “this beats anything in the history of New Constantinople, by seven hundred and eighty-four thousand majority.”

“Come, Wade, you must be fair with us,” said the landlord, reaching out his arms; “we all claim an equal share in her.”

The miner felt the truth of this, and without a word relinquished the treasure. Drawing his handkerchief, he wiped his eyes clear of their mist and jealously followed the surrendered one as she was fondled in turn by the others. First one and then another, until she had completed the round. All had something pleasant to say to her and she replied in her sweet innocent way, causing laughter and winning her path straight to the hearts of the hardy fellows, to whom such endearments had been unknown for years, but whose better natures were stirred by the presence of the child, as if she were in reality an angel sent from heaven.

Felix Brush had purposely left his turn for the last, hoping thereby to retain her longer than his friends. After chatting with her for a moment and repeating some rigmarole that set her laughing, followed by the request for him to say it again, he stood her on the bar. Then he danced in front of her, swung his arms like a jumping-jack, and told some outlandish fairy story from the stock that no one had ever suspected he possessed.

“Can you stand on your head?” asked Nellie, rippling over with fun.

“Certainly,” he replied, as without a moment’s hesitation, he inverted himself and cracked his heels together, though the attitude was such an unfamiliar one that he careened and went over on his back with a thump that made the room tremble. Nellie clapped her chubby hands with delight and before Brush could repeat the performance, she called:

“Catch me; I’m going to jump.”

“All right; I’m ready for you.”

She recoiled a step to gather momentum and Landlord Ortigies, terrified at the fear that she might step off backward, made a dive round the end of the bar, catching his foot in an obstruction and falling with a crash that drew all attention to him.

“I’m so sorry; be you hurt?” asked Nellie, turning her head and surveying him, as his face came up to view like the full moon rising above the horizon.

“Not a bit; I done that on purpose to make you laugh; I always do that to please good little girls like you.”

“Bime by I’ll let you fall all the time, but just see me jump.”

Felix Brush was still standing, with arms outstretched, and, without a second’s hesitation the child leaped off into space. She showed no fright, for there was no cause for it, since she was caught fairly and securely. Inasmuch as she had been fondled by every one, and the parson had had her longer than anyone else, he set her down on the floor and she began running here and there, displaying a childish curiosity to understand everything in sight. Going to the half-opened door, communicating with the darkened apartment at the rear, she peeped timidly in.

“Who lives in dere?” she asked, turning around and addressing the whole group who were laughingly watching her.

“That’s where I live,” replied Ortigies.

“Do you live all alone?”

“Yes, my child.”

“Haven’t you got any little girl like me?”

“No; I’d give all I have in the world if I had.”

“Wouldn’t you like to have me for your little girl?”

“Indeed I would; will you be my little girl?”

The baby face became thoughtful. She thrust one finger in the corner of her mouth and looked down at the floor.

“What would papa do and those other folks? I will be the little girl for all of you.”

This struck the party as the brightest and wittiest expression ever made by a mortal. They laughed, clapped their hands and striking each other on the shoulder wanted to know whether anything of the like had ever before been

heard. Certainly not. Without paying any heed to them, Nellie was peering into the room again.

"It's dark and cold," she said in an awed voice, turning her face around, the better to communicate the information; "but I ain't afraid."

Before she could fairly enter the place, her father, who was affectionately watching her, said:

"I guess you would better not go in there, Nellie; it's growing late and is time you prepared for bed."

"I'll fix a place for her," said Ortigies; "we ain't much on style here, but I can manage to make her comfortable."

"But will it not discommode you?"

"That little gal can't discommode any one in New Constantinople; if she would prefer to have me go out and sleep in the snow, I'll be glad to do it."

"I've just the place for her," interposed Wade Ruggles; "couldn't be better if I had taken a week to get it ready."

"Can't begin with my quarters," Felix Brush hastened to say, and there would have been a general wrangle for the privilege of accommodating the little one, had not her father, seeing how matters were going, smilingly raised his hand in protest.

"I cannot tell you, my friends, how much I thank you all for your kindness. Ah, if my poor wife could have held out until she reached here, but that was not to be. I shall be glad to stay with Mr. Ortigies to-night, and with your permission shall remain for a few days in your settlement. I have lost everything I owned in the world, and will need some time to decide what is best to do. Our stay in New Constantinople will give all a better chance to get acquainted with Nellie. I'll surrender her to you until you get tired of her."

"Get tired of her!" repeated Vose Adams, voicing the sentiments of all; "we're not the kind of galoots to git tired of an angel."

The father expressed his thanks with such winsome grace, that every man instinctively felt that he was a born gentleman. There was not a miner in the room who did not sympathize with him in his affliction, and yet they envied

him the possession of the child, whose innocence and beauty impressed them as more wonderful than they had ever looked upon before. When Felix Brush whispered to Budge Isham that arrangements must be made in some way to keep the father with them, for the sake of having the child, his friend nodded his head, and said he had made up his mind to the same effect from the moment the parent referred to the matter. And the sentiments of these two were those of the rest.

“Come, Nellie, let me prepare you for bed; it’s a long time since you have had that privilege.”

The little one obediently walked to her father and turned her back to him that he might better remove her clothing.

“I suppose you have plenty of covering for her?” remarked the parent inquiringly to the landlord.

“There’s all she can need.”

Lifting her on his knee, the father began removing the shoes and stockings, the little one giving what aid she could, when it came to the garments. One of the last acts of the affectionate mother had been to place upon her child the gown she was accustomed to wear while asleep. When at last she was ready, she looked up to her father and asked in a half whisper:

“Where’s mamma?”

“She will not be with us to-night.”

“Then she will come in the morning?”

“Wait until then, my child; don’t say anything more about mamma now.”

She was satisfied, and signified that she was ready to have her father carry her to her bed. Then she exclaimed with a laugh:

“Ain’t that funny?”

“What’s that?”

“I like to fordot to say my prayers.”

And slipping from her father’s knee, she knelt on the floor, with her hands covering her face which, as it pressed his knee, was hidden by the mass of golden ringlets clustering and falling about it. Not a man stirred or spoke.

All were so silent that the sifting of the snow against the logs, the moaning of the gale and the soft rustle of the embers that broke apart on the hearth were audible. But all these were as the “voice of silence” itself, so that when the child began her prayer in a low voice, every syllable was heard.

“Now I lay me down to sleep.
I pray the Lord my soul to keep;
If I should die before I wake,
I pray the Lord my soul to take.
God bless papa, mamma and make Nellie a good girl; bless—”

Wheeling short round at the silent, awed group, she looked at the landlord and asked:

“What is your name?”

“Or-ti-gies,” he replied, pronouncing it carefully.

She made rather sorry work at first, but there could be no doubt that the One to whom she was addressing the petition understood her wishes. When she had satisfied herself and included the landlord in her prayer, she ceased again, and this time looked up at her father whose hand was resting on her head.

“I must pray for *all* of them, musn’t I?”

“Certainly, my child.”

“But I don’t know dere names.”

“They will all tell them.”

No act of worship in church or grand cathedral was more solemn and reverential than that of the men, as each in turn stepped softly forward with bowed head, and repeated his name to the tiny petitioner, who immediately included it with those for whom she had already prayed and it was wafted upward through space to Him who delights to hear and answer such petitions.

She did not forget one. To make sure, she looked up while still on her knees and asked:

“Did I fordot any of you?”

“No,” replied the parent; “you have not missed any. That’s a good girl.”

“And I know they will all be good, for I asked God to make ’em so.”

The father now rose to his feet with her in his arms, and she called a general good night, flinging a kiss to all. Landlord Ortigies had lit an extra lamp and with it in hand, he led the way to the rear room, where as he stated, comfortable quarters were provided for the little one. Since the Heavenly Bower was the only place in the mining settlement where the wanderer, who occasionally made his way into that remote part of the world, could expect to find sleeping accommodations, Ortigies was always prepared for visitors. Thus he was able to furnish the father with a couch so placed that he virtually shared the bed with his child.

Ten minutes later, when he stole back into the room with the landlord to see whether everything was right with his child, she was found sunk in the sweet, dreamless slumber of infancy. The picture was so winsome as she lay with her cheek resting upon the rough pillow, that Ortigies stepped softly to the door and beckoned to his friends. Everyone stole forward, and stood looking down for several minutes upon the sleeper, and, as he did so, new resolves sprang into his heart. Already it may be said they were better men because of the blessed messenger that had come among them.

CHAPTER III

A SLIP OR TWO

The blizzard gradually subsided toward morning, but when the fall of snow ceased, it lay to the depth of several feet on the level, while the gorges were choked with vast drifts. The cold was below zero and no work could be done in the diggings until a rise in temperature came.

It was hardly light, however, on the succeeding morning, when three of the miners accompanied Maurice Dawson in his search for the abandoned wagon and team. There was not a trace of anything resembling a trail, the footprints of the man having been obliterated by the wind-driven snow, and the skill of the party was taxed to the utmost. Several times they were compelled to rest, and Dawson himself suggested that the search be given up until a change in the weather; but the kind hearted men saw how deeply he grieved, and their sympathy kept them toiling until about noon when success came.

The wagon was so covered with snow that it resembled a hummock, which ordinarily would have been passed without notice. The horses and the inanimate form within were like blocks of wood. The slight figure was lifted tenderly from its resting place and brought to Dead Man's Gulch.

Since the last recollection of Nellie was when she supposed her mother alive, it was deemed kinder that she should not look upon the lifeless form again. With hard labor the picks and shovels hollowed out a shallow grave into which the form, wrapped about with a single blanket, was laid away to rest until the last day.

The father, when questioned by the little one, explained that her mother had gone on a long, long journey and there was no saying when she would be seen again. Nellie cried a good deal and it saddened her parent's heart, when stealing softly into her room, he saw the traces of tears on her cheeks. Who can tell the sorrows of childhood when such a cruel affliction comes upon it? But it is a blessed truth that time is the healer of all wounds, and

after awhile the little one ceased to ask about her mother. When the whole truth was told her, she had become old enough to bear the blow.

Maurice Dawson's first purpose was to remain only for a week or two with the friends of himself and child. He had set out for the Pacific coast, and, although it was still a thousand miles distant, he felt it his duty to press on, but he suffered himself to be dissuaded, when it was explained that the prospect of obtaining gold was as good at New Constantinople, whereas, if he continued his journey, he would have to make his home among strangers, who were not likely to feel the interest in him and his child that was felt by those who were the means of saving their lives. Furthermore, since he had lost his team, he was without the means of pressing on. None of the emigrant trains turned so far out of their course as to come to Dead Man's Gulch, and nothing was plainer than that the citizens of that place would not give the least help in an enterprise that was to deprive them of Nellie. It is impossible to say what would have followed, had he persisted in his first decision, for while the men might have consented to let him go, they would have rebelled had he attempted to take the child from them.

And so it came about, we repeat, that Maurice Dawson decided to make his home indefinitely in the town that had been christened New Constantinople. With the help of his neighbors, Landlord Ortigies divided his rear room into two apartments, one of which was turned over to the parent and his child. Nearly every miner brought some article, such as a fragment of mirror, a picture or trinket and presented it to the little one, whose room naturally became the finest in New Constantinople.

Dawson himself joined the miners at their work, all showing an eagerness to lend him a helping hand, and there was reason to hope that in time there would be a fair reward for their labor. He was not only an educated man, but was strong and enterprising, considerate of the feelings of others, and now that his life partner was gone, he had but the little daughter to live for. Gladly he toiled for her, for no child was ever more tenderly loved by parent than she. His thoughts turned to the future, but for some years he believed it was better that she should remain where she was.

Nellie Dawson became the pet of the mining town. There was not a man in the place, no matter how rough his ways, nor how dark had been his past, who was not made the better by her presence. She touched a responsive

chord in every heart. She awoke tones that had been silent for years, and stirred into life resolves that had lain dormant for a generation. When the weather grew milder with the approach of spring, she flitted like a bird from cabin to cabin, equally at home and dearly prized in all. Many a time when night came, the father was unable to find her, and perhaps saw nothing of her until the next day, but he never felt any solicitude. He knew that some of the men had persuaded her to remain with them, and he was too considerate to rob them of the pleasure of listening to her innocent prattle, while they racked their ingenuity and threw dignity to the winds in the effort to entertain her. Each one strove to make her think more of him than the others, and it ended by her loving them all.

As a rule, Nellie ate her morning meal at home, after spending the night with her father, and then she was off for the day, returning or remaining away as her airy fancy prompted. Her sweet influence in the mining camp was beyond the power of human calculation to fathom. No gauge could be placed upon it. Like the sweep of an angel's wing, her coming seemed to have wafted nearly all the coarseness, wrong and evil from her path.

"There's a serious question that I want to lay afore this company," gravely remarked Wade Ruggles one night in the Heavenly Bower. Dawson was absent with a brother miner at the lower end of the settlement, so the gathering felt at liberty to discuss him and his child. Wade of late had fallen into the habit of taking the lead in such discussions, and Landlord Ortigies was quite willing to turn over the honors of the chairmanship to the outspoken fellow.

The remainder of the company were smoking, drinking and talking as the mood took them, and all looked inquiringly at the speaker, seeing which Wade continued with the same earnestness he had shown at first:

"It is this: that little angel that was tossed down here in the blizzard is growing fast; she's larning something cute every day; she notices things that you don't think of; fact is she's the smartest youngster that was ever born. Does any gent feel disposed to dispoote the aforesaid statement?" he abruptly asked, laying his hand on the butt of his revolver and looking severely around in the faces of his friends.

No one questioned the assertion. Had it been left to them to choose the words, they would have made them stronger.

“Wal, the remark I was about to remark is that I hear some coarse observations once in awhile. I may say that I have indulged in a few myself when the ’casion was suitable and called for ’em, but I want to give notice that the thing must stop in the presence of the angel.”

“Your suggestions generally ain’t worth listenin’ to,” observed Ike Hoe, “but there’s solid sense in them words. I have been troubled over the same thing and was goin’ to submit a proposition.”

“You’re a purty one to do it,” commented Vose Adams scornfully; “why it’s only yesterday that I heerd you say ‘darn’ just because I happened to smash the end of your finger, with the hammer I was drivin’ a nail with.”

“Did the little one hear him?” asked Wade Ruggles, while an expression of horror settled on every countenance.

“No, sir!” declared Ike; “afore I indulged in the expression, so proper under the tryin’ circumstances, I looked round to make sartin she wasn’t in hearing distance.”

“You must have looked very quick,” said Vose; “for the horrible words was simultaneous with the flattenin’ of your big forefinger. Howsumever, I gazed round myself and am happy to say she warn’t in sight. If she had been, I’d smashed all your fingers.”

“A very proper Christian spirit,” commended Wade; “I hope all the rest of you will strive to emerlate it.”

Felix Brush was leaning on the end of the bar with a glass of steaming toddy, which he had partly sipped, and was now caressing with his hand.

“Gentlemen,” said he impressively, “permit me a word. Wade has touched a subject which appeals to us all. I have given it much thought for the past few days and feel it my duty to look after the religious instruction of the child.”

Two or three disrespectful snickers followed this declaration. The parson instantly flared up.

“If any reprobate here feels a desire to scoff, he’s only to step outside for a few minutes and see who can get the drop on the other.”

Everybody knew that the parson was always well heeled, and no one questioned his courage. His friends contented themselves with pitying smiles and significant glances at one another. Felix hastily swallowed his toddy, with the evident intention of airing his emphatic views, when Wade Ruggles interposed:

“Pards, you’re gettin’ off the track; we hain’t got to the religious racket yit; that’ll come later. What I want to ’rive at is as to using cuss words and unproper language where the angel hears it. It ain’t ’nough for us to agree that we won’t do it; it must be fixed so we don’t take no chances.”

This was not exactly clear and Wade was asked to be more explicit.

“I mean that there must be a penalty, such as will stop a galoot that has once offended from doing the same thing again.”

This clearly intimated that the punishment which the chairman had in mind was of a frightful nature. The landlord begged Wade to come down to particulars.

“My idee is that whoever offends this little one by unproper language shall be filled full of bullet holes: how does *that* strike you?”

“It hits me just right!” responded the landlord, with several nods of his head; “but there’s one thing in the way.”

“What’s that?” demanded Wade, showing some temper at this attack upon his scheme.

“It ’lows a man to say the unproper words in the hearin’ of the angel, *afore* he’s shot; so it won’t prevent her ears from being ’fended. Can’t we fix it some way, so that she shan’t hear ’em at all?”

“There’s no trouble about that,” solemnly remarked Budge Isham from his seat at the further end of the room; “You have only to find out when a fellow has made up his mind to use improper language in the presence of the child, and then shoot him before he can say the words.”

“But how shall we know he’s going to say ’em?” inquired the chairman, who in the earnestness of his feelings felt no suspicion of the honesty of his friend.

“You will have to judge that by the expression of his countenance. I think when a fellow has made up his mind to swear his looks give notice of what is coming. The rest of us must be on the alert and pick him off before the words get out of his mouth. And yet I am sorry to say,” added Budge gravely rising to his feet, “that there is one serious drawback to my proposition.”

“The chairman is anxious to hear it.”

“There might be mistakes made. A man’s expression is not always an index of his thoughts. He might be suffering from some inward pain, and be in the act of uttering some expression, but his face could have so mean a look that if our law was in force, he would be shot on sight. For instance, studying these faces all turned toward me, I should say, speaking on general principles, that all except one or two deserve, not shooting, but hanging, and if looks were to determine a man’s depth of infamy, mighty few of you would live five minutes.”

Budge sank gravely into his seat and resumed smoking, while his friends, understanding his trifling character, contemptuously refused attention to his disrespectful remarks. In the general discussion which followed, several insisted that the only proper punishment for the grave offence was death; but the sentiment crystallized into the feeling that that penalty was somewhat severe for the first breaking of the law. It was proper enough for the second crime, but a man who had been accustomed to picturesque and emphatic words was liable to err once at least while on the road to reformation. The agreement finally reached was that the offender should be heavily fined, compelled to fast several days, or, more frightful than all, be deprived of the privileges of the bar for the same length of time. When the last penalty was fixed there were several suppressed groans and a general setting of lips, with the unshakable resolve to steer clear of that appalling punishment.

Everything was serene for several days, when, as might have been anticipated, the explosion came. Al Bidwell, in coming out of the Heavenly Bower, caught the toe of one of his boots and fell forward on his hands and knees. Two of his friends seeing him naturally laughed, whereupon, as he picked himself up, he demanded in the name of the presiding genius of

hades, what they saw to laugh at. By way of answer, one of them pointed to Nellie Dawson, who ran forward to help him to his feet.

“Did you hurt yourself, Mr. Bidwell? I’s so sorry.”

“You may well be, little one,” was the bitter response, as he realized his awful offence; “for this will play thunder with me—there it goes agin! Please don’t say another word,” he exclaimed desperately, striding down the street to save himself from piling up a mountain of unpardonable crimes.

The committee did not gather until late that evening, for Nellie was at home and it was thought advisable to wait until she was asleep, so that she should not know anything of what was in the air. The conversation was in subdued tones until Mr. Dawson tip-toed out of the rear room, with the announcement that the little one was sunk in slumber.

“Such bein’ the case,” remarked Wade Ruggles, with becoming gravity, “this meeting will proceed to bus’ness. Pard, a hein’us crime has been committed among us. In the proud history of New Constantinople, we’ve had hangin’ bees; we’ve shot three Injins ’cause they was Injins; there has been any number of holes plugged inter them as was a little careless of speech, and more’n once there has been the devil to pay, but nothin’ like this, *never!* Vose Adams, you was one as heard this wretch Bidwell indulge in his shocking profanity. You’ll be good ’nough to give the partic’lars to the gents that I must warn to brace themselves fur the shock.”

Vose Adams told the story which was familiar to all. He and Budge Isham were approaching the Heavenly Bower that forenoon, the cause being a due regard for the requirement of the laws of health, when Albert Bidwell, the accused, stubbed his toe. Hearing a laugh, he looked up and demanded to know what the — they were laughing at. While the query, though objectionable on æsthetic grounds, might have passed muster in the diggings or anywhere in New Constantinople previous to the advent of the angel at present making her home with them, yet the horror of the thing was that the aforesaid angel heard it. She ran to the help of the villain, who added to his monumental crime by calmly remarking to her that what he had just said would play thunder with him.

This second offence was unanimously felt by those present to be more unpardonable than the first, since it was in the nature of an addendum, had

nothing to do with the business proper, and worst of all, was addressed to Nellie herself.

Chairman Ruggles turned his severest frown upon the prisoner, who was sitting disconsolately on a box, and drawing at his brier wood pipe, which in the depth of his emotion, he failed to notice was unlighted.

“What has the prisoner to say fur himself?”

Bidwell shuffled to his feet, took the pipe from his mouth and looked around upon the cold, unsympathetic faces.

“Wal, pards,” he remarked, heaving a great sigh, “I don’t see that there’s anything partic’lar fur me to say. When a thing is fairly proved onto you, you can’t make nothin’ by denyin’ of the same. I’ve been tryin’ to walk a chalk line ever since the angel arrove among us. Two or three times I fell over backward and bruised my head, owin’ to my tryin’ to stand up too straight. I was just bracin’ myself to do the same as aforesaid, when comin’ out of this disgraceful place, when I took a headlong dive and struck the earth so hard, I must have made a bulge in China. Two unmannerly ijuts that happened to see me, instead of expressin’ sorrer for my mishap, broke out laughin’, and in my righteous indignation, I asked them a emphatic question.”

“Ord’narily,” observed the Court, “your explanation would do. In the old times, nothin’ would have been said if you’d drawed your gun and give ’em a lesson in manners, but that aint the question afore the house: Why did you do it in the presence of the angel?”

“Didn’t see her till after the crime was committed.”

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“But why didn’t you look fur her to larn whether she was in sight or was liable to hear your shocking words?”

“Didn’t think of it.”

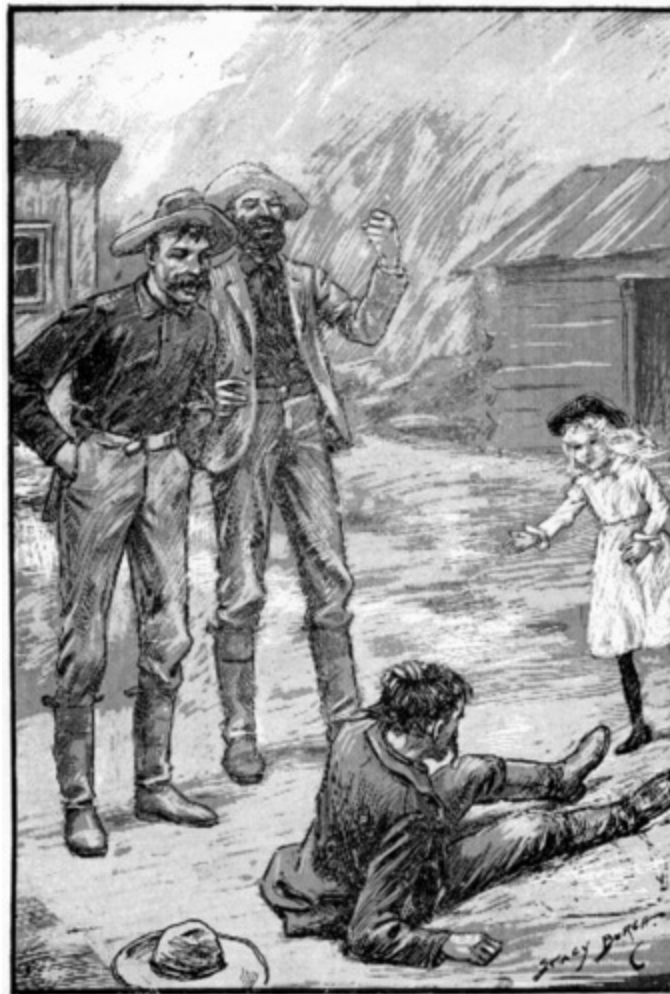
“Your reply only aggervates the offence. If any man feels that he must swear or bust, he must bust, purvided the little one is in sight; or he must hold in till he can climb on top of the rocks, or creep among the foothills where he’s sure of being alone. The Court hain’t any ’bjection to your thinking all the cuss words you want to, but you mus’n’t speak ’em when she’s about. You understand the position of the Court?”

“I’d be a fool if I didn’t,” growled the accused.

“It’s unnecessary to understand ’em in order to be a fool, Mr. Bidwell, but how ’bout your second offence, when you used the word ‘thunder,’ and addressed it to the gal herself?”

The prisoner felt that nothing could be said in palliation of this charge.

“That was bad bus’ness, I’ll confess; but I was so disgusted with myself that I didn’t know what I was doing or saying; the words come out afore I had time to pull myself together. I was so afeard of adding something still worser that I just rushed off to git out of danger.”



AS HE PICKED HIMSELF UP, HE DEMANDED IN THE NAME OF THE PRESIDING GENIUS
OF HADES WHAT THEY SAW TO LAUGH AT.—PAGE 43.

“There’s where you showed the first grain of sense the Court ever knowed you to show. If I had been in your place, I would have jumped off the rocks, into the kenyon, two thousand feet below. If you’d done that you’d been saved the disgrace of being put on trial in this honorable Court. Gents,” added Ruggles, glancing from the prisoner into the expectant faces, “since the man owns up, it rests with you to fix the penalty for his crime of bigamous murder.”

The prisoner resumed his seat and the chairman looked around, as an invitation for those present to express their views. When they came to do so, a wide diversity came to the surface. Vose Adams suggested that the criminal be compelled to go without any food for three days, but this was not favorably received, since the rough, trying life which each man had been compelled to follow at times during the past years, made the punishment much less than it appeared to be.

Ike Hoe suggested that instead of food, the accused’s liquid refreshment should be shut off for the time named. The accused groaned.

When this had continued for some time, Felix Brush, the parson, took the floor.

“Gentlemen, it’s a principle in law to be lenient with the first offence, and, since this is the first time that Bidwell has offended and he deeply feels his disgrace, why not require him to apologize to the young lady and stand treat for the crowd, with the understanding that his next crime shall be visited with condign punishment?”

“Do you propose to let him off?” demanded the wrathful chairman.

“Yes; for this once, but never again.”

“I’ll never consent to anything of the kind! The dignity of the Court must be preserved; the law must be executed, and any man who says ‘devil’ or ‘thunder’ in the presence of the little gal, I don’t care what the circumstances, orter to be shot, so that there wont be any delay in his going to the devil, where he belongs.”

“O, Mr. Ruggles, I heard you!”

A little figure dressed in white stood at the door leading to the rear room, and the startled auditors turning their heads, saw Nellie Dawson, with her

chubby finger pointed reprovingly at the dumbfounded chairman.

CHAPTER IV

SUITING THE PUNISHMENT TO THE CRIME

Wade Ruggles was speechless. He sat with his mouth wide open and his eyes staring at the little figure, as if it were a veritable apparition. All the others looked in the same direction. Nellie Dawson stood for a moment with her finger pointed reprovingly at the chairman, and then turning about ran back into the rear room and plunged into her bed.

“Max, quick!” said Ruggles faintly, pointing to the black bottle at the rear of the bar. The landlord hastily poured out some of the fiery stuff, and the miserable fellow swallowed it at a gulp. It served partly to revive him, but he was really on the verge of collapse.

The only one of the company not impressed was Maurice Dawson, father of the little girl. He was sitting well back of the rest, where no one paid attention to him. Comprehending the meaning of this incident, he drew his hand across his mouth to conceal the smile that could not be wholly restrained. Then he hurried back into the room to see that his child was “tucked up” and properly covered for the night. Finding himself in the dark, where he could not be observed, he laughed deeply and silently, his mirth all the greater because of the oppressive gravity of every one else. Then bending over, he said, as he kissed the little one:

“I thought you were asleep, Nellie?”

“So I was, but Mr. Ruggles spoke those bad words so loud he woked me.”

“You mustn’t get up again, will you?”

“Not if you don’t want me to.”

“I have just told you I don’t wish you to.”

“Then I wont get up.”

The father lingered in the room, until he mastered his disposition to laugh, and then, when he walked out among his friends no countenance was graver

than his.

“I say, Dawson,” said Ruggles, swallowing a lump in his throat, “will you oblige me by acting as chairman?—I don’t feel—very—well.”

The gentleman walked forward to where Ruggles had been standing with his back against the bar, looking down in the faces of his friends. The poor fellow seemed to have aged ten years, as he slouched off to an upturned box near the door, where he dejectedly seated himself.

“What is your pleasure, gentlemen?” asked Dawson, as if presiding over the deliberations of one of the most august assemblages in the land; “I am ready to hear any suggestion or motion.”

Al Bidwell rose to his feet.

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“Mr. Chairman, I wish to endorse with all my heart, the soul-stirring, eloquent address to which we have just listened from the late Mr. Ruggles,—I mean the late Chairman. Them sentiments of his is as sound as a gold dollar. He maintains that any gent that uses an improper word, such as he used and which I scorn to repeat, in the presence of the young lady, who has just listened to his remarks, oughter to be sent to the individooal whose name is too shocking fur me to pronounce, since the aforesaid young lady is in the adjoining apartment, from whence she was awoke by the awful profanity of the gent who lately served as our chairman.”

And having gotten back on Ruggles in this masterly manner, Bidwell sat down, slung one leg over the other, and relit his pipe. The oppressive silence was broken by a prodigious sigh from Ruggles.

Parson Brush, after the stillness had continued some minutes, rose to his feet.

“Mr. Chairman, an extraordinary state of affairs has arisen. You have not forgotten that I plead for charity for Mr. Bidwell, because it was his first offence. My plea was not well received, but my sentiments are unchanged, and I now make the same plea for Mr. Ruggles and on the same grounds. When he was denouncing in fitting terms the sin of Bidwell, he had no thought of committing the crime himself, but in his earnestness he did. This being plain to all of us, I renew——”

Wade Ruggles bounded to his feet.

“I don’t want any one to plead for me! I ain’t pleading fur myself! I can take my medicine like a man; if there’s any galoot here——”

He suddenly checked himself with an apprehensive glance at the door of the rear room, and then resumed in a more subdued voice:

“I insist that Al Bidwell shall suffer for his onspeakable crime and me too, ’cause mine was onspeakabler. Jedgin’ from the evidence that showed itself, I must have awoke the little gal from peaceful slumber, by them awful words of mine.”

He paused and looked inquiringly at the chairman, who calmly returned his gaze, without speaking. It was Parson Brush who interposed:

“I should like to ask, Mr. Dawson, whether the supposition of Mr. Ruggles has any foundation in fact.”

“It has; when I asked Nellie what caused her to awake, she said it was Mr. Ruggles when he used those bad words.”

“Just what I thought!” exclaimed Ruggles, as if he enjoyed heaping fire upon his own head; “there ain’t any depth of infamy which I hain’t reached. For me to try to sneak out now, when I made such a——(Here he again threw a startled glance at the rear of the room) would be to do something which Wade Ruggles never done in his variegated career of nigh onto forty years. All I ask is that you’ll git through it as soon as you kin and fix our terms of imprisonment or our deaths and hev done with it.”

Al Bidwell took an unworthy delight in prodding the man who had been so severe upon him.

“I beg humbly to suggest to the gent that there are plenty of places in the mountains where he can make a jump of a thousand feet or two into the kenjons. Wouldn’t it be a good idee fur the gent to try it?”

“I will if you’ll join me,” retorted Wade, turning upon him like a flash.

“I’ll let you try it first and see how it works,” replied Bidwell, so crushed that he remained silent henceforward.

“Since I am chairman,” said Dawson, with becoming dignity, “it is my duty to listen to suggestions and to hear motions. What is your pleasure, gentlemen?”

No one in looking at the countenance of Maurice Dawson would have suspected he was extracting the keenest enjoyment from these proceedings, yet such was the fact. There was something so intensely ludicrous in the whole business, that only by assuming preternatural gravity could he refrain from breaking into merriment. His policy was to egg on the discussion until the company were ready for a decision, when he would interpose with the proposal to wipe out the whole matter and begin over again. The earnestness of Wade Ruggles, however, threatened to check anything of that nature. He was on his feet several times until Budge Isham, who shrewdly suspected the sentiments of the chairman, protested.

“With all due respect to the parson, to Ruggles and to Bidwell, it strikes me, Mr. Chairman, that they should give the rest of us a show. We have listened to their yawping until it has grown monotonous. Having told us a dozen times, more or less, that he wants us to punish him all he deserves, Mr. Ruggles ought to let it rest with that; but he shouldn’t forget,” added Budge, with the solemn manner which always marked his waggery, “that, if we took him at his word, he would be kicking vacancy this minute. However, this hasn’t anything to do with his general cussedness, but concerns his offence against the young lady. That is all there is before the house, and I insist that we confine ourselves to that——”

“Isn’t that what I’ve been insistin’ on?” demanded Wade Ruggles.

“There you go again! I have the floor, and you have no parliamentary right to interrupt me with your frivolous remarks. Am I correct, Mr. Chairman?”

“You are most unquestionably; proceed.”

“Well, to bring this tiresome matter to a close, I move that Mr. Bidwell be deprived of the bar privileges of the Heavenly Bower for a period of four days, and that the same be denied to Mr. Ruggles for a period of one week. Did I hear a groan?” asked Budge, looking round at the two men, who were trying bravely to bear up under the threatened punishment.

Both shook their heads, afraid to trust their voices by way of reply.

“If the gentlemen will permit me,” said the chairman, “I should like to say a few words.”

“I am sure we shall be glad to hear from Mr. Dawson,” remarked the parson.

“Thank you. What I had in mind is this:—It is creditable to your honor that you should pledge yourselves to refrain from unbecoming language in the hearing of my little girl, for you cannot help being her instructors, no matter how much you may wish it were otherwise. But you are magnifying the matter. I am sure every man of you will strive just as hard, without being incited thereto by the fear of punishment. I would beg to suggest——”

He paused, for, looking at Wade Ruggles, he saw it was useless to go further. Bidwell would have been glad to receive leniency, but his partner in crime was immovable, and it would not do to punish one and allow the other to go free. Dawson was wise enough to accept the situation promptly.

“You have heard the penalties suggested for the offences of the two gentlemen accused. All who favor such punishment will show it by raising their right hands.”

Every man in the room, except the chairman, voted in the affirmative.

“It isn’t worth while to put the negative. The accused have heard the verdict, which is that Mr. Bidwell shall not drink a drop of anything except water or coffee for a period of four days, dating from this moment, while Mr. Ruggles is to undergo the same penalty for a period of one week.”

“That’s right,” growled Bidwell; “for he drank about half of what was in the bottle only a few minutes ago.”

“And you would have drunk it all,” retorted Ruggles, “if you’d knowed what was coming.”

CHAPTER V

A HUNDRED FOLD

All this may seem a trifling matter to the reader who does not understand the real punishment suffered by these two men, who, like all the rest of their companions, had been accustomed to the use of ardent spirits for many years. There was no deprivation which they could not have borne with less distress, but their great consolation was that both knew the penalty was fully deserved, and they would not have complained had it been made more severe.

“I tell you,” said Bidwell, at the end of the fourth day, when he had celebrated his release from purgatory, “it pays, Ruggles.”

“What pays?”

“The reward you git for all this. At the end of a week you’ll have a thirst that you wouldn’t take a thousand dollars fur.”

“But the week isn’t much more’n half gone and I’d sell my thirst mighty cheap now.”

“Don’t you do it! Hold fast to it.”

“That’s what I’m doing, ’cause I can’t help myself. Howsumever it’s the thirst that’s holding fast to me.”

“That’s the beauty of it; it’ll git stronger and stronger, and then it’s so big that you can’t well handle it. It seems to me that ten minutes after I’ve had a drink, I’m thirsty agin, which reminds me; I’d like to invite you, Wade.”

“Invite all you want to, ’cause it won’t do any more hurt than good; don’t let me keep you,” added Ruggles, observing the longing eyes his friend cast in the direction of the Heavenly Bower. Bidwell moved off with pretended reluctance, out of consideration for the feelings of his friend, but once inside, he gave another demonstration of the truth of his remarks concerning thirst.

As for Ruggles, only he who has been similarly placed can appreciate his trial. No man is so deserving of sympathy as he who is making a resolute effort to conquer the debasing appetite that has brought him to the gutter.

On that fourth night the thirst of the fellow was a raging fever. He drank copious draughts of spring water, but all the help it gave was to fill him up. The insatiate craving remained and could not be soothed. It seemed as if every nerve was crying out for the stimulant which it was denied.

“The only time I ever went through anything like this,” he said to himself, “was twenty years ago, when a party of us were lost in the Death Valley. Three of ’em died of thirst, and I come so nigh it that it makes me shudder to think of it even at this late day.”

A wonderful experience came to Wade Ruggles. To his unbounded amazement, he noticed a sensible diminution, on the fifth day, of his thirst. It startled him at first and caused something in the nature of alarm. He feared some radical change had taken place in his system which threatened a dangerous issue. When this misgiving passed, it was succeeded by something of the nature of regret. One consoling reflection from the moment his torture began, was the reward which Al Bidwell had named, that is,—the glorious enjoyment of fully quenching his terrific craving, but, if that craving diminished, the future bliss must shrink in a corresponding ratio, and *that* was a calamity to make a man like him shudder.

On the evening of the fifth day, he ventured for the first time during his penal term, to enter the Heavenly Bower. He wished to test his self-control. When he sat quietly and saw his friends imbibing, and was yet able to restrain himself from a headlong rush to join them, he knew that beyond all question, his fearful appetite had lost a part of its control over him. Still he believed it was only a temporary disarrangement, and that the following day would bring a renewal of his thirst, with all its merciless violence.

But lo! on the sixth morning, the appetite was weaker than ever. His craving was so moderate that, after a deep draught of mountain spring water, he was hardly conscious of any longing for liquor. He seemed to be losing his memory of it.

“I don’t understand it,” he mused, keeping the astonishing truth to himself; “It’s less than a week ago that I was one of the heaviest drinkers in New

Constantinople, and if anyone had told me of this, I would have been sure he'd lost his senses, which the same may be what's the matter with me."

But there was no awakening of his torment during the day, and when he lay down at night, he was disturbed by strange musings.

"If we had a doctor in the place, I would ask him to tell me what it means. The queerest thing 'bout the whole bus'ness is that I feel three thousand per cent. better. I wonder if it can be on 'count of my not swallerin' any of Ortigies' pison which the same he calls Mountain Dew. I guess it must be that."

But that night he was restless, and gradually his thoughts turned into a new channel. A momentous problem presented itself for solution.

"If I've improved so much after goin' six days without drinkin', won't I feel a blamed sight better, if I try it for six weeks—six months—six years—*forever*."

And as an extraordinary, a marvelous resolution simmered and finally crystallized, he chortled.

"What'll the boys say? What'll the parson think? What'll I think? What would that good old mother of mine think, if she was alive? But she died afore she knowed what a good for nothin' man her boy turned out to be. God rest her soul!" he added softly, "she must have prayed over me a good many hundred times; if she's kept track of me all these years, this is an answer to her prayers."

Budge Isham was the partner of Wade, and shared his cabin with him. He slept across the room, and noticed how his friend tossed and muttered in his sleep.

"Great Gee!" he exclaimed, "but Wade's got it pretty bad; I wonder if it's the jim jams that is getting hold of him; I'll sleep with one eye open, for he will need looking after. What a blessed thing it is that he has only one more day. Then he can celebrate and be happy. I have no doubt that by the end of another week, he will have brought things up to their old average."

And with this conclusion, the man who a few years before took the first honors at Yale, shifted his position, so as to keep an eye on his comrade,

and straightway proceeded to drop into a sound slumber, which was not broken until the sun rose on the following morning.

The sympathy for Wade was general. Had he not insisted upon carrying out in spirit and letter the full punishment pronounced upon him, there would have been a unanimous agreement to commute his term by one or two days at least; but all knew the grit or “sand” of the fellow too well to propose it.

His actions on the seventh day caused considerable disquietude. He had labored in the mines, in a desultory fashion up to that time, but he did not do a stroke of work during the concluding hours of his ordeal. It was observed by his partner, Budge Isham, that his appetite was unusually good and he seemed to be in high spirits. His friends attributed this to the closeness of his reward for his abstention, but he took several walks up the mountain side and was gone for a good while. He wore a smiling face and Vose Adams declared that he overheard him communing with himself, when he thought he was too far off for the act to be noticed.

“No use of talkin’,” whispered Vose; “Wade ain’t quite himself; he’s a little off and won’t be exactly right till after two or three days.”

“He has my sympathy,” remarked the parson, “but it will serve as a lesson which he will always remember.”

“And won’t we remember it?” said Ike Hoe, with a shudder. “When we’re disposed to say one of them unproper words, the picture of that miserable scamp going a full week without a touch of Mountain Dew, will freeze up our lips closer than a clam.”

That night the usual group was gathered at the Heavenly Bower. There were the same merry jests, the reminiscences, the conjectures how certain diggings would pan out, the small talk and the general good feeling. Common hardship and suffering had brought these rough men close to one another. They were indulgent and charitable and each one would have eagerly risked his life for the sake of the rest. Quick to anger, they were equally quick to forgive, mutually rejoicing in good fortune, and mutually sympathetic in sorrow.

There was more than one furtive glance at Ruggles, who was among the first arrivals. Whispers had passed around of his strange actions, and the surprise would not have been great had it been found that he had gone clean

daft; but nothing in his manner indicated anything of that nature. He was as full of quip and jest as ever, and none was in higher or more buoyant spirits than he.

He suddenly called:

“Dawson, what time is it?”

The latest comer among them carried a watch which he drew out and examined.

“It is exactly half-past nine.”

“When did my punishment begin?”

“A week ago to-night, precisely at this hour; I began to fear that you had forgotten it.”

“No danger of my ever forgetting it,” grimly responded Ruggles; “what I want to know is whether I have served out my full term.”

“You have unquestionably.”

“Is there anyone here disposed to dispute this statement?” asked Wade, standing very erect and looking around in the faces of his friends.

No one interposed an objection. He had not only the sympathy but the respect of every one.

“You sarved your time like a man,” remarked Ike Hoe; “the week is up and you’ve give good measure.”

“Which the same being the case, I invite all to come forward and liquidate.”

Never was an invitation responded to with more enthusiasm. The grinning Ortigies set out a couple of bottles, intending as a matter of course to join in the celebration. He feelingly remarked:

“Wade, my heart bled for you and thar ain’t a pard here that wouldn’t have been willing to take your place—that is for a limited time,” the landlord hastened to add.

Each tumbler was half-filled with the fiery stuff and all looked in smiling expectancy at their host to give the cue. He poured a small quantity into his glass, and elevating it almost to a level with his lips, looked over the top.

“Are you ready, pards? here goes.”

Up went every glass and down went the stuff. But there was one exception.⁶⁵ While the glass was at his lips, and while the familiar odor was in his nostrils, Wade Ruggles deliberately inverted the tumbler and emptied the contents on the floor.

It was the strangest incident that had ever occurred in New Constantinople.

CHAPTER VI

TEACHER AND PUPIL

The group looked at Wade Ruggles in breathless amazement. He had invited them to the bar to join in celebrating his release from thralldom; all had filled their glasses and he had raised his own to his lips, though several noticed that there was only a small amount of liquid in the tumbler. Then, when every glass was upraised and there was a general gurgling, he had turned his glass upside down and spilled every drop on the floor.

Before anyone could think of suitable terms in which to express his emotions, Wade said, with a smile that rather added than detracted from his seriousness:

“Pards, never again does a drop of that stuff go down my throat! I’ve suffered hell, but I’ve come out of the flames, and the one that fetched me through is the little gal which lays asleep in the next room.”

He did not attempt to deliver a temperance lecture to his friends, nor did they trifle with him. They questioned him closely as to how he had reached this extraordinary decision, and he gave a vivid and truthful account of his experience. It made several of the men thoughtful, but most of them felt dubious about his persistence in the new path he had laid out for himself.

“You know, boys, whether I’ve got a will of my own,” he quietly replied; “just wait and see how this thing comes out.”

It was noticed that Parson Brush was the most interested inquirer, and, though he had comparatively little to say, he left the Bower unusually early. He had begun his system of instruction with Nellie Dawson, and reported that she was making remarkably good progress. Had the contrary been the fact, it may be doubted whether it would have been safe for him to proclaim it.

And now the scene changes. It is the close of a radiant summer day in the Sierras. Far down in the cañon-like chasm between the mountainous spurs,

nestled the little mining settlement, which had been christened but a short time before, New Constantinople. Here and there tiny wounds had been gouged into the ribs of the mountain walls, and the miners were pecking away with pick and shovel, deepening the hurts in their quest for the yellow atoms or dark ore which had been the means of bringing every man thousands of miles to the spot.

Far up toward the clouds were the towering, craggy peaks, with many a rent and yawn and table-land and lesser elevation, until, as if to check the climbing ambition of the prodigious monster, nature had flung an immense blanket of snow, whose ragged and torn edges lapped far down the sides of the crests. Ages ago the chilling blanket was tucked around the mountain tops, there to remain through the long stretch of centuries to follow.

Down the valley, at the bottom of the winding cañon, the air palpitated with the fervor of the torrid zone. He who attempted to plod forward panted and perspired, but a little way up the mountain side, the cool breath crept downward from the regions of perpetual ice and snow, through the balsamic pines and cedars, with a revivifying power that was grateful to all who felt its life-giving embrace.

The sun hovered in a sky of unclouded azure. It shot its arrows into the gullies, ravines and gorges, but made no impression on the frozen covering far up in cloudland itself. Long pointed ravelings on the lower edge of the mantle showed where some of the snow had turned to water, which changed again to ice, when the sun dipped below the horizon.

The miners were pigmies as they toiled in the sides of the towering mountain walls, where they had toiled for many a day. On the lip of a projecting crag, half a mile above were three other pigmies, who neither toiled nor spun. Viewed through a glass, it was seen that they wore stained feathers in their black hair dangling about their shoulders, with the blankets wrapped round their forms descending to their moccasined feet. They were watching in grim silence these proofs of the invasion of their homes by the children of another race, and mayhap were conjuring some scheme for driving them back into the great sea across which they had sailed to occupy the new land.

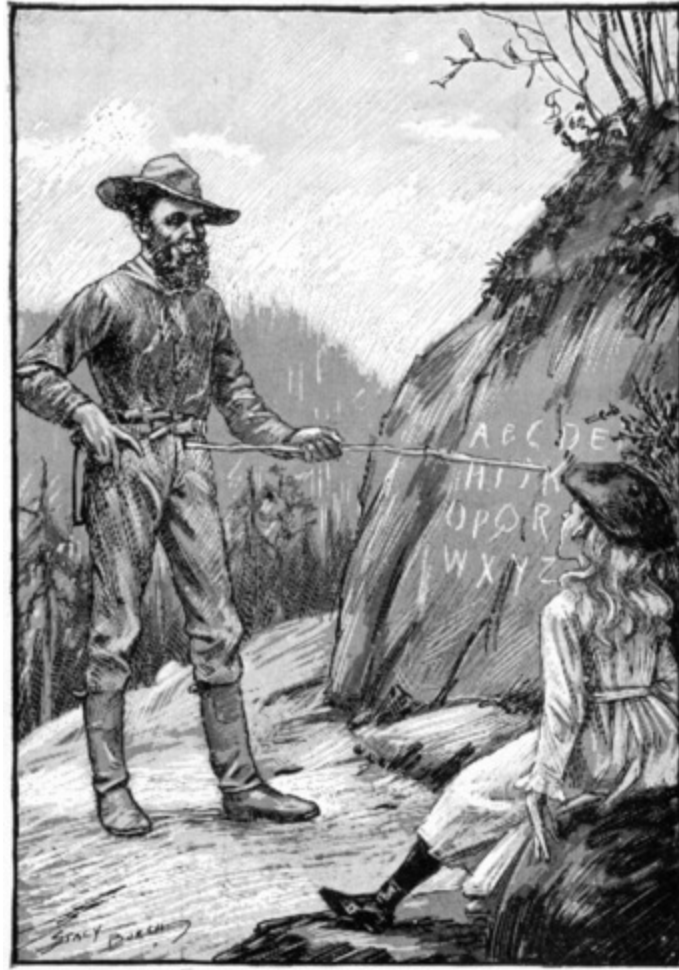
One of the Indians was a chieftain. He had come in violent contact with these hated creatures and he bore on his person the scars of such meeting.

All carried bows and arrows, though others of their tribe had learned the use of the deadly firearms, which has played such havoc with the American race.

Suddenly the chief uttered an exclamation. Then drawing an arrow from the quiver over his shoulder, he fitted it to the string of his long bow, and pointing downward toward the group of miners, launched the shaft. Except for the power of gravity, it would have been a foolhardy effort, but guided by the wisp of feather twisted around the reed, the missile spun far outward over the cañon, and dived through the vast reach of space, as if it were endowed with life and determined to seek out and pierce the intruders. The black eyes of the three warriors followed the arrow until it was only a flickering speck, far below them; but, before that moment arrived, they saw that it was speeding wide of the mark. When at last, the sharp point struck the flinty rock, and the missile doubled over upon itself and dropped harmlessly to the bottom of the cañon, it was at such a distance from the miners, that they knew nothing of it. They never looked up, nor were they aware of the futile anger of the red men, who seeing how useless was everything of that nature, turned about and soon passed from view.

The incident was typical of the futility of the red man struggling against his inevitable doom at the hands of his white brother.

Half way between the bottom of the cañon and the lower fringe of the vast mantle of snow, a waterfall tumbled over the edge of a rock, and with many a twist and eddy found its way to the small stream, which rippled along the bottom of the gorge, until its winding course carried it beyond sight. Now and then a rift of wind blew aside some of the foam, like a wisp of snow, and brought the murmur more clearly to the ear of the listener, shutting out for the time, the faint hollow roar that was wafted from the region of pines and cedars. It was a picture of lonely grandeur and desolation, made all the more impressive by the tiny bits of life, showing in the few spots along the mountain wall.



THE TEACHER HAD MARKED ON THE DARK FACE OF THE ROCK WITH A SPECIES OF CHALK ALL THE LETTERS OF THE ALPHABET.—PAGE 71.

At the rear of the row of cabins, and elevated perhaps fifty feet above, was the comparatively smooth face of a rock, several square rods in extent. At the base was abundant footing for two persons, Parson Brush and Nellie Dawson. The teacher had marked on the dark face of the rock with a species of chalk, all the letters large and small of the alphabet. They were well drawn, for the parson, like others in the settlement, was a man of education, though his many years of roughing it had greatly rusted his book knowledge.

Standing to one side of his artistic work, like a teacher of the olden time, the parson, with a long, trimmed branch in his hand, pointed at the different letters in turn and patiently waited for his little pupil to pronounce their names.

It never would have done to make the child keep her feet like an ordinary mortal. With great labor, three of the miners had carried a stone of considerable size to the spot, which served her as a seat, while receiving instruction. It is true that she never sat still for more than three minutes at a time, but that was enough to establish the indispensable necessity of a chair.

“You are doing very well, my dear,” said the parson, encouragingly; “you have received only a few lessons, but have mastered the alphabet. I notice that the ‘d’s’ and ‘b’s’ and ‘h’s’ and ‘q’s’ puzzle you a little now and then, but you have got them straight, and it is now time that we took a lesson in spelling.”

“Oh, I can’t do that, Mr. Brush,” protested the queen, rising from the chair, adjusting her skirts and sitting down again; “I never can spell.”

“What is it to spell?”

“I don’t know; what is it?”

“I can best answer your question by showing you. Have you ever seen a cat?”

“Do you mean a pussy?”

“Yes; some folks call it that.”

“Oh, yes; when we came from where we used to live,—I guess it must have been three or four hundred years ago, we brought my pussy along. Her name was Nellie, the same as mine.”

“What became of her?”

“She died,” was the sorrowful reply; “I guess she was homesick.”

“That was too bad. Now will you tell me what letter that is?”

“Why, Mr. Brush, don’t you know?”

“Yes, but I wish to find out whether you know.”

“It is C; anybody knows that.”

“And this one?”

“A.”

“That is right; now this one?”

“T; I hope you will remember, Mr. Brush, because I don’t like to tell you so often.”

The teacher continued to drill her, skipping about and pointing at the letters so rapidly in turn that he was kept bowing and straightening up like⁷³ a jumping-jack. Then, allowing her to rest, he pronounced the letters in their regular order, giving them the sounds proper to the word itself. Nellie, who was watching closely and listening, suddenly exclaimed with glowing face:

“Why, that’s ‘cat’!”

“Of course; now can you say the letters without looking at them?”

After one or two trials she did it successfully.

“There! you have learned to spell ‘cat.’ You see how easy it is.”

“Does that spell ‘pussy’ too?”

“No,—only ‘cat.’ After a time you will be able to spell big words.”

“Let me try something else, Mr. Brush.”

The next word tackled was ‘dog,’ which was soon mastered. When this was accomplished, the teacher paused for a moment. He was trying to think of another word of three letters, but oddly enough could not readily do so.

“Ah,” he exclaimed, “here is another. Now give me the name of that letter,”

“D.”

“And that?”

“A.”

“And that?”

“M.”

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“Now say them quickly, ‘d-a-m;’ what is the word?”

“Why, it’s ‘dam’; O, Mr. Brush, I heard you say that is a bad word.”

The teacher was thunderstruck and stammered:

“I didn’t think of that, but there are two kinds of ‘dam’ and this one is not a bad word. It means a bank of earth or stones or wood, that is put up to stop the flow of water.”

CHAPTER VII

PUPIL AND TEACHER

Mr. Brush glanced nervously around, to learn whether any of his friends were within hearing, shuddering to think what the consequences might be. He believed that he could explain the matter to some of the folks, but the majority were so radical in their views that they would refuse to admit the distinction, and would take him to task for teaching improper language to his young pupil. It caused him another shudder at the thought that the same penalty that Wade Ruggles had undergone might be visited upon him, though it is doubtful if the issue would have been similar.

“Ahem, Miss Nellie, when we go back home, will you promise me to say nothing about this part of your lesson?”

“You mean 'bout that bad word?”

“Yes,—let’s forget all about it.”

“I’ll try, but mebbe I’ll forget to forget it.”

“Likely enough,” gloomily reflected the parson; “suppose we try some other words. Ah, we have a visitor.”

At that moment Budge Isham climbed into view and sauntered smilingly toward them. Brush added a whispered warning to the little one not to forget her promise, though, since Isham was an educated man, there ought not to have been anything to fear in his case, but the teacher knew his waggish nature, and had good reason to fear the mischief he would delight in creating.

“Good day,” was his cheery greeting, as he came up; “I hope I am not intruding, but I thought I should like to see how you are getting on, Nellie.”

“Oh, Mr. Brush says I am learning real fast; I can spell ‘cat,’ and ‘dog,’ and ‘dam.’”

Budge raised his hands in horror.

“What in the name of heaven, parson, does she mean?”

“Mr. Isham,” said the gentleman, severely, “are you aware that you are using improper language in the presence of this young lady?”

“Explain yourself.”

“It is wrong for you to appeal to heaven on so trifling a question; it is such a near approach to profanity that the dividing line is imperceptible. I am sorry you forgot yourself, but I will overlook it this time.”

Budge was really frightened, for though the distinction was quite fine, he felt there was some justice in the position of the parson, but he bluffed it out.

“I doubt whether a jury would find me guilty, and in the meantime explain the remark just made by Nellie, if you please.”

Thus cornered, the parson made a clean breast of it. Isham assumed a grave expression.

“The only criticism I can make is upon your taste in selecting a word, susceptible of a questionable meaning. You know as well as I that if this should be submitted to a jury at the Heavenly Bower this evening, the majority would sit down on you, and it would be hard work for you to escape the penalty.”

“I’m afraid it would,” responded the parson; “it was a piece of forgetfulness on my part——”

“Which is the plea that Bidwell and Ruggles made, but it didn’t answer. However, I’ll say nothing about it, knowing you will be more careful in the future, while I shall not forget to put a bridle on my own tongue. The trouble, however,” he added with a smile, “is to make *her* overlook it.”

“She has promised she will do so.”

“Since that promise was made just before I got here, she has shown how readily she can forget it.”

“I will give her a longer lesson than usual and thus drive all remembrance out of her mind,” said the parson resolutely.

Budge Isham folded his arms, prepared to look on and listen, but the queen of the proceedings checked it all by an unexpected veto.

“Mr. Brush, I feel so tired.”

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Her face wore a bored expression and she looked wistfully away from the blackboard toward the cabins below them.

“Does your head hurt you?” inquired the teacher with much solicitude, while the single auditor was ready to join in the protest.

“No, but mebbe it will hurt me one of these days.”

“It isn’t wise, parson, to force the child; a great deal of injury is done to children by cramming their heads with useless knowledge.”

The teacher could not feel sure that this counsel was disinterested, for there could be no danger of his taxing the mental powers of the little one too severely, but her protest could not pass unheeded.

“You have done very well, my child; you are learning fast, so we’ll leave the spelling for to-morrow. Suppose we now try the commandments: can you repeat the first one?”

Nellie gave it correctly, as she did with slight assistance, the remaining ones. She was certainly gifted with a remarkable memory and possessed an unusually bright mind. Budge Isham was impressed by her repetition of the decalogue, whose meaning she was unable fully to grasp. His frivolous disposition vanished, as he looked upon the innocent child and watched the lips from which the sacred words flowed. He quietly decided that it would be inexcusably mean to seek any amusement at the expense of the parson, and it may as well be added that he never afterward referred to the incident, while it seemed to have passed wholly from the mind of Nellie herself. At the conclusion of the lesson, Budge complimented teacher and pupil and said he would be glad to certify that Mr. Brush was the best teacher in New Constantinople, and that it was impossible for any one to take his place. Then he bade them good day and walked thoughtfully away, leaving them once more to themselves.

These were the most precious moments of all to the teacher, when the formal lesson was completed, and he sat down for a little talk with his pupil. He occupied the stone which served her for a seat, while one arm

loosely clasped the figure which stood between his knees. She patted his cheek, played with his rough collar and shaggy whiskers, while as he listened and replied to her prattle, felt as never before the truth of the declaration that of such is the kingdom of heaven.

“Mr. Brush,” she finally said, “do you know why I love you?”

“I suppose it must be because I am so handsome,” he replied with a smile.

“No; it isn’t that, for you *ain’t* handsome.”

“Whew! but you are not afraid to speak the truth, little one, and I hope you will always do that. No; I don’t know why you love me, unless you are ^{so} good yourself that you can’t help it.”

This was not exactly clear to the little one, and she stood silent for a minute, gently fingering his long beard. Then she thought it best to clear up the mystery without further parley.

“I love you ’cause you’re good.”

Even though the avowal was delightful, it caused a pang, like a knife-thrust from his accusing conscience.

“I am thankful to hear you say that, but, Nellie, I am not good.”

“Yes, you is, but if you ain’t good, why ain’t you good?”

The logic of the reply of the adult was of the same grade as that of the child.

“I suppose the true reason is because I am bad. I am sorry to say it, but I have drifted far away from where I ought to be.”

The dimpled hand continued to fondle the whiskers, and the little brain was busy, but a wisdom that was more than human guided it. Turning those lustrous blue eyes upon him she softly asked:

“Will you do what I ask you?”

He almost gasped, for he instinctively suspected what was coming, but he answered without hesitation:

“If it is my power I will do it, though it kills me.”

“Oh, I don’t want it to kill you; this won’t hurt you; will you do it, Mr. Brush?”

“Yes, God helping me.”

“Do like Mr. Ruggles.”

“How’s that?” asked the parson with a sinking heart.

“Don’t drink any more of that red water, which makes men talk loud and sometimes say bad words.”

“Heavens!” thought the parson; “she little dreams what she is asking me, but it is not she but some One who is thus calling me back to duty. Yes, my child, I will do what you ask.”

“You is as good and nice as you can be now, but then you will be a good deal gooder and nicer,” said she, warmly kissing him.

“I hope so,” he added, rising to his feet, with the feeling that he was not himself but some one else, and that that some one else was the young man away among the distant hills of Missouri, before he wandered to the West, and in doing so, wandered from the path along which he had attempted to guide and lead others.

“I call myself her teacher,” he mused, as he reached down and took the tiny hand in his own, “but she is the teacher and I am the pupil.”

They had started in the direction of the cabins, when they heard curious shouts and outcries in that direction. “There’s something strange going on down there,” he said, peering toward the point; “I wonder what it can be; let us hurry and find out.”

Firmly clasping her hand, the two hastened down the incline, wondering what it was that caused all the noise and confusion.

CHAPTER VIII

THE PASSING YEARS

THE excitement in New Constantinople was caused by the arrival of Vose Adams, the mail carrier and messenger, with his budget of letters and freight for the Heavenly Bower.

These periodical journeys never occupied less than two weeks, and in the present instance he had been absent several days beyond that period, so that some anxiety was felt for him, since every trip was attended with more or less danger. He was exposed to the peril of storms, snowslides, wild animals and hostile Indians. The elemental disturbances in the Sierras are sometimes of a terrific nature. Twice he had lost a mule, and once both animals went spinning down a precipice for a thousand feet, in an avalanche of snow and were never found again. Vose's only consolation in the last instance was that it occurred when on his way to Sacramento, while in the former case he saved one of the precious kegs, which he insisted was the means of saving him in turn from perishing in the Arctic temperature.

The shadowy trail wound in and out among the gorges and cañons, beside towering mountain walls, at a dizzying elevation, over ridges above the snow line, across table lands, through forests of pine and cedar and tumultuous mountain torrents, where he took his life in his hands every time he made the venture.

The unerring marksmanship of Vose and his alertness reduced the danger from the fierce grizzly bears and ravening mountain wolves to the minimum, but the red men were an ever present peril. He had served as the target of many a whizzing arrow and stealthy rifle shot, but thus far had emerged with only a few insignificant hurts. He was ready at the stated times to set out on his journey, and appeared indeed to welcome the change in the existence which otherwise became tiresome and monotonous. It mattered not that his friends often intimated that he was starting on his last venture of that nature, for he believed that his "time" had been set and it mattered naught what he did, since it could not be changed.

Vose explained that the cause of his last delay was the old one—Indians. They had pursued and pestered him so persistently that he was compelled to hunt out a new trail, longer and more difficult than the old one, and which came within a hair of landing him into the very camp of his enemies. However, everything had turned out well, and he brought with him the most prized cargo that ever arrived in New Constantinople.

First of all, were the two casks of freight, which had suffered so slight leakage, that Landlord Ortigies complimented the vigilance of the messenger. Then he brought with him fully a hundred letters and newspapers. Each citizen received one, and many had several. In every instance, the grateful recipient paid Vose a dollar for his mail, so that the reward was generous, including as it did a liberal honorarium from the proprietor of the Heavenly Bower.

In addition to the mail and freight, there were a number of articles to which no special reference is needed. In one package, however, every one was deeply interested, and Nellie Dawson more than the others. Unknown to the father, a goodly sum had been entrusted to Adams, with which to purchase such articles as it was believed the child needed. These included material for numerous new dresses of gorgeous pattern, stockings, shoes, slippers, ribbons, hats and even gloves, trinkets and playthings beyond enumeration.

When these were spread out before the little one, she clapped her hands and danced with delight. She had never dreamed of or seen such bewildering wealth, and the miners were repaid a hundred fold, while the grateful parent thanked them for their thoughtful kindness.

With no other person of her sex in the settlement, it would naturally be thought that she lacked in many of the little attentions which only a mother or adult female friend can give, but such was not the case. There was not⁸⁶ a man among them all, who had not been taught in the hard school of necessity to become his own tailor and conservator of clothing. Many had natural taste, and had not wholly forgotten the education and training received in the homes of civilization, before they became adventurers and wanderers. A consensus of views, all moved by the same gentle impulse, resulted in Nellie Dawson being clothed in a garb which would hardly have caused criticism in the metropolis of our country. Not only that, but she was abundantly provided against all kinds of weather, and with Vose Adams

making his regular trips westward, there was no possibility of her ever knowing the want of thoughtful care.

The education of the little one was never neglected. Enough has been told to show her brightness, and even had not her teacher been inspired by his affection for the little one, the task of imparting knowledge to such an apt pupil must have been a constant pleasure. This work, as we have shown, fell by common consent to the parson, Felix Brush, though his choice at first was not unanimous. Wade Ruggles was so insistent that he should have a part in the work, that he was allowed a trial, but it cannot be said the result of several days' effort was satisfactory. A stealthy inspection of the blackboard by Budge Isham and the parson disclosed that Ruggles had constructed the alphabet on a system of his own. Some of the letters were reversed, several inverted, while the forms of others prevented any one from identifying them except the teacher himself.

An examination of the pupil developed the same startling originality in Ruggles's system of orthography, which seemed to be a mixture of the phonetic and the prevailing awkward method. Thus he insisted that "purp" was the right way to spell the name of a young dog, whose correct title was "dorg." Ruggles was finally persuaded to resign, though he displayed considerable ill feeling and intimated that the movement was inspired by jealousy of his success.

Budge Isham not only refrained from referring to the slip which the parson made in his spelling lesson, but spoke in such high terms of his success with Nellie, that every one conceded the right teacher had been selected, and it would be a misfortune for any one to assume to take the place of the parson.

Not until the final summing up of all accounts, will the full measure of the influence of the little one be known. It was gentle, subtle, almost imperceptible. Wade Ruggles never broke his resolve not to touch liquor. Inasmuch as an appetite nourished for years, cannot be wholly extirpated in a day, he had his moments of intense yearning for stimulants, when the temptation was powerful, but his will was still more so, and the time came when the terrific thirst vanished entirely, though he knew it was simply "asleep" and could be roused into resistless fury by indulgence in a single glass.

The parson had a severer struggle. After holding out for days, he yielded, and by his inordinate dissipation brought back matters to a fair average. Then he set about manfully to retrieve himself. A second time he fell, and then, thank heaven! he gained the mastery. Henceforward he was safe.

Maurice Dawson himself had been an occasional tippler for years, but he felt the influence of example and experienced no trouble in giving up the habit. Several others did the same, while more tried but “fell by the wayside.”

Landlord Ortigies noticed the diminution in his receipts, but, strange as it may sound, down in his heart he was not sorry. Like nine out of ten engaged in his business he was dissatisfied, and like the same nine out of ten, he longed for the chance to take up some other calling which would bring him bread and butter and no accusing pangs of conscience.

Before the coming of Nellie Dawson, brawls and personal encounters often occurred. The walls of the Heavenly Bower contained several pounds of lead. Blood had been shed, and the history of the settlement showed that three persons had died with their boots on, but those stirring days seemed to have departed forever.

Parson Brush did a good deal of thinking. When through with his pupil, he was accustomed to take long walks into the mountains, his hands clasped behind his back and his head bowed in meditation. It is safe to conclude that Conscience was getting in its work with him.

And so the seasons came and went and the years rolled on. Varick Thomson, an old miner, who had spent years of fruitless toil in the diggings of Australia, lay down and died, and the parson officiated at his funeral. Two other miners grew weary of the poor success in Dead Man’s Gulch and went off on a prospecting tour deeper into the mountains. A year later another prospecting party came upon two skeletons, near a small stream of water, which after careful examination, were pronounced to be those of their former friends, doubtless victims of the ferocity of the red men. Three vagrant miners straggled into New Constantinople one night and were hospitably entertained at the Heavenly Bower. Their appearance was against them, and, when they announced their intention of making their home at Dead Man’s Gulch, the suggestion to them to move on was made in such terms that they acted upon it and were never seen there again. Thus it came

about that New Constantinople, instead of increasing in population and making a bid for the chieftaincy among the new towns in the West, was actually shrinking in numbers.

And all this time, Nellie Dawson was growing fast. Her beautiful mind kept pace with the expansion of her body. Her natural grace and perfection of figure would have roused admiration anywhere. Her innocence and goodness were an ever present benison to the rough miners, who had long since learned to check the hasty word, to restrain the rising temper and to crush the wrongful thought in her presence.

After a time, Maurice Dawson took possession of one of the deserted cabins which he fitted up, or rather the community fitted up the principal apartment for the young queen, whose rule was supreme. No one else was permitted to share the building with them, though visitors were constant and Nellie herself continually passed to and fro among her friends.

But those who watched Dawson saw that a change had come over him. Formerly there was a quiet waggery in his nature, much like that of Budge Isham, which led him to enjoy the rough pleasantries of his companions, though he rarely took part in them, except as an inciting cause. One of his greatest pleasures had been to sit in the Heavenly Bower and exchange reminiscences with his friends, but all that came to an end. Night after night passed without his face being seen in the place. Those who called at the cabin were treated hospitably, but he was reserved and moody, and often failed to hear the words addressed to him. It was evident that there was something on his mind, though he showed no disposition to make a confidant of any one.

CHAPTER IX

THE CLOUD OF WAR

“I KNOW the cause of Dawson’s trouble,” remarked Vose Adams, late one night at the Heavenly Bower.

“What is it?” asked Wade Ruggles, while the rest listened intently.

“On my last trip to Sacramento, two months ago, I brought him a thick letter: that’s what is raising the mischief with him.”

“But what was in the letter to make him act so queer?”

“How should I know? do you expect me to open and read all the letters I bring through the mountains?”

“Bein’ as you couldn’t read the big letters the parson has painted on the side of the rock a foot high,” said Al Bidwell sarcastically, “there ain’t much danger of your doin’ that, which the same is lucky for them as gits love letters like myself regular by each mail.”

“Which the same you won’t git any more onless you sling your remarks a little more keerful,” warned the mail carrier.

“And the same being that you can’t read the directions writ onto them,⁹³ I don’t see how you’re going to help yourself.”

“The postmaster at Sacramento is very obligin’,” was the significant comment of Vose.

Bidwell saw the dangerous ground on which he was treading, and made it safe by a jesting remark and an invitation to Adams and the rest to join him at the bar.

“We was on the subject of Dawson,” remarked Ruggles from his seat, for all had learned long before of the uselessness of inviting him to drink; “and it’s the opinion of Vose, I understand, that it was the letter that has made the change in him.”

“There ain’t any doubt about it,” said Adams; “fur the attack took him right after; I noticed the difference in him the next day. He sets by himself these evenings after the little gal has gone to bed, smoking his pipe, without any light in his shanty, and thinking hard.”

Wade smoked thoughtfully a minute and then remarked:

“I wonder whether it wouldn’t be a good idee to app’int a committee to wait on Dawson and ask him what the blazes is the matter and whether we can’t do nothin’ to make a man of him agin.”

Since Ruggles had become accustomed to act as chairman at the discussions in the Heavenly Bower, he had developed a strong faith in committees.

“That’s a piece of the most onspeakable foolishness that I’ve run agin¹⁸⁴ since I settled in New Constantinople,” observed the landlord with a contemptuous sniff; “the minute the committee arrove and stated their bus’ness, Dawson would kick ’em out of his shanty and clean across the street, and he’d be lacking in the instincts of a man if he didn’t do that same thing.”

“Mr. Ortigies forgits that I didn’t mean to suggest that *he* was to be a member of the committee; I meant they should be *gentlemen*; consequently that bars him out and there wouldn’t be no trouble.”

“I understand your sarcasm, Wade, but your words would leave you off the committee likewise; but may I ask what the members would ask him when they knocked at his door?”

“Any gentleman wouldn’t be at a loss what to say, fur he would only hev to remark sorter careless like that he had observed the man was acting so queer that we was afeard he was troubled with remorse over some crime he’d committed, and about which he had got notice that the officers was lookin’ fur him, but that if he’d trust us and give a description of the officers, so there wouldn’t be any mistake, we’d watch fur ’em up the trail and pick ’em off afore they could profane New Constantinople with their presence.”

This was a prodigious sentence for Wade, and he leaned back and smoked his pipe with considerable self-complacency, but it impressed none of his hearers as he expected. Parson Brush shook his head.

“It isn’t a very wise way of introducing yourself to a man by assuming that he is a fugitive from justice. In the first place, I am sure there is nothing of the kind in the case of Dawson. He has probably heard some news from the East that troubles him.”

“That’s just what I was sayin’,” broke in Ruggles.

“But not of the nature intimated by you.”

“What else can it be?”

“It might be one of a dozen things; I know you are all wrong in your guesses.”

Every eye was fixed upon the parson, for all were anxious to learn at what he was hinting. His face was unusually grave, but he stopped speaking, as if he deemed it indiscreet to say anything more. He noticed the looks and whetted the curiosity by adding:

“I have been so disturbed over the change in Dawson that I called on him last night and had a talk with him.”

“And what did you learn?” asked Budge Isham, the moment Brush showed an inclination to stop talking.

“Well, it was hard work to draw him out, but finally he told me he had received a letter from the East, which made him think he would have to leave us. That isn’t the worst.”

All were breathless, afraid to give utterance to the dread that until then was vague and indistinct in their minds.

“He thinks he must take his daughter Nellie with him.”

“What! Take her away from us? That can never be allowed.”

None felt the anguish of the announcement keener than the man who made it, but he looked calmly into the angry faces and said:

“You forget, my friends, that she is his child and he has the moral and legal right to do what he thinks is best for her.”

“But where are *our* rights?” demanded Wade Ruggles; “they mustn’t be forgot.”

“We haven’t any,—not a single one. But I am satisfied that one cause of Dawson’s distress of mind is the very question you have asked. He can never cease to be deeply grateful to all of us for what we have done for him and his child. He doesn’t wish to take her away for it will be as painful to her as to us. But friends,” continued the parson, with a sense of right that was creditable to him, “Dawson’s first duty is to his child. She is now twelve years old, quite a large girl and is growing fast. She has never seen girl or woman since she was brought here; she will soon be a young woman; she requires association with others of her own sex; her welfare demands this; her education and proper training can never be obtained in this mining settlement.”

“Eddycation!” exclaimed Vose Adams; “what have you been doing with her all this time? She must be as far along in her studies and eddycation as me and Ruggles.”

“It is to be hoped so,” replied the parson with a smile; “I doubt whether she will meet any one of her age as proficient in book learning as herself, but there remains music, etiquette, and above all, the social customs and accomplishments which can be acquired nowhere except in the abode of civilization. There is none upon whom this blow will fall more heavily than myself, but I have no right to interpose when a man is doing his duty.”

An exploding bomb could not have caused more consternation than the news brought by the parson. Every one felt the truth of his words and respected him for their utterance, but it was like asking them to consent to the blotting of the sun from the heavens.

“I see a way out of it,” finally remarked Wade Ruggles with a brightening face; “we can compermise.”

“In what way?”

“Why, if Dawson feels that he and the gal must go, let him split the difference atween us; he can go and leave her; that will satisfy everybody.”

“It will hardly satisfy him, since the whole question is that of taking her with him. He must be left free to do whatever he chooses.”

The parson looked into the gloomy faces turned toward him.

“Boys, you have all heard the news brought by the last papers. Fort Sumter has been fired on; President Lincoln has called for volunteers; the Southern Confederacy has been declared and civil war has begun. It is the intention of Dawson to offer his services to the cause of the Union.”

“And I shall enlist too,” declared Wade Ruggles, compressing his lips, “but it will be on the other side.”

“I’m with you,” added Budge Isham; “I am from Alabama, and if she secedes, as she is sure to do, I am ready to lay down my life in her defence.”

“Sorry, pards, but that shoves me into the Union army,” remarked Al Bidwell, puffing quietly at his pipe; “we must keep the balance right, but we’ll part friends here and we’ll be friends till we shoulder our muskets. Then we’ll do all we can to kill each other.”

Further discussion disclosed that the citizens of New Constantinople were about equally divided in their allegiance, but all of them were not yet ready to take up arms in support of the cause with which they sympathized. There were eight who announced their intention of making their way to San Francisco, there to find the most available route to the points necessary to reach. It was typical of that stupendous struggle, the greatest of modern times, that four of these recruits were ardent supporters of one cause and four equally eager to risk their lives for the other. They were the warmest of friends and had been for years, willing to face any danger for the sake of the remainder. It would be the same until they parted, and then, as one of them had already expressed it, they would devote every energy to trying to kill one another.

None of the volunteers faltered until Maurice Dawson decided to leave his daughter at the settlement until his return, if so be he should be permitted to return. He knew of no better or safer place for her, nor of any friends to whose care he would more cheerfully commit her, in case it should be his lot to fall on the field of battle.

It had been Parson Brush's intention to be Dawson's comrade in his perils, but when the father begged him to stay behind to look after his child he consented. And so the programme, so fraught with momentous consequences, was arranged.

CHAPTER X

THE BLUE AND THE GRAY

The four years of stupendous war came to an end. The sun of the Southern Confederacy went down in gloom and defeat behind the hills of Appomattox, never to rise again, and blessed peace brooded over a reunited nation, which shall endure through the coming ages to the end of time.

It was only the faint echoes of the mighty struggle that, faintly reverberating across prairie and mountain, reached the little mining settlement nestling among the solitudes of the Sierras. Vose Adams made more frequent journeys to Sacramento, in order to gather news of the terrific events, which were making history at an appalling rate. Upon his return, the miners gathered round Parson Brush, or some other one with a good voice, who stood up, with every eye centred on him and every ear keyed to the highest point and they listened with breathless interest until the thrilling story was read through to the end.

The same diversity of sentiment that appeared at first continued to the last, but the parson's earnest words and his insistence that no quarrels should take place among the neighbors prevented any outbreak, though more than once the point was perilously near.

"If your sympathies are with the Union or with the South," he said impressively, "there is nothing to prevent your taking up arms, but it must be on the battle field and not here."

And this wise counsel prevailed. Now and then some ardent partisan shouldered his rifle, bade his friends a hasty good-by and hurried away. One by one, they went until the new recruits numbered five. Thus the population of New Constantinople dwindled to about one-half, and retaining its exclusive tastes, permitted no new comers to join them, so that the boom which in its early days was so confidently looked for sank to zero and vanished. In truth it looked as if New Constantinople was doomed to die of dry rot.

Strange news came now and then from the men who had gone to the war. Maurice Dawson wrote often to his daughter Nellie, whose letters, it can well be understood were the bright spots in his life of adventure and danger. She had improved wonderfully under the careful tuition of Parson Brush, who, gaining experience, as he saw the brightness of her mind, found his work of the most pleasant nature conceivable. She displayed a thirst for knowledge and made advances which astonished him. The books needed for her instruction were procured by Vose Adams in Sacramento, and she valued such presents more than anything else. The teacher declared many a time, with a certain pride, that she put him upon his mettle to make clear the abstruse problems with which he wrestled when in college.

“How she will surprise the boys and her father when they come back,” reflected the parson; “it won’t take her much longer to reach the point beyond which I cannot lead her.”

To her friends who remained, the growth and improvement of the girl were astonishing. Probably no one of her sex ever gave nature itself a better chance to show what she can do with a healthy frame, when untrammelled by the fashions and requirements of modern usages. Her lithe, comely figure was perfect. She never knew an hour’s illness. The cheeks had the rose tint of health, the eyes were clear, the teeth perfect and her spirits buoyant. As one of the men expressed it, she was like a burst of sunshine in the settlement.

But Parson Brush was thoughtful. He saw that she was crossing the line into young womanhood, and that her own interests demanded that she should go out into the world of which he had told her so much; that she should meet those of her own sex and learn the mysteries of her own being. The affection of her friends could not make up for this lack. It cost the honest fellow many a pang when he thought of this, but his consolation lay in the inevitable conclusion that nothing could be done until the return of her parent or until his wishes were made known.

“If it so happens that he shall fall in battle, then a grave problem must be met. It will not do for her to remain here; I will talk it over with the others and we shall make some arrangement for her good,” and with this conclusion he was content to await the issue of events.

Occasionally the parson received a letter from the father. The missives were models in their way, telling of his experiences in the service of the battles, of the prospect of victory and his faith in the final triumph of the great struggle. He thanked the teacher for his interest in his child and assured him that his kindness would never be forgotten by father or daughter.

Vose Adams continued his frequent journeys to Sacramento, for those were stirring times and he was as anxious as his friends for news. Always on his return he was met by Nellie some distance down the winding trail, and, as soon as she was in sight, he held up the plump letter for which she yearned, and over which she was made happy beyond expression, and he never failed to carry back with him the reply of the child, who knew how much it cheered the brave soldier in the distant East and South fighting the battles of his country.

For two years and more there was not a break in this correspondence. Dawson must have been a good soldier, for, though he enlisted as a private, he was soon promoted, and before the close of the two years, was a full fledged captain, with the brevet of major. It was about this time that one of his letters gave the story of Gettysburg. In the hell-blast of Pickett's charge two of his old friends, who had left New Constantinople to fight for the South, were riddled, and another, marching at the captain's side, had his head blown off by an exploding shell. Thus in one engagement three of the old residents of the mining settlement were wiped out.

Only once or twice was any news received of Al Bidwell. It was known that Ruggles was with the Army of Northern Virginia, but no tidings came of Budge Isham and Ike Hoe. The continued silence was accepted as almost certain proof of their death, and yet both were well and unharmed.

One day in early summer, two sunburned, shaggy men rode down the mountain side and drew up their horses in front of the Heavenly Bower. They had ridden from the East and had come through many hardships and dangers. One of them wore a partial uniform of blue, while the other was of a faded, butternut tinge. The two had been engaged for years in trying to slay each other, inclusive of their respective friends, but failing in the effort, gave it up when the final surrender took place at Appomattox. Both were from New Constantinople, and they now turned their faces in that direction. Starting from widely separated points their lines of travel converged and

finally joined. When they met, there was a moment of mutual sharp scrutiny, then an exclamation of delight, a fervent handclasp and a moistening of the eyes, as both exclaimed:

“God bless you, old boy! There’s no one in the world I would rather meet than you! Shake again!”

And they did, and henceforward they followed the same trail and “drank from the same canteen.” They shared their rations with each other, and in the regions of the West, where danger lurked in the air, one watched while the other slept, ready to interpose his body as a shield between peril and his comrade.

And what splendid soldiers the Civil War made! How those veterans could fight! What pluck, what coolness, what nerve, what daring they displayed! There was one stormy night beyond the Mississippi, when a band of jayhawkers, believing the two men carried a few hundred dollars, formed a plan for shooting both for the sake of the plunder. There were six of the outlaws at the opening of proceedings, but at the close just half the number was left, and one of them carried away a wound with him, from which he could never recover, while the defenders did not receive a scratch. 106

“When I heard that rebel yell of yours,” remarked the veteran who wore the blue, “it tingled through my veins as it did at Chancellorsville, Antietam and various other scenes of unpleasantness. I couldn’t help sailing in.”

“I didn’t mean to let out the yawp,” returned his companion, “but when the shooting began, it was so like old times I couldn’t help it. It was real enjoyable.”

“Yes,” was the dry response, “but rather more so for us than for the other fellows.”

Three days later a band of Indians concluded to try their hand upon the veterans, but the trouble was that the red men could not get a fair chance. Before they arrived within effective striking distance, the veterans began shooting, and whenever they shot somebody fell. The thing became so monotonous that the hostiles gave it up in disgust and drew off. Thenceforward the old soldiers had comparatively an easy time of it.

And so, after a ride of more than two thousand miles on horseback, these two men entered Dead Man’s Gulch and drew rein in front of the Heavenly

Bower. Their coming caused a sensation, for their looks showed they were veterans of the war and were certain to bring important news. The couple smiled and whispered to each other, for they saw that no one suspected their identity.

Among the wondering group that gathered round was Nellie Dawson. She was profoundly interested, for Vose Adams had made two journeys to and from Sacramento without bringing a letter from her father. Doubtless these men could tell her something, and she stood on the edge of the group, waiting for them to speak and for the opportunity to question them.

“Do you see her?” whispered one of the men.

“Yes; gracious! hasn’t she grown? Why, she was a little girl when we left and now she’s a young woman.”

“Blessed if she isn’t! She wears such long dresses that you can see only the tiny toes of her shoes; we’ve observed a good many purty women since we left these parts, but nothing that could come up to her.”

“You can bet your life! She hasn’t any idee of who we are, nor have the boys, but it looks to me as if the parson is a little suspicious.”

Although the patronage of the Heavenly Bower had shrunk a good deal, Landlord Ortigies was as genial and hospitable as ever. The new arrivals had time only for a few secret comments, when he came forward:

“Strangers, you’re welcome to the best we have, which isn’t anything to boast of; look as if you had rid a good many miles and you must be as tired and thirsty as your animals. If you’ll turn ’em over to Vose Adams, he’ll ’tend to them, and, if you’ll allow me, you shall have a good meal, which before the same, I beg to tender you some distilled home brewed Mountain Dew.”

Thanking the landlord for his offer, the men dismounted and waited outside, while he brought forth two glasses, half-filled with the fiery stuff of the poetical name. One of the men took his and eagerly swallowed it. The other held his aloft, where under the bright sunlight it glowed crimson like blood. With his hand motionless for a moment, he slowly inverted the glass and allowed the liquid to run out on the ground.

“Max, I reckon you haven’t forgot when I done something like that some four years ago,” said the man, turning toward the astonished host.

CHAPTER XI

WAITING

“Wade Ruggles, as I’m alive!” exclaimed the delighted landlord, rushing forward and grasping his hand. Instantly the group closed in, and there was such laughing and handshaking that for a time nothing was clearly distinguished.

“I was suspicious,” remarked the parson; “but, though you both had beards when you went away, these have grown so much that they have greatly altered your appearance.”

He scanned the other man closely, but before the parson had identified him, several others had done so.

“It’s Al Bidwell!”

“Yes,” replied the laughing Ruggles; “that’s the fellow, but I’m sorry to say that since they made a major-general of him, he’s become a reg’lar dude. He doesn’t go out when it rains for fear of soiling his uniform, and the noise of powder makes him sick, so be careful how you handle the delicate fellow.”

“Well, you do not need to be told,” was the hearty response of the parson, “that no one could be more welcome than you; let’s shake hands all around again.”

It was some minutes before the flurry was over, for the delight on both sides was unbounded and the joy of the reunion great.

One member of the group lingered in the background. Her face was flushed with delighted expectancy, but with a coyness unknown in her earlier years, she hesitated on the outer edge of the circle. She could not mingle with the rush and waited until the flurry was over. The men were scarcely less embarrassed than she, and while not appearing to see her, both were watching her every movement. When the time came that the meeting could no longer be delayed, Ruggles walked to her and extended his hand.

“Well, Nellie, aren’t you glad to see me?”

The crinkling of the whiskers at the side of the invisible mouth showed that he was laughing, and indeed his white teeth gleamed through his wealth of beard. Nellie promptly advanced and met him half way.

“Mr. Ruggles, I can’t tell you how glad I am to meet you again.”

He had been asking himself whether it would do to kiss this vision of loveliness. He wished to do so, but was afraid. However, the question was settled by the girl, who, instead of taking the hand, flung her arms about his neck and saluted him fervently, that is as well as she could under the conditions.

Al Bidwell came forward and was received in the same manner. Then, ¹¹⁴as the two men stepped back and looked admiringly at her, she said:

“I can see you are the same and yet those beards make you look different; I love to think of you as you were when you bade us good-by and rode off four years ago.”

“We shall be glad to fix up our faces in the old style,” said Ruggles, while his companion nodded assent. If she had asked them to cut off their heads they would have unhesitatingly agreed to do it.

“No doubt we’ve changed somewhat,” said Bidwell, “but not one half so much as you.”

“As I!” she repeated in astonishment; “why, I am just the same,” and she looked down at her dress, as if seeking the explanation of his remark; “I haven’t changed a bit.”

“Not in goodness and all that sort of thing, but we left a little girl and now I’m blessed if we don’t find a young woman, and yet it’s the same little girl after all.”

The maidenly blush darkened her face and she laughed.

“You couldn’t expect me to stand still all these years.”

“No; though we would have been glad if you had done so.”

The three were standing apart, the others with commendable delicacy ¹¹⁵leaving them to themselves. Nellie laid her arm on the sleeve of Ruggles,

and looking up yearningly in his face she asked:

“Can you give me any news of father?”

“Being as him and me was on different sides, I haven’t seen or heard a thing of him since we parted in San Francisco, but I hope all has gone well with him.”

She turned to Bidwell, who said:

“Me and him was thrown together once or twice and I met him after Gettysburg, where neither of us got a scratch, which is more than tens of thousands of others can say. Then I seen him in front of Petersburg, where we had the same good luck agin, but in the fighting round there we lost track of each other. Are you worried about him, little gal?”

“Very much,” she mournfully replied; “never once did Vose Adams come back from Sacramento without one or two letters from him, but he has now done so twice, and I haven’t heard a word. I fear father is dead; if he is, my heart is broken and I shall die too.”

What could they say to cheer her, for Vose Adams made still another journey westward with the same dismal emptiness of the mail bag, so far as she was concerned. Every one did his utmost to cheer her, but none succeeded. The ground taken was that the parent had set out on his return, but had been hindered by some cause which would be explained when he finally arrived. When not one of the men himself believed the story, how could he hope to make the mourning daughter believe it?

Felix Brush took a different stand from the others. He early settled into the belief that Captain Dawson was dead, and that it was wrong to encourage hope on the part of the child when the disappointment must be more bitter in the end.

“If you are never to see him again in this world,” he said, at the close of a sultry afternoon, as the two were seated on a rocky ledge near the cabin in which she had made her home all alone during her parent’s long absence, “what a blessed memory he leaves behind him! Died on the field of battle, or in camp or hospital, in the service of his country,—what more glorious epitaph can patriot desire?”

“If he is dead then I shall die; I shall pray that I may do so, so that I shall soon see him again.”

“My dear child, you must show some of the courage of your parent and prove that you are a soldier’s daughter. Your blow is a severe one, but it has fallen upon thousands of others, and they have bravely met it. You are young; you have seen nothing of the great world around you—”

“I do not care to see anything of it,” she interrupted with a sigh.

“You will feel different when you have recovered from the blow. It is an amazing world, my dear. The cities and towns; the great ocean; the works of art; the ships and steamboats; the vast structures; the railways; the multitudes of people; the lands beyond the seas, with still more marvelous scenes,—all these will expand like fairy land before you and make you wonder that you ever should have wished to leave such a realm of beauty and miracles while in your youth.”

Nellie sat for some time in silence, and then rose to her feet with a weary sigh. Without speaking, she turned to walk away, but not in the direction of her own home.

“Where are you going?” he asked.

“To look for him,” was her sorrowful reply.

It was what he suspected and feared. He knew she had done the same thing night after night for weeks past, even when the rains fell and the chilling blasts made her shiver with discomfort. He could not interpose, and with the reflection that perhaps it was as well, he turned mournfully aside and walked slowly toward the cabins.

Meanwhile, Nellie Dawson passed beyond the limits of the settlement until all the houses were behind her. She did not sit down, but folding her arms, after gathering her shawl about her, bent her gaze upon the trail, which wound in and out at the bottom of the cañon below, for a fourth of a mile, when a mass of projecting rocks hid it from sight.

Night was closing in. Already the grim walls, thousands of feet in height, were wrapped in gloom, and few eyes beside hers could have traced the devious mule path for more than a hundred yards from where she stood. The clear sky was studded with stars, but the moon had not yet climbed

from behind the towering peaks, which would shut out its light until near the zenith.

The soft murmur of the distant waterfall, the sound of voices behind her, the faint, hollow roar, which always is present in a vast solitude, filled the great space around her and made the stillness grander and more impressive.

All this had been in her ears many a time before, and little heed did she give to it now. Her musings were with that loved one, who had been silent for so many weeks, and for whose coming she longed with an unspeakable longing. She knew the course of the trail so well, though she had never been far over it, that she was aware at what point he must first appear, if he ever appeared, and upon that point she centered her attention.

“Something tells me that when father comes it will be in the night time,” she said; “I know he has tried hard to reach me, and what could it be ^{that} held him back? I will not believe he is dead until—”

Her heart gave a quicker throb, for surely that was a faint sound in the path, though too far off for her to perceive the cause. She could not tell its precise nature, but fancied it was the footfall of some animal. She took several quick steps forward on tiptoe, with head extended, peering and listening, with all her senses at the highest tension.

Hark! she heard it again. Surely it was the noise of hoofs, for it was repeated and the sounds ran into each other as if the animal were trotting or galloping, or mayhap there was more than one of them.

Yes; some one was drawing nigh on the back of horse or mule. There was no mistaking the hoof beats, and in the gloom the figure of an animal and his rider assumed vague form, growing more distinct each moment. Nellie broke into a run, her arms outstretched and her hair flying.

“Father! father! I know it is you! It is I—Nellie, your own Nellie, who has waited so long for you! You have come at last!”

CHAPTER XII

HOME AGAIN

The horseman coming up the trail had assumed definite form. Checking his animal he sat transfixed until the flying girl was beside him. Then he bent forward and in a choking voice, answered:

“Yes, Nellie, it is your father! God be thanked for permitting me to come to you again. And you are Nellie! But how grown!”

Captain Dawson leaned over the side of his horse and, passing his strong arm around the waist of his daughter, lifted her up in front of him. Then he pressed his lips to hers, and half-laughing and half-crying asked:

“Who’s the happier, you or I?”

“You can’t be any happier than I; but, father,” she added in amazement, “where is your other arm?”

“Buried in Southern Virginia as a memento of my work for the Union, but, my dear child, *I* am here; isn’t *that* enough?”

“Yes, bless your heart!” she exclaimed, nestling up to him; “it all seems like a dream, but it *isn’t*, for I can feel you. I am so sorry,” she added, noticing the sleeve pinned to his breast; “how you must have suffered.”

“Nonsense! it isn’t anything to lose an arm; it’s not half so bad as having your head blown off or both legs carried away. After going nearly through the war without a scratch, I caught it just before Appomattox, but thousands were less fortunate and I am thankful.”

“But why did you not write to me and tell me all this? Mr. Brush was sure you were dead, and I know the rest thought so, too, though they didn’t talk that way.”

“I did have a close call; I got the fever while in the hospital and didn’t know so much as my own name for several weeks. Then, when well enough to

write, I concluded to come myself, believing I could keep up with any letter and you would be gladder to see me than to receive anything I might send.”

While these words were passing the steed remained motionless, but Nellie had observed from the first that her parent had a companion.

“Father,” she whispered, “you have some one with you.”

“Yes, my child, I had forgotten it in my delight at meeting you.”

A horseman was sitting as motionless as a statue in the trail behind them, the form of himself and animal clearly outlined in the obscurity. He had not spoken nor stirred since the coming of the girl. The head of the steed was high, but beyond and above it loomed the head and shoulders of the man sitting upright, like an officer of dragoons. The gloom prevented a fair view of his countenance, but Nellie fancied he was of pleasing appearance and wore a mustache.

Captain Dawson turned his head and looked over his shoulder, as if to locate the man.

“That is Lieutenant Russell; he served under me during the latter part of the war; he is my friend, Nellie, for he saved my life. Lieutenant,” added the captain, elevating his voice, “this is my daughter Nellie of whom you heard me speak so often.”

The young officer lifted his cap, the graceful gesture being plainly seen and replied with a pleasant laugh.

“Miss Dawson, I am glad to become acquainted with you and hope I shall soon be favored with a better view.”

“And I hope to see more of the one that was the means of saving my dear father,” she was quick to reply.

“Well, I guess that was equal on both sides, for I should never have reached this place but for him.”

“Father, what is *that*?” abruptly asked Nellie, shrinking closer to him; “have you a bear following you?”

That which caused the startled question was a huge animal, which came slowly forward from the gloom in which he had been enveloped. The horses showed no fear of him, and he sniffed at the skirts of the girl.

“Don’t be alarmed,” replied her father; “you may consider him a lion or tiger or both combined. He is Lieutenant Russell’s dog Timon, one of the biggest, fiercest, but most intelligent and affectionate of his kind. We three are comrades, so you must accept him, too, as your friend.”

The two now gave rein to their horses and within briefer time than would be supposed, every man in New Constantinople knew of the arrival of the couple and had given them right royal welcome. It was the most joyous incident in the history of the little mining settlement. Every one knew of the corroding grief of Nellie Dawson, and there was not a heart that did not go out in sympathy to her. All were gathered around and within the crowded quarters of the Heavenly Bower, where the two men and Nellie ate their happy evening meal. Then the pipes were lighted, and with the girl perched upon her father’s knee, the rest listened to his story, which he summarized, leaving the particulars for a more convenient occasion.

“I am sorry my long silence caused misgiving,” said he looking round in the faces of his friends, “but it could not be very well helped. You have noticed that whereas I left New Constantinople with two arms, I am now one short. As I told Nellie, that happened in the very last days of the war. It was quite a loss, but you have little idea of how soon a man can become accustomed to it. The fact is,” added the soldier, with a grim smile, “things are moving so well with me that I wouldn’t give much to have the old limb back again. I have no doubt General Howard feels the same way.”

“The pruned oak is the strongest,” observed Parson Brush.

“Provided it isn’t pruned too much. With my wound came an attack of fever, which brought me nearer death than I ever was in battle, but I came out of it all and here we are.”

“What route did you take, captain?” asked Wade Ruggles.

“By steamer to the Isthmus, then up the coast to San Francisco. There the lieutenant and I joined a party to Sacramento and each bought a good strong horse. He had brought his dog Timon all the way from Virginia, where he was given to him by an old friend who wore the gray. We were hopeful of meeting Vose Adams in Sacramento, but he had not been there for weeks. Instead of him, whom should we come across but Ike Hoe, who was also

getting ready to start for this place. We three set out nearly ten days ago, but Ike is still in the mountains.”

This was said with so grave a face that all knew what it meant.

“I never heard of the Indians being so troublesome. For three days ¹²³ and nights it was little else than fighting. In the darkness we would steal off and hunt for some new way through the mountains, but it mattered not where we went, for we were sure to run against some of them.”

“How was it that Hoe met his death?” asked the parson.

“It was on the third night. We hadn’t seen a thing of the Indians since the noon halt and were hopeful they had given up the hunt for us. We hadn’t eaten a mouthful for twenty-four hours and were hungry enough to chew our boots. Ike found a place among the rocks, where a camp fire couldn’t be seen for more than a few rods and started a blaze. The lieutenant had brought down an antelope, and if we could get a chance to cook the steak, we were sure of the right kind of a meal. Well, we broiled enough to give each all he wanted. Ike leaned back with a pleasant smile on his face and remarked that it was worth all the risk to get such a feast, when I caught the flicker of something like the dart of a small bird between him and me. Before I could make out what it was, Ike gave a groan, and rolling over backward, never spoke or stirred. I saw the feathered end of an arrow sticking up above his breast. The head had gone clean through him and it must have split his heart in two.”

“But was neither you or the lieutenant harmed?”

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“That is the remarkable part of it. The lieutenant saw the arrow before I did and warned me. We darted back in the darkness with our guns ready, but saw and heard nothing more of the Indians. What was remarkable about it was that only the single arrow should have been launched at Ike.”

“It looks as if there was but the single Injin,” suggested Bidwell.

“That is the way we interpreted it.”

“And that was the end of your troubles with the Indians?”

“Not quite, but they bothered us only once more and then they managed to get us into a corner, where it would have been the last of me had it not been for the lieutenant and Timon. I tell you——”

The captain stopped short and smiled. He had seen the protesting expression on the face of the young officer, and said:

“We’ll keep that story till some time when he isn’t present. But there is another fact which I observed. There are more white men in the mountains than ever before and the numbers will increase. The close of the war has released nearly a million soldiers, who must make a living somehow. Some will come westward. You have preserved this place as an exclusive residence for yourselves, but you won’t be able to do it much longer.” 124

All saw the truth of these words, and knew trouble would inevitably follow the mingling of uncongenial spirits, but they concluded it would be time enough to meet it when it came, without allowing the fear to disturb the pleasure of the present communion. Lieutenant Fred Russell could not fail to be an individual of keen interest to those who had never before seen him. While the captain was talking, he sat modestly in the background, smoking his brierwood, listening as intently as if everything said was new to him. It was noticed that like several of the rest, he did not drink at the bar, though he received numerous invitations. Truth to tell, he had been quite a drinker, but during that eventful journey through the mountains, when Captain Dawson was talking of his daughter, as he loved to do, he named those who had reformed as the result of Nellie’s influence. The young officer made no comment, but it struck him that if those rough, hardy men could abstain, it ought not to be difficult for him to do the same, and he did it.

Few men were more prepossessing than the lieutenant. He was educated, about twenty-four years of age, and undeniably handsome. His campaigns of exposure, hardship and fighting had hardened his frame into the mould of the trained athlete. The faded uniform which he still wore became him well. The ruddy cheeks had grown swarthy and browned, but when he removed his cap, the upper part of his forehead showed as white and fair as that of a woman.

His nose was slightly aquiline, just enough to give character to his countenance, the hair which was rather scant, was dark like the mustache and the small tuft on his chin. He wore fine, high cavalry boots, reaching above the knees, a sword and like the captain was armed with revolver and Winchester rifle.

Crouched at his feet was his massive dog Timon, an object of as much interest as his master; for, curious as it may seem, he was the only canine ever owned in New Constantinople. He was of mixed breed, huge, powerful and swift, seeming to combine the sagacity and intelligence of the Newfoundland, the courage of the bull dog, the persistency of the bloodhound and the best qualities of all of them. Seeming to understand that he was among friends, he rested his nose between his paws and lay as if asleep, but those who gazed admiringly at him, noted that at intervals he opened one of his eyes as if to say:

“Strangers, I guess it is all right, but I’m taking no chances.”

Coming with the credentials that no one else ever bore, Lieutenant Fred Russell was sure of a warm reception at New Constantinople. The depletion of the population had left more than one cabin vacant and the best of these was turned over to him. In it he found cooking utensils, rough but serviceable bedding and accommodations and much better comforts than he was accustomed to during his campaigning. Having no immediate relatives, he had followed the discreet course of Captain Dawson, who deposited nearly all of his accumulated pay in a savings institution in the East, reserving only enough to insure their arrival on the Pacific coast.

Russell, like so many turned from consumers into producers by the end of hostilities, was obliged to decide upon the means of earning a livelihood. He had begun the study of law, at the time he answered the call for volunteers, and would have had no difficulty in taking it up again; but, somehow or other, he did not feel drawn thitherward. He disliked the confinements of office work and the sedentary profession itself. He wanted something more stirring, and active, and calling for out door life. It was when he was in this mood, that Captain Dawson urged him to accompany him to the gold diggings in the Sierras.

“So far as I can learn,” explained the captain, “the mines haven’t panned out to any great extent, but there is no doubt that there are millions of dollars in gold in the mountains, and if it isn’t at New Constantinople, it is not far off.”

“I shall accept your invitation,” replied the junior officer, “with the understanding that if the prospect is not satisfactory, I shall feel at liberty to go somewhere else.”

“That’s the constitutional right of every American citizen.”

“I am not as far along in years as you, but I am old enough to feel that no person ought to fritter away the most valuable years of his life.”

And thus it was that the lieutenant went to New Constantinople and received the heartiest welcome from every one there. And yet among these citizens were two that had lately become partners and sharers of the same cabin, and who were oppressed with misgiving.

“I tell you,” said the parson late at night, when he and Wade Ruggles were smoking in their home, with no one near enough to overhear them; “Captain Dawson has made the mistake of his life.”

“How?”

“In bringing Lieutenant Russell to New Constantinople.”

“I don’t quite foller your meaning, parson.”

“Yes, you do; you understand it as well as myself.”

“I have a suspicion of it, but are you afraid to trust me?”

“You ought to know better than to ask that.”

“Go ahead then and give me the partic’lars.”

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“In the first place then, the lieutenant is young and good looking.”

“Unfortinitly there can’t be any doubt of that.”

“Nellie Dawson has never seen a handsome young man——”

“Exceptin’ you and me, and we ain’t as young as we once was.”

“She is now a young woman and ready to fall in love, and just at the right hour, or rather the very worst hour, the captain brings the man here.”

“You have spoke the exact thoughts I had in mind all along; you’re right, parson.”

He would have been better pleased had Ruggles contradicted him. He did not wish to believe that which he could not help believing.

“We must treat him well because the captain brings him and he has saved the captain’s life, but, Wade, *we must watch them both close.*”

“I agree with you agin, but what shall we do if we find him making love to the little gal?”

The parson’s fierce reply showed how deeply his feelings were stirred.

“Warn him just once!”

“I feel as bad about it as you do, but, parson, I haven’t forgot that afore the war broke out, and we was afeard the captain meant to take the gal away¹²⁹ to have her eddycated, you told us it was none of our bus’ness and he had the right to do as he thought best with his own child.”

“All that was true at the time, but the conditions have changed.”

“Now I can’t foller you. ’Spose the captain is agreeable?”

“He *won’t* be!” exclaimed Brush, who in the depth of his excitement added an exclamation which sounded perilously like profanity. But for the parson’s intense earnestness, Ruggles would have quizzed him, but he pitied the man and at the same time was distressed himself.

“I hope you’re right, but I doubt it. We’ve all felt for a good while that sooner or later, we must lose the little one. Now that she’s growed up, the captain may feel more than ever that she must be took off to some town where all the men ain’t savages, and she can see some of her own kind.”

“If he puts it that way, we shall have to submit. He can take her where he wills, for my position is the same as four or five years ago, but nobody else must take her from among us.”

Ruggles’s mood was now quite similar to that of his partner.

“If I see anything wrong in the doings of that pretty faced young officer, I’ll shoot him down like a mad dog.”

“So will I.”

The two were in the ugliest temper conceivable. They continued to smoke, but their meditations were tumultuous and revengeful. Each breast contained a strange disturbing secret that either would have died before confessing, but nevertheless, it was there and had taken ineradicable root within the past days and weeks.

Felix Brush, as the reader knows, had been the instructor of Nellie Dawson from infancy. He was the medium through which she had gained an excellent book education. He had held many long confidential talks with her. She, in her trusting innocence, had told him more of her inmost thoughts, her self communings, her dim, vague aspirations, than she imparted to anyone else.

And he could not but notice her wonderful budding beauty. Surely, he thought, such a winsome creature was never born. He had begun to ask himself in a whispered, startled way: "Why may I not possess this mountain flower? True, I am much her senior, but I will nourish, protect and defend her against the world, as no younger man could or would. She believes in my goodness, far more than I deserve. I will cultivate the affection within her of whose nature she has as yet no comprehension. By and by, when she is a few years older, perhaps I may claim her. More extraordinary things have happened and are happening every day. I have but to keep her uncontaminated from the world, of which I have told her so much, so that when she goes forth, she shall be under my guardianship—the most sacred guardianship of all for it shall be that of husband."

"Aye," he added, his heart throbbing with the new, strange hope, "all this, please heaven, shall come to pass if things go on as they are, and no younger man with better looks crosses my path."

And now that younger and better looking man had crossed his path.

The knowledge seemed to rouse all the dormant resentment of his nature, and to undo the good that the girl herself had done in the years that were gone. He felt that if he lost her, if his cherished dream was to be rudely dissipated, he would go to perdition.

And somewhat similar in range and nature were the communings of Wade Ruggles, who until this eventful evening, had cherished a hope, so wild, so ecstatic, so strange and so soul-absorbing that he hardly dared to admit it to himself. At times, he shrank back, terrified at his presumption, as does the man who has striven to seize and hold that which is unattainable and which it would be sacrilege for him to lay hands upon.

"I'm three months younger than the parson," he would reflect when the more hopeful mood was upon him; "neither of us is in danger of being hung

for our good looks, but I've got the bulge on him dead sure. I had too much in the way of whiskers to suit the little one, when I came back from the war; she wanted to see me as I was when I left; *why was that?*"

After pausing for a reply, he continued:

"So accordin' I trimmed 'em off and she says I'm better looking than ever, and what she says in Dead Man's Gulch and New Constantinople, goes. She meant it, too, as I could see by the sparkle of her eyes.

"I went all through the war without swallerin' a mouthful of strong drink, even when the doctor ordered it. I've contrived, sort of accerdental and off hand like, to let her know them circumstances and I've seen it pleased her immense. I've been layin' out some of my money for clothes, too, since I got back. Vose bought me a coat in Sacramento, blue with brass buttons. I've had a necktie that has been laid away till the proper time comes to put it on. There are three or four yards of silk in it and it will knock a rainbow out of sight. I didn't want to overwhelm her too sudden like, and have been layin' back for the right occasion.

"It's arriv! I must knock that leftenant out, and that necktie will do it! I'm mighty glad the parson hain't got any foolish dreams 'bout the gal. The leftenant is the only galoot I've got to look out for, or rather," added the miner grimly, "I'm the one he's got to beware of. I'm in dead earnest this time."

CHAPTER XIII

YOUNG LOVE'S DREAM

That which in the nature of things was inevitable came to pass. Lieutenant Russell, in the same moment that his eyes rested upon Nellie Dawson, was smitten, as hopelessly as ever ardent lover was smitten by the lady whom he worshiped. The many things which the father had told him about his daughter naturally excited interest in her, but the young officer never dreamed of looking upon such marvelous beauty as that which met his gaze in that secluded cañon of the Sierras. It required all his self-control from drawing attention to himself by his admiration of her.

"I never saw such a perfect combination of face, feature and figure," he reflected when alone. "It is an illustration of what nature can do when left to herself. Then, too, she has a fund of knowledge that is amazing, when all the circumstances are considered. I haven't had much chance to converse with her, but I heard enough to know that she would shine by virtue of her mind among the most accomplished of her sisters, who have had every advantage that civilization can give. She is a flower nourished on a mountain crag, exhaling all its fragrance, untainted by a poisonous breath from the outer world. Who would have dared to say that amid this rough, uncouth people, such loveliness could take root and nourish? And yet it is that loveliness which has permeated and regenerated the miners themselves. But for her these nights would be spent in drinking, roistering, fighting and carousing. It is her blessed influence, which unconsciously to herself has purified the springs of life. Like the little leaven she has leavened the whole lump."

The passing days increased his interest in her, until very soon he confessed to himself that he was deeply in love with Nellie Dawson. She had become dearer to him than his own life. He could not live without the hope of gaining and possessing her. He would remain in New Constantinople and starve, even though a Golconda was discovered a few miles away. He

would linger, hopeful, buoyant and believing that the dream of his existence was to be crowned with perfect fruition.

But the sagacious lieutenant had learned to be observant and to note the most trifling things that escape the eyes of the majority of persons. Thus it was that the secret which Wade Ruggles and Parson Brush believed was hidden, each from everyone except himself, became as clear as noonday to him. He pitied them and yet he extracted a grim amusement from the fact.

“They are hopelessly infatuated with her; they are excessively jealous ⁴³⁶ and would rather shoot me than have me win. They are more than double her age, and yet they can see no incongruity in hoping to win her. They will hope on until the awakening comes. Then they will be my deadliest enemies. I shouldn’t be surprised if I receive a call and warning from them, but neither they nor the whole world shall turn me from the prize which is more than all the gold, mined or unmined, in the Sierras.”

No one could have been more circumspect than the young man. He treated Nellie Dawson with the chivalrous respect of a Crusader of the olden time. He was always deferential, and, though he managed frequently to meet and chat with her, yet it invariably had the appearance of being accidental. Fortunately his feeling of comradeship for Captain Dawson gave him a legitimate pretext for spending many evenings in his cabin, where it was inevitable that he should be thrown into the society of the daughter.

Wade Ruggles and the parson noted all this with growing resentment. When it had continued for several weeks, the two friends had a conference over the situation.

“I tell you, parson, it won’t do to wait any longer,” observed Ruggles, puffing away at his pipe; “things is getting dangerous.”

“Do you think so?” asked his companion, who held precisely the same ¹²⁷ opinion, but disliked to admit it.

“There isn’t a particle of doubt of it.”

“Let me see,—we agreed to give him warning didn’t we?—just once.”

“Yes,—it’s only fair that you should let a man know afore you hit him, so he can brace himself for the shock, as it were.”

“Well, if we are going to do it, there is no use of waiting.”

“No use! It’ll git worse every day. Let’s go over to his place now.”

“It isn’t likely we’ll find him there; he spends nearly every evening in the cabin of Captain Dawson.”

Neither fancied the task, and, had not their feelings been so wrought up, they never could have been induced to undertake it, but because of their misgivings, nothing could have dissuaded them from their purpose.

“When he comes to think soberly of it,” added Ruggles, “he’ll thank us for giving him warning in time. If we wait much longer, it might be too late; we couldn’t scare him off the track, but now he’ll show his sense by stopping at once.”

The two passed out of the house and walked to the cabin of Lieutenant Russell. Relieved, and yet in a certain sense dismayed, they found the young officer at home engaged in reading. The instant he saw and admitted them, he knew the errand on which they had come. Except for the grave question involved, that which followed would have been a delicious comedy. The lieutenant could not have treated a brother with greater cordiality and never did host shine more brilliantly. He fell to talking of war times, drew out Ruggles, interested the parson and gave some of his own stirring experiences. They remained two hours and went away charmed, without having once referred to Nellie Dawson. They voted the young man a good fellow, concluded they were mistaken about his admiring the young lady, and thought it lucky they had not made fools of themselves.

When they were clear of the house, Lieutenant Russell laughed heartily.

“Their faces gave them away; they were loaded and primed, but I drew their charges; to-night they will vote me one of the best fellows that ever lived; to-morrow they will begin to doubt, and by and by the sweetest privilege they can ask will be to shoot me.”

Perhaps the most curious feature of the tragical incidents that followed was the obtusiveness of Captain Dawson. What every one else saw was veiled from him, until at times he almost seemed wilfully blind. The two men had gone through many perilous experiences together, and sometimes alone. It had been the fortune of the younger officer to serve the elder, more than once when in imminent danger and none could be more grateful than the captain.

As for Nellie Dawson herself, it is unlikely that for a time she suspected the truth in all its fulness. She knew that hers was a peculiarly sweet enjoyment, while her deft fingers were busy with some needlework, to listen to the reminiscences of the two. Sometimes she started with a shock of alarm, when the father pictured in his graphic way a situation from which it seemed no escape was open to him. Forgetful for the moment of the fact that he was there before her, alive and well, she fairly held her breath, until the *denouement* came. Not until then were her fears wholly relieved.

And when the parent rendered such glowing tributes to the bravery of the young officer, recalling events of so thrilling a nature that the lieutenant never would have dared to describe them in similar terms, how could the daughter help the kindling of admiration for the handsome young man? How could she avoid feeling grateful, when she knew that he had risked his life for her parent, even on their late journey through the mountains? In truth, everything tended to fan the flame that had already been kindled in both hearts.

It was late one night, after the tired Nellie had withdrawn, that the visitor made her the subject of the conversation, the approach being so tactful, that the captain had no suspicion of its object.

“Do you intend to spend all your life in this out of the way corner of the world?” was the question of the lieutenant.

“Probably I shall. Just before I went to war, I became convinced that my duty to my daughter demanded I should move to the East, in order to give her the education she can never receive here. However, when I went to the war, there was no place except this where I could leave her. When I come back, I find her a young woman, with excellent book knowledge, thanks to Brush and the kind attention of the others. Sometimes I think that she is so innocent and ignorant of evil, that it will be better for her to spend the rest of her life here.”

“It is a serious matter, but neither you nor she should be content to remain in this place for the rest of your lives.”

“Why not? Does that which she can learn elsewhere outweigh that which she will never learn in this secluded settlement? Is not the man or woman fortunate who never comes face to face with the ingratitude, the treachery,

the selfishness, the baseness and the sin which are the accompaniments of civilization? In this untainted mountain air, her nature will retain its freshness and purity; her life will be a well spring of happiness and goodness to all with whom she comes in contact; I shall never marry, and mean to keep her by me until in the order of nature I am called away. That is the only boon that I ask from heaven.”

“But may not all this be hers and yours if the flower is transplanted from the wilderness into a more congenial soil? Has she not already acquired that rugged strength which renders her nature secure against evil? Is she not doubly panoplied in goodness by the training of her infancy and girlhood?”

“I would like to think so, but, lieutenant, I have lived a few years longer than you. She *might* not be safe there; I *know* she is here.”

CHAPTER XIV

THE THUNDERBOLT

Lieutenant Russell was treading on delicate ground, where the utmost caution was necessary. He must not alarm his friend. He smoked a few minutes in silence.

“It is not for me to give counsel to my captain, but is it not a fact that selfishness grows upon us with advancing years?”

“Very likely.”

“Has it occurred to you that in concluding to pass the remainder of your days in this mining settlement, you are thinking more of yourself than of your child?”

“What have I said that warrants that question?” asked the captain sharply.

“No higher motive than to protect a daughter from harm can inspire a father, but if she should be allowed to close your eyes, when you come to lie down and die, it will be hers to live: what *then*?”

“I shall leave her comfortably provided for. My pay amounted to a goodly sum when the war ended, and it is placed where no one else can reap the benefit of it. Then, too, as you know we have struck considerable paying dirt of late. The prospects are that New Constantinople, even if a small town, will soon be a rich one.”

Lieutenant Russell groaned in spirit. Would the parent never understand him?

“Then you expect her to remain here, sharing in all the vicissitudes of the place? It cannot always stand still; it will either increase, bringing with it many bad elements, or it will cease to exist and these people will have to go elsewhere: what then of the child whom you have left behind you?”

“Oh, by that time,” airily replied the father; “she will be married to some good honest fellow, like the parson, who seems to be fond of her, as I know

she is of him, but I will not allow her to think of marriage for a long while to come," he added with emphasis.

Lieutenant Russell had heard all he wished. He had learned that the father would not consent to the marriage of his daughter for a number of years, and when that time came, he would select one of the shaggy, uncouth miners for her life partner.

"He has never thought of *me* in that capacity, but he will have to entertain the thought before he is much older."

In her dreamings of the mysterious world, with its teeming multitudes and all manner of men, Nellie Dawson was sure that none lived who could compare with this young cavalier who had come out from that wonderful realm into the loneliness of her mountain home, bringing with him a sunshine, a glow, a radiance, a happiness, and a thrilling life which she had never believed could be hers.

She often sat with her eyes upon his countenance, when, in his chair opposite her father, he recalled those marvelous experiences of his. To her no man could ever possess so musical a voice, and none so perfect features and winning ways. It was young love's dream and in her heart the sacred flame was kindled and fanned until her whole being was suffused and glowed with the new life.

One of Lieutenant Russell's first acts of kindness to Nellie Dawson was to present her with his massive dog Timon. She had shown great admiration from the first for the magnificent brute, who became fond of her. The maiden was delighted beyond measure and thanked the donor so effusively that he was embarrassed. It is not probable, however, that Timon himself was ever aware of the change of ownership, for it brought no change of conditions to him. He had learned to divide his time about equally between the home of the lieutenant and that of Captain Dawson, while, like the young lady herself, he wandered about the settlement at will. He was a dignified canine, who stalked solemnly through New Constantinople, or took a turn in Dead Man's Gulch, resenting all familiarity from every one, except from the only two persons that had ever owned him.

The lieutenant reflected much upon his conversation with Captain Dawson, the impression which he had received being anything but pleasant. "He

considers himself unselfish, and yet like all such he is selfishness itself. He has determined to spend the rest of his days in this hole and to keep her with him. He won't allow her to marry for years, because it might interfere with his own pleasure; then he intends to turn her over to that lank, shaggy-faced Brush, who pretends to be a parson. The captain never thinks of *me* as having any claims upon her love. To carry out his plan would be a crime. If she objects to Brush, he will probably give her a choice from the whole precious lot, including Ruggles, Adams, Bidwell, or Red Mike, the reformed gambler.

"Never once has he asked himself whether his daughter may not have a preference in the matter, but, with the help of heaven, he shall not carry out this outrage."

In the solitude of his own thoughts, the lover put the question to himself:

"Am *I* unselfish in my intentions?"

Selfishness is the essence of love. We resolve to obtain the one upon whom our affections are set, regardless of the consequences or of the future. It is *our* happiness which is placed in the balance and outweighs everything else.

"Of course," continued the young officer in his self-communing, "I shall be the luckiest fellow in the world when I win her and she will be a happy woman. Therefore, it is her good which I seek as much as my own."

How characteristic of the lover!

"I shall not abduct her. If she tells me she does not love me; if she refuses to forsake all for me, then I will bid her good-by and go off and die."

How characteristic again of the lover!

And yet it may be repeated that Lieutenant Russell was the most guarded and circumspect of men. He no longer argued with Captain Dawson, for it was useless. He rather lulled his suspicion by falling in with his views, and talked of the future of parent and daughter, as if it were one of the least interesting subjects that could come between them.

On one of Vose Adams's pilgrimages to Sacramento, he returned with a superb mettled pony, the gift of Lieutenant Russell. With this pet she soon became a daring and accomplished horsewoman. She was an expert, too, with the small Winchester and revolver which her father brought with him

from the East. Perched like a bird upon her own Cap, as she named him, she often dashed for a mile down the trail, wheeling like a flash and returning at full speed.

“Have a care,” said Parson Brush, more than once; “you ride like a centaur and none knows better how to use firearms, but there are Indians in these mountains and they sometimes approach nigh enough to be seen from New Constantinople. Then, too, your father brought word that other miners are working their way toward us. More than likely there are bad men among them whom it is best you should not meet.”

“But none would harm *me*,” was the wondering reply of the miss; “are not all of my own race my friends?”

“They ought to be, but alas! it is too much to expect.”

She could not believe, however, that any danger of that nature threatened her, but she deferred to the fears of her father, Lieutenant Russell and the parson to that extent that she generally had a companion with her on these dashes down the trail. Sometimes it was Brush, sometimes Ruggles or her parent, and less frequently the young officer. Timon always galloped or trotted behind her pony, and she could not be made to believe that his protection was not all-sufficient.

The winds of early autumn were moaning through the gorges and cañons of the Sierras, bringing with them the breath of coming winter, which was often felt with all its Arctic rigor in these depressions among the towering peaks and ridges. The usual group was gathered in the Heavenly Bower, though two of the most prominent citizens were absent. They were Felix Brush and Wade Ruggles, who were seated in their cabin, where a small fire had been kindled on the primitive hearth and afforded the only light in the small apartment. They had eaten their evening meal and as usual were smoking.

As neither cared to taste the Mountain Dew, so winsome to a majority of the miners, the two often spent their evenings thus, especially since the shadow caused by the coming of Lieutenant Russell had fallen across their threshold.

“Things begin to look better than afore,” remarked Ruggles, sitting with one leg flung across the other and looking thoughtfully into the fire.

“Yes, I always insisted that the soil about here is auriferous and we had only to stick to it to obtain our reward.”

Ruggles took his pipe from his mouth and looked at his partner with a disgusted expression.

“What are you talkin’ ’bout, parson?”

“Didn’t you refer to the diggings?” he innocently asked in turn.

“Come now, that won’t do; you know my references to allusions was the lieutenant and the young lady. I say things look better as regards the same.”

“In what way?”

“In the only way there could be. They don’t care partic’lar for each other.”

“There is no doubt they did some time ago.”

“Of course, but I mean *now*.”

“How do you explain the change, Wade?”

“The chap ain’t a fool; he’s took notice of our warnin’s.”

“I wasn’t aware that we had given him any.”

“Not ’zactly in words, but every time I’ve met him with the gal, I give the lieutenant a scowl. Once I come purty near shakin’ my fist at him; he’s obsarved it all and is wise in time.”

“I think there is ground for what you say,” remarked the parson, anxious to be convinced of the hoped-for fact; “what I base my belief on is that the lieutenant doesn’t accompany her on her little riding trips as often as her father or you or I: *that* is a sure barometer, according to my judgment. Still I have sometimes feared from the way she talks and acts that she thinks more of him than is right.”

“Nothing of the kind! She treats him as she does everybody else; the lieutenant is the friend of the cap and the lieutenant give her the dog that is the size of a meetin’ house and the pony hardly as big as the dog, but she doesn’t think half as much of him as of you and me; how can she?” demanded Ruggles, sitting bolt upright and spreading his hand like a lawyer who has uttered an unanswerable argument; “hain’t she knowed us a blamed sight longer than him?”

“You are correct; I didn’t think of that.”

How eagerly we accept the argument, flimsy as it may be, which accords with our wishes!

“When I feel sorter ugly over my ’spicions,” continued Ruggles; “I jest reflect that we’ve knowed the gal ever since she was a baby and her father tumbled down a hundred feet onto the roof of the Heavenly Bower, with her in his arms in the middle of that howlin’ blizzard,—when I think of that I say——”

The door of the cabin was hastily shoved inward and Captain Dawson, his face as white as death, strode in.

“Have you seen anything of Nellie?” he asked in a husky whisper.

“No; what’s the matter?” asked the startled miners.

“She has gone! she has left me!” gasped the father dropping into the only remaining chair, the picture of despair and unutterable woe.

“Why do you think that?” asked the parson, sympathetically.

“Lieutenant Russell has gone too! They have fled together!”

CHAPTER XV

COMRADES IN SORROW

Wade Ruggles and Parson Brush sprang to their feet and confronted the white-faced Captain Dawson, who stared at them and breathed fast. For a full minute they gazed into one another's faces, dazed, motionless and speechless. The partners stood, each with pipe in hand, the faint smoke curling upward from the bowls, their slouched hats still on their frowsy heads, the revolvers at their cartridge belts spanning their waists, their trousers tucked in the tops of their boots, and with their heavy flannel shirts serving for coats and vests.

Captain Dawson was similarly attired. He had dashed out of his own cabin and into that of his friends, his long locks flying, and even the strands of his heavy beard rigidly apart, as if from the consternation that had taken possession of his very soul.

In those seconds of tomb-like stillness, an ember on the earthen hearth fell apart and a twist of flame threw a yellow illumination through the small room, grim and bare of everything suggesting luxury.

It was the parson who first found voice, but when he spoke the tones, even to himself, sounded like those of another person.

"Captain, it is possible that there is some mistake about this."

"Would to God there might be!"

"Let us hope there is."

"Mistake!" he repeated in a husky, rasping voice; "can there be any mistake about *that*?"

He threw out his single arm as he spoke, as if he would drive his fist through their chests. But he held a crumpled bit of paper in the face of the parson, who silently took it from him, crinkled it apart and turning his side so that the firelight fell on the sheet, began reading the few words written in pencil and in the pretty delicate hand which he knew so well.

“Read it out loud, parson,” said Ruggles, speaking for the first time.

Felix Brush did so in a voice of surprising evenness:

“MY DEAREST FATHER:—I have decided to go with Lieutenant Russell. We love each other and I have promised to become his wife. Do not think I love you any less for that can never be. I cannot remain here. You will hear from us soon and then I pray that you will come to your own

NELLIE.”

“Have you been to his shanty?” asked Ruggles, who hardly comprehended the meaning of his own words.

“Why would he go there?” angrily demanded the parson.

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“Mebbe the villain changed his mind.”

“But, if he had, *she* would not be there.”

“Yes; I went to his cabin,” bitterly answered Captain Dawson; “he has not been in the place for hours; all is dark and deserted; if I found him, I would have killed him.”

The three were laboring under fearful emotion, but with surprising power forced themselves to seem comparatively calm.

“Captain, tell us about it,” said the parson, carefully folding the bit of paper upon itself and shoving it into his pocket, unobserved by the others.

Despite his apparent calmness it took a few moments for the father to gain sufficient self-control to speak clearly. Seated in the chair, he looked into the embers of the fire on the hearth, compressed his lips and breathed hard. His two friends had also seated themselves, for it seemed to them it was easier to master their agitation thus than while upon their feet.

“What have I to tell, but my everlasting woe and shame? The lieutenant and I have been working for several days by ourselves on a new lead. I had noticed nothing unusual in his manner nor indeed in that of my child. At lunch time to-day he complained to me of not feeling like work, and told me not to expect him back this afternoon. I would have returned with him, had not the indications of the new lead been so good. And actually he invited me to do no more work until to-morrow, though why he should have done it, when it would have spoiled their whole scheme, is more than I can explain.

“It was part of his plan to deceive you.”

“I don’t see how it could do that, for there was no need of his inviting me,—but let it go. It came about that I worked later than usual, so that it was dark when I got home. I was surprised to see no light and to find no fire or Nellie. I thought nothing of that, however, for who would have believed it possible that there could be anything wrong? I supposed she was with some of the folks and being tired I sat down in my chair and fell asleep.

“When I awoke, the room was cold, silent and as dark as a wolf’s mouth. I felt impatient and decided to give her a scolding for being so neglectful. I groped around until I found a match, intending to start a fire. I had just lit the lamp and set it down on the table, when I caught sight of a folded piece of paper with my name in her handwriting on the outside. It gave me a queer feeling and my hands trembled when I unfolded and read it.

“I don’t clearly remember the next few minutes. The room seemed to be spinning around, and I think I had to sit down to keep from falling, but what saved me from collapse was my anger. I have been consumed with indignation once or twice in my life, but was never so furious, so uncontrollable, so utterly savage as I was after reading that note. If I could have found Russell, I would have throttled him. It may sound strange, but I hardly once thought of Nellie; it was *he*, the villain, whom I yearned to get my hands on.”

“Of course,” said Ruggles, “that’s the way you oughter feel.”

“I don’t know what possessed me to do so, but I rushed out and made straight for his cabin, as if I would find him there. Of course that too was empty, and then I came here. Fool that I have been!” exclaimed the parent, leaping to his feet and striding up and down the room; “not to see all this, but,” he added pathetically, “I believed that Nellie loved me.”

The flaming wrath of the two melted into pity for the stricken father. Parson Brush laid his hand on his shoulder and compelled him to resume his seat. Then he spoke with the tenderness of a woman:

“That child *does* love you more than she loves her own life, but she is blinded by her infatuation for that smooth-tongued scoundrel. It is the nature of her sex to feel and act thus; but, as I said, it does not mean that her love for you is less—”

“Don’t talk of her love for me,” fiercely interrupted the parent; “we only judge of a person by his actions.”

“But you and I have made mistakes—”

“Nothing like this; why did she not ask me? why did *he* not tell me that he wished to marry her?—that is if he does,” added the father, as if determined to make his own cup as bitter as possible.

“He did not ask you, because he knew you would refuse; for from the first time he entered this community, he was determined to have her.”

“How do you know that?”

“Because Ruggles and I read him; we did what no one else did,—we measured the man. Am I right, Wade?”

The miner nodded his head.

“Every word is as true as gospel; we noticed his sly looks at her, that first night you and him entered the Heavenly Bower and she was there. We couldn’t make any mistake about it.”

“And you didn’t warn me! You two are as bad as he, because you kept the secret when you ought to have put me on my guard, so that I might have strangled him at the first advance he made.”

Sympathy for the man prevented his listeners taking offence at the words which, from any one else, would have brought serious consequences. The parson said soothingly:

“If you were not so wrought up, captain, you would not be so unreasonable; suppose Wade and I had gone to you with the statement that the man who, according to your own words, had saved your life but a short time before in the mountains, was a villain, who contemplated robbing you of your child; what would you have done?”

“Thanked you and been on my guard.”

“You would have done nothing of the kind; you would have cursed us and told us to mind our own business.”

“No matter what I would have done, it was your duty to tell me, regardless of the consequences to yourselves. I might have resented it, but my eyes

would have been opened and this blow saved me.”

“Nothing could have opened your eyes, for you were blind,” said the parson, who felt that though the man was intensely agitated, he ought to hear some plain truths; “even had you suspected there was ground for our fears, you would have gone to Lieutenant Russell and demanded an explanation. He would have denied it, and you would have believed him with the result that he would have been put on his guard and would have deceived you the more completely.”

“Likewise, as aforesaid,” added Ruggles, “the villain would have come to us and made us give our grounds for our charges. What ridic’lous fools we would have been, when all we could answer was that we thought he looked as if he meant to run away with your darter.”

“There may be some justice in what you say,” replied the captain more composedly; “It was I who was blind, but I can’t understand it. Never until I read that piece of paper, did I suspect the truth.”

“Howsumever, the parson and me haven’t been idle; we often talked it over and fixed on a line that we thought would work better than going to you. We showed the leftenant that we was onto his game; I give him a scowl now and then, as it fell convenient, that said ‘Beware!’ We, that is the parson and me, made up our minds to watch close, and, at the first sign that was dead sure, we’d fall onto him like a couple of mountains.”

“And why didn’t you?”

“He fooled us as he did you. We was talkin’ over matters the very minute you busted into the door and was satisfied that he had larned he was playin’ with fire and had concluded to drop it. We was as big fools as you.”

CHAPTER XVI

NOW

It was the parson who now broke in.

“Why do we sit here, lamenting that which cannot be helped? Do you mean to give up, captain, and let her go? Will you settle down to toil in the diggings, giving her no further thought, while this pretty-faced lieutenant is chuckling over the clever manner by which he fooled you as well as us—”

“No!” fairly shouted the roused parent; “I will follow them to the ends of the earth! They shall not find a foot of ground that will protect them! She has never seen me angry, but she shall now!”

“We are with you,” coolly responded Brush, “but only on one condition.”

“What’s that?”

“That this account is to be settled with *him* alone; you musn’t speak so much as a cross word to Nellie; she will shed many a bitter tear of sorrow; she will drain the cup to its dregs; *he*, the cause of it all, is to be brought to judgment. When do you wish to take up the pursuit?”

“Now!”

“And we are with you.”

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There was something wonderful in the way Parson Brush kept control of himself. Externally he was as calm as when standing in front of the adamant blackboard, giving instruction to Nellie Dawson, while down deep in his heart, raged a tempest such as rouses into life the darkest passions that can nerve a man to wrong doing. Believing it necessary to stir the father to action, he had done it by well chosen words, that could not have been more effective.

For weeks and months the shadow had brooded over him. Sometimes it seemed to lift and dissolve into unsubstantiality, only to come back more baleful than before. And the moment when he had about persuaded himself

that it was but a figment of the imagination, it had sprung into being and crushed him. But he was now stern, remorseless, resolute, implacable.

It was much the same with Wade Ruggles. He strove desperately to gain the remarkable control of his feelings, displayed by his comrade, and partly succeeded. But there was a restless fidgeting which caused him to move aimlessly about the room and showed itself now and then in a slight tremulousness of the voice and hands, but his eyes wore that steely glitter, which those at his side had noticed when the rumble and grumble told that the battle was on.

Captain Dawson went from one extreme to the other. Crazed, tumultuous in his fury, and at first like a baffled tiger, he moderated his voice and manner until his companions wondered at his self-poise.

“They have started for Sacramento and are now well advanced over the trail,” he remarked without any evidence of excitement.

“When do you imagine they set out?” asked Brush.

“Probably about the middle of the afternoon; possibly earlier.”

“Then,” said Ruggles, “they have a good six hours’ start. They haven’t lost any time and must be fifteen or twenty miles away.”

“The trail is easy traveling for twice that distance, as I recollect it,” observed the captain; “after that it grows rougher and they will not be able to go so fast.”

“This must have been arranged several days ago, though it is only guesswork on our part. Of course she has taken considerable clothing with her.”

“I did not look into her room,” said the captain; “there’s no use; it is enough to know they made their preparations and started, accompanied by that dog Timon.”

No time was wasted. They knew they would encounter cold weather, for the autumn had fairly set in, and some portions of the trail carried them to an elevation where it was chilly in midsummer. Each took a thick blanket. The captain donned his military coat, with the empty sleeve pinned to the breast, caught up his saddle and trappings, his Winchester and revolver, and buckled the cartridge belt around his waist. Then he was ready. Neither of

the others took coat or vest. The blanket flung around the shoulders was all that was likely to be needed, in addition to the heavy flannel shirt worn summer and winter.

Thus equipped, the three stood outside the cabin, with the moon high in the sky, a gentle wind sweeping up the cañon and loose masses of clouds drifting in front of the orb of night. Here and there a light twinkled from a shanty and the hum of voices sounded faintly in their ears. Further off, at the extreme end of the settlement, stood the Heavenly Bower, with the yellow rays streaming from its two windows. They could picture the group gathered there, as it had gathered night after night during the past years, full of jest and story, and with never a thought of the tragedy that had already begun.

“Shall we tell them?” asked Ruggles.

“No,” answered Brush; “some of them might wish to go with us.”

“And it might be well to take them,” suggested Captain Dawson.

“We are enough,” was the grim response of the parson.

Like so many phantoms, the men moved toward the further end of the settlement. Opposite the last shanty a man assumed form in the gloom. He had just emerged from his dwelling and stopped abruptly at sight of the trio of shadows gliding past.

“What’s up, pards?” he called.

“Nothing,” was the curt answer of the captain, who was leading and did not change his pace.

“You needn’t be so huffy about it,” growled the other, standing still and puffing his pipe until they vanished.

“That was Vose Adams,” remarked the captain over his shoulder; “he’ll tell the rest what he saw and it will be known to everybody in the morning.”

The little party was carefully descending the side of the cañon, with now and then a partial stumble, until they reached the bottom of the broad valley where the grass grew luxuriantly nearly the whole year. It was nutritious and succulent and afforded the best of pasturage for the few horses and mules belonging to the miners.

Captain Dawson and Lieutenant Russell had ridden up the trail, each mounted on a fine steed, which had brought them from Sacramento. When the saddles and bridles were removed, the animals were turned loose in the rich pasturage, which extended for miles over the bottom of the cañon. There, too, grazed the pony of Nellie Dawson, the horses of Ruggles and Bidwell and the three mules owned by Landlord Ortigies and Vose Adams. The latter were left to themselves, except when needed for the periodical journeys to Sacramento. The little drove constituted all the possessions of New Constantinople in that line. Consequently, if any more of the miners wished to join in the pursuit, they would have to do so on foot or on mule back,—a fact which was likely to deter most of them.

In the early days of the settlement, before the descent of that terrible blizzard, fully a dozen mules and horses were grazing in the gorge, subject to the call of their owners, who, however, did not expect to need them, unless they decided to remove to some other site. But one morning every hoof had vanished and was never seen again. The prints of moccasins, here and there in the soft earth, left no doubt of the cause of their disappearance. Perhaps this event had something to do with the permanence of New Constantinople, since the means of a comfortable departure with goods, chattels, tools and mining implements went off with the animals.

After that the miners made no further investments in quadrupeds, except to the extent of three or four mules, needed by Vose Adams, though he was forced to make one journey to Sacramento on foot. Thus matters stood until the addition of the horses. There was always danger of their being stolen, but as the weeks and months passed, without the occurrence of anything of that nature, the matter was forgotten.

The three men were so familiar with the surroundings that they made their way to the bottom of the cañon with as much readiness as if the sun were shining. Pausing beside the narrow, winding stream, which at that season was no more than a brook, they stood for several minutes peering here and there in the gloom, for the animals indispensable for a successful pursuit of the eloping ones.

“There’s no saying how long it will take to find them,” remarked the captain impatiently; “it may be they have been grazing a mile away.”

“Have you any signal which your animal understands?”

“Yes, but it is doubtful if he will obey it.”

Captain Dawson placed his fingers between his lips and emitted a peculiar tremulous whistle, repeating it three times with much distinctness. Then all stood silent and listening.

“He may be asleep. Once he was prompt to obey me, but he has been turned loose so long that there is little likelihood of his heeding it.”

“Try it again and a little stronger,” suggested Ruggles.

The captain repeated the call until it seemed certain the animal must hear it, but all the same, the result was nothing.

It was exasperating for the hounds thus to be held in leash when the game was speeding from them, with the scent warm, but there was no help for it.

“We are wasting time,” said Dawson; “while you two go up the gorge, I will take the other direction; look sharp for the animals that are probably lying down; they are cunning and will not relish being disturbed; if you find them whistle, and I’ll do the same.”

They separated, the captain following one course and his friends the other.

“It’ll be a bad go,” remarked Ruggles, “if we don’t find the horses, for we won’t have any show against them on their animals.”

“Little indeed and yet it will not hold us back.”

“No, indeed!” replied Ruggles with a concentration of passion that made the words seem to hiss between his teeth.

Since the stream was so insignificant, Wade Ruggles leaped across and went up the cañon on the other side, his course being parallel with his friend’s. A hundred yards further and he made a discovery.

“Helloa, Brush, here they are!”

The parson bounded over the brook and hurried to his side, but a disappointment followed. The three mules having cropped their fill had lain down for the night but the horses were not in sight.

CHAPTER XVII

THE PURSUERS

The parson expressed his disappointment in vigorous language, when, instead of the horses, the hybrids proved to be the only animals near them.

"I am afraid this proves one thing," he said.

"What is that?"

"I have had a dread all along that the Indians would run off the horses, but it seems to me that if they had done so, they would have taken the mules."

"It strikes me as more likely that the lieutenant took the horses, so as to prevent our follering him and the gal."

"That sounds reasonable," said the parson thoughtfully; "the plan is so simple that it must have occurred to him. The mules are too slow to be of any use to us, and it may be as well that we shall have to go afoot."

"How do you figure that out?"

"They will conclude that, if we haven't any horses, we won't follow them; they will, therefore, take their time and travel so slow, that we'll have the chance to swoop down on them when they are not expecting it."

"I s'pose there's what you call philosophy in that, but it doesn't hit me very favorable. We'll see what the cap thinks—helloa!"

Clearly and distinctly through the still air came the signal by which Captain Dawson was to announce his discovery of the animals. The call scattered all thoughts of making the journey on foot, and, wheeling about, the two started off at a rapid pace to join their friend. At the same moment the call sounded again, and they answered it to let it be known they understood the situation. In a brief time they came upon Captain Dawson impatiently awaiting them. There was no need for him to tell them he had been successful in his search, for he was standing beside the three horses, which

were quickly saddled and bridled. A minute later the men vaulted upon their backs and the captain said crisply:

“Now we are off!”

Each seemed to be inspired by the spirit of adventure. They sat erect in the saddles, drew in a deep inhalation of the keen night air, and moved off with their horses on a brisk walk, which almost immediately became a canter. For a mile, the trail through Dead Man’s Gulch was nearly as hard and even as a country highway. The width of the cañon varied from a few rods to a quarter of a mile, with the mountain ridges on either hand towering far up into cloudland, the tallest peaks crowned with snow which the sun never dissolved.

The tiny stream wound like a silvery serpent through the stretch of green, succulent grass, narrowing gorge and obtruding rock and boulder. Now and then the path led across the water, which was so shallow that it only plashed about the fetlocks of the horses. Captain Dawson, in his impetuosity, kept a few paces in front of the other two, as if he were the leader. When the space increased too much he reined up his animal and waited until his friends joined him. They were grim, resolute and for most of the time had little to say to one another, though, as may be supposed, their thoughts were of anything but a pleasant nature.

So long as the moon held her place near the zenith, the cañon was suffused and flooded with its soft radiance, but the rifts of clouds drifting before its face rendered the light at times treacherous and uncertain. The horses had rested so long, and had had such extensive browsing on the rich pasturage, that they were in fine condition, and the gallop seemed more grateful to them than an ordinary walking gait. The air was cool and the fine trail, at this portion of the journey, made all the conditions favorable. After a time however, the ascent and descent would appear, the ground would become rough and the best the animals could do would be to walk.

When Parson Brush remarked that Lieutenant Russell had proved himself an idiot when he left these horses behind for his pursuers to use, the captain and Ruggles agreed with him.

“I don’t understand it,” said Brush; “he must have expected we would be hot after him, within the very hour we learned of what he had done, or can

it be that he and she concluded we would say, 'Depart in peace?' If so, the young man shall have a terrible awakening."

"It seems to me," said Ruggles, "that it is more likely he believed that with the start he would gain, it didn't matter whether we follered or not, feelin' sure that he could keep out of reach and get to Sacramento so fur ahead of us, that he needn't give us a thought."

"I am not very familiar with the trail," remarked the captain, "for, as you know, I have passed over it only twice; first, nearly five years ago, when I went to the war, and a few months since when I came back."

"But you and Russell did not lose your way," said the parson.

"That was because we did our traveling by day. We tried it once at night, but came within a hair of tumbling over a precipice a thousand feet deep. This will be easy enough, so long as we have the sun to help us."

"You probably know as much about the trail as Wade and I, for neither of us has been over it often. Consequently, when we travel by night, we shall have to go it blind, or rather shall do so after awhile, since all is plain sailing now."

"I ain't so sure of that," observed Ruggles doubtfully; "we must have come a mile already and ought to have made a turn by this time."

Captain Dawson checked his horse and peered ahead.

"Can it be we are off the track? We have come nearer two miles than one—ah!"

Just then the moon emerged from the obscuring clouds and their field of vision so broadened that they saw themselves face to face with an impassable barrier. The cañon closed directly in front of them like an immense gate of stone. It was impossible to advance a hundred feet further.

"Well, I'm blessed if this isn't a pretty situation!" exclaimed the captain.

"We have passed the opening, but we haven't far to return, and you know that a bad beginning brings a good ending."

"Humph! I would rather chance it on a good beginning."

Ruggles was the first to wheel and strike his horse into a gallop, which he did with the remark that he knew where the right passage was located. His companions were almost beside him. The cañon was of that peculiar conformation that, while it terminated directly in front, it contained an abrupt angle between where the party had halted and the mining settlement. At that point it was so wide that the little stream, which might have served for a guide, was lost sight of. Had they followed the brook, they would not have gone astray. The only inconvenience was the slight delay, which in their restless mood tried their spirits to the utmost. Captain Dawson muttered to himself and urged his horse so angrily that he again placed himself in advance. His mood was no more savage than that of his companions, but he chafed at everything which caused delay, no matter how trifling, in the pursuit.

Fearing that he might go wrong, Ruggles spurred up beside him. The distance passed was less than any one expected it to be, when Ruggles called out:

“Here we are!”

The exclamation was caused by the hoofs of their horses plashing in the water. They seemed to share the impatience of their riders; “all we have to do now is to keep to the stream; observe its turn.”

Its course was almost at right angles to that which they had been following. The animals were cantering easily, when suddenly a deeper gloom than usual overspread the valley like a pall. This came from a heavy bank of clouds sweeping before the moon. The steeds were drawn down to a walk, but the obscurity was not dense enough to shut out the chasm-like opening, where the mountains seemed to part, riven by some terrific convulsion ages before. The enormous walls drew back the door as if to invite them to enter and press the pursuit of the couple that were fleeing from a just and righteous wrath.

The width of the cañon had now dwindled to a few yards, and the stream expanding and shallow, occupied so much of the space that the horses were continually splashing through it, but the rise and fall of the trail was so slight that the gallop might have continued with little danger of mishap.

The formation of the party was in “Indian file,” with Captain Dawson leading, Ruggles next and Brush bringing up the rear. All three animals were walking, for the light of the moon was variable and often faint, while the danger of a mis-step was ever present, and was likely to bring a fatal ending of the pursuit almost before it had fairly begun. Occasionally the gloom in the narrow gorge was so deep that they distinguished one another’s figures indistinctly, but the animals were left mostly to themselves. They seemed to know what was expected of them and showed no hesitation. It was impossible for them to go wrong, for it was much the same as if crossing a bridge, with its protecting barrier on either hand. The horse of the captain showed his self-confidence once or twice by a faint whinney and a break from the walk into a trot, but his rider checked him.¹⁷⁴

“Not yet; heaven knows that I am as anxious to push on as you, but we have already made one blunder and we can’t afford another; when the time comes that it is safe to trot you shall do so and perhaps run.”

“Hush!” called Brush from the rear; “I hear a curious sound.”

“What does it seem to be?”

“It is impossible to tell; let’s stop for a moment.”

As the three animals stood motionless, the strange noise was audible. It was a deep, hollow roar rapidly increasing in volume and intensity, and resembled the warning of a tornado or cyclone advancing through the forest. The animals, as is the case at such times, were nervous and frightened. They elevated their heads, pricked their ears, snuffed the air and the animal of the parson trembled with terror.

The three believed that something in the nature of a cyclone was approaching, or it might be a cloudburst several miles away, whose deluge had swollen the stream into a rushing torrent that would overwhelm them where they stood, caught inextricably in a trap.

The terrifying roar, however, was neither in front nor at the rear, but above them,—over their heads! From the first warning to the end was but a few seconds. The sound increased with appalling power and every eye was instinctively turned upward.¹⁷⁵

In the dim obscurity they saw a dark mass of rock, weighing hundreds of tons, descending like a prodigious meteor, hurled from the heavens. It had

been loosened on the mountain crest a half mile above, and was plunging downward with inconceivable momentum. Striking some obstruction, it rebounded like a rubber ball against the opposite side of the gorge, then recoiled, still diving downward, oscillating like a pendulum from wall to wall, whirling with increasing speed until it crashed to the bottom of the gorge with a shock so terrific that the earth and mountain trembled.

Landing in the stream, the water was flung like bird shot right and left, stinging the faces of the men fifty feet distant. They sat awed and silent until Ruggles spoke:

“Now if that stone had hit one of us on the head it would have hurt.”

“Probably it would,” replied the captain, who had difficulty in quieting his horse; “at any rate, I hope no more of them will fall till we are out of the way.”

“I wonder whether that could have been done on purpose,” remarked the parson.

“No,” said Ruggles; “the lieutenant couldn’t know anything about our being purty near the right spot to catch it.”

“I alluded to Indians,—not to him.”

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But Ruggles and the captain did not deem such a thing credible. A whole tribe of red men could not have loosened so enormous a mass of stone, while, if poised as delicately as it must have been, they would have known nothing of the fact. Sometimes an immense oak, sound and apparently as firm as any in the forest around it, suddenly plunges downward and crashes to the earth, from no imaginable cause. So, vast masses of rock on the mountain side which have held their places for centuries, seem to leap from their foundations and tear their way with resistless force into the valley below. This was probably one of those accidental displacements, liable to occur at any hour of the day or night, which had come so startlingly near crushing the three men to death.

Captain Dawson drew a match from his pocket and scraping it along his thigh, held it to the face of his watch.

“Just midnight and we are not more than half a dozen miles from home.”

“And how far do you suppose *they* are?” asked the parson.

“Probably five times as much, if not more.”

“But they will not travel at night, and by sunrise we ought to be considerably nearer to them than now.”

“You can’t be certain about that. Lieutenant Russell knows me too well¹⁷⁷ to loiter on the road; he has a good horse and the pony of Nellie is a tough animal; both will be urged to the utmost; for they must be sure the pursuit will be a hard one.”

The discomforting fact in the situation was that if the fugitives, as they may be considered, pushed their flight with vigor, there was no reason why they should not prevent any lessening of the distance between them and their pursuers, and since they would naturally fear pursuit, it was to be expected that they would use all haste. The hope was that on account of Nellie, the animals would not keep up the flight for so many hours out of the twenty-four, as the pursuers would maintain it.

The trail steadily ascended and became so rough and uneven that the horses frequently stumbled. This made their progress slow and compelled the three men, despite themselves, to feel the prudence of resting until daylight, but not one of them wished to do so, since the night pursuit was the only phase of the business which brought with it the belief that they were really lessening the distance separating them from the two in advance.

Eager as the couple were to get through the mountains and reach Sacramento, where for the first time they could feel safe from their pursuers, the young officer was too wise to incur the risk of breaking down¹⁷⁸ their horses, for such a mishap would be a most serious one indeed, and fraught with fatal consequences.

There was little fear of the pursuers going astray. Captain Dawson had an extraordinary memory for places, as he repeatedly proved by recalling some landmark that he had noticed on his previous trip. Furthermore, the gorge was so narrow that in a certain sense, it may be said, they were fenced in, and would have found it hard to wander to the right or left, had they made the effort.

After an hour of steady climbing they reached an altitude which brought with it a sharp change of temperature. The air became so chilly that Ruggles and Brush flung their blankets about their shoulders and found the

protection added to their comfort. The horses, too, began to show the effects of their severe exertion. Their long rest had rendered them somewhat “soft,” though the hardening would be rapid. After a few days’ work they would not mind such exertion as that to which they were now forced.

When a sort of amphitheatre was reached, it was decided to draw rein for a brief while, out of sympathy for their panting animals.

“I thought if we failed to find our horses,” remarked the parson, “we wouldn’t find it hard to keep up the pursuit on foot; I have changed my mind.”

He looked back over the sloping trail, which speedily vanished in the gloom and the eyes of the other two were turned in the same direction. At the moment of doing so, the animals again became frightened, so that, despite their fatigue, it was hard to restrain them.

“There’s something down there,” remarked the captain slipping from his saddle; “Wade, you are the nearest, can you see anything?”

Ruggles was out of the saddle in an instant, Winchester in hand.

“I caught sight of something,” he said in an undertone; “look after my horse, while I find out what it is.”

“Have a care,” cautioned the parson; “it may be an Indian.”

“That’s what I think it is,” replied Ruggles, who instantly started down the trail rifle in hand, his posture a crouching one and his senses strung to the highest point.

He passed from view almost on the instant, and his companions listened with intense anxiety for what was to follow. Suddenly the sharp crack of their friend’s rifle rang out in the solemn stillness, the report echoing again and again through the gorge, with an effect that was startling even to such experienced men. It was the only sound that came to them, and, while they were wondering what it meant, Ruggles reappeared among them with the noiselessness of a shadow.

“It was a bear,” he explained; “I think he scented the animals and was follering on the lookout for a chance at ’em.”

“Did you kill him?”

“Don’t think I did; he must have heard me comin’ and was scared; he went down the trail faster than I could; when I seen that I couldn’t catch him, I let fly without taking much aim. Maybe I hit him; leastways, he traveled so much faster that I give it up and come back.”

The party lingered for half an hour more, but as the horses showed no further fear, they concluded that bruin had taken to heart the lesson he received and would bother them no further.

The mountains still towered on every hand. The stream had long since disappeared among the rocks and the gorge had become narrower. Generally it was no more than a dozen feet in width, occasionally expanding to two or three times that extent. The moon had moved over so far that only its faint reflection against the dark walls and masses of rock availed the horsemen. The sky seemed to contain an increasing number of clouds and there were indications of a storm, which might not break for a day or two, and as likely as not would not break at all.

The traveling, despite its difficulty, was comparatively safe. The trail did not lead along the sides of precipices, with a climbing wall on one side and a continuous descent on the other, but it was solid and extended across from one ridge to the other. Because of this fact the three pushed their animals hard, knowing that it would not be long before they would have to be favored.

“I don’t know whether we are wise to keep this up as we are doing,” said the captain, “but I know there are few places where we can travel in the darkness and I feel like making the most of them.”

“It is only a question of what the horses are able to stand,” replied Brush; “it is easy enough for us to ride, but a very different thing for them to carry us. We must guard against their breaking down.”

“I will look out for that, but it is strange that when we were making ready to start we forgot one important matter.”

“What was that?”

“We did not bring a mouthful of food.”

“We shall have little trouble in shooting what game we need.”

“Perhaps not and perhaps we shall. The lieutenant and I found on our way from Sacramento that, although game appeared to be plenty, it had an exasperating habit of keeping out of range when we particularly needed it. Delay will be necessary to get food, and the reports of our guns are likely to give warning, just when it is dangerous.”

“It was a bad slip,” assented the parson; “for there was plenty of meat and bread at home; but we shall have to stop now and then to rest our animals and to allow them to feed and we can utilize such intervals by getting something for ourselves in the same line.”

“It isn’t that, so much as the risk of apprising the two of their danger. In addition, it will be strange if we get through the mountains without a fight with the Indians. According to my recollection, we shall strike a region tomorrow or on the next day, where there will be the mischief to pay.”

Two miles more of laborious work and another halt. For the first time Parson Brush showed excitement.

“Do you know,” he said, “that some one is following us? There may be several, but I am sure of one at least and he is on a horse.”

CHAPTER XVIII

A CLOSE CALL

Few situations are more trying than that of being followed at night by what we suspect is an enemy. The furtive glances to the rear show the foe too indistinctly for us to recognize him, and the imagination pictures the swift, stealthy attack and the treacherous blow against which it is impossible to guard.

There was little of this dread, however, in the case of our friends, for they felt strong enough to take care of themselves. Moreover, all three formed an instant suspicion of the identity of the man.

It was Felix Brush at the rear who first heard the faint footfalls, and, peering into the gloom, saw the outlines of a man and beast a few rods distant, coming steadily up the trail in the same direction with himself. A few minutes later the halt was made and all eyes were turned toward the point whence the man was approaching. He must have noticed the stoppage, but he came straight on until he joined the group.

“Howdy, pards,” was his greeting.

“I thought it was you, Vose,” said the captain, sharply; “what do you mean by following us?”

“What right have you to get in front of me? Don’t I have to make a trip to Sacramento three or four times each year?”

“But you are not accustomed to start in the night time.”

“And I never knowed it was your custom to leave New Constantinople in the middle of the night; leastways I never knowed you to do it afore.”

“We have important business,” added the captain brusquely, uncertain as yet whether he ought to be displeased or angered by the intrusion of Adams.

“So have I.”

“What is it?”

“Your good.”

“I don’t understand you; explain yourself.”

“There ain’t one of you three that knows the way through the mountains, and if you undertook it alone, it would take you three months to reach Sacramento.”

This was a new and striking view of the situation, but the parson said:

“Each of us has been over it before.”

“Sartinly, but one trip nor half a dozen ain’t enough. You lost your way the first hour in Dead Man’s Gulch; if you hadn’t done so, it would have took me a blamed sight longer to find you; there are half a dozen other places in the mountains ten times worse than the one where you flew the track. Howsumever, if you don’t want me, I’ll go back.”

And Vose Adams, as if his dignity had received a mortal hurt, began turning his mule around.

“Hold on,” interposed Captain Dawson; “you have put things in their true light; we are very glad to have you with us.”

“That makes it all right,” was the cheery response of the good natured Vose; “I never like to push myself where I ain’t wanted, but as you seem glad to see me, after having the thing explained, we won’t say nothing more about it. Howsumever, I may add that I obsarved you started in such a hurry that I thought it warn’t likely you fetched any vittles with you, so I made up a lunch and brought it with me, being as you may not always have time to spare to shoot game.”

The chilliness of Vose Adams’ greeting changed to the warmest welcome. He had shown more thoughtfulness than any of them, and his knowledge of the perilous route through the mountains was beyond value. Indeed, it looked as if it was to prove the deciding factor in the problem.

“Do you know our business, Vose?” asked the captain.

“I knowed it the minute I seen you sneaking off like shadows toward the trail. I hurried to my cabin, got a lot of cold meat and bread together and then hunted up Hercules, my boss mule. He isn’t very handsome, but he has a fine voice and has been through these mountains so many times that he

knows the right road as well as me. I knowed you would travel fast and didn't expect to overhaul you afore morning, but you went past the right turn and that give me a chance to catch up sooner."

"But how was it you suspected our errand?" persisted the captain.

"How could I help it? What else could it be? I seen the miss and the lieutenant start for Sacramento, and being as you took the same course it was plain that you was going there too, if you didn't overtake 'em first."

"You saw them start!" thundered the father of Nellie Dawson; "why didn't you hurry off to me with the news?"

"Why should I hurry off to you with the news?" coolly asked Vose Adams; "it wasn't the first time I had seen the two ride in that direction; sometimes she was with you, or with the parson or Ruggles, and once or twice with me. Would you have thought there was anything wrong if you had seen them?"

"No, I suppose not," replied the captain, seeing the injustice of his words; "but I have been so wrought up by what has occurred that I can hardly think clearly. I ask your pardon for my hasty words."

"You needn't do that, for I see how bad you feel and I'm sorry for you." 187

"When was it they left?"

"Early this afternoon."

"There was no one with them of course?"

"Nobody except that big dog they call Timon; he was frolicking 'round the horses, as if he enjoyed it as much as them."

Every atom of news was painful, and yet the afflicted father could not restrain himself from asking questions of no importance.

"About what hour do you think it was when they left?"

"It must have been near two o'clock when the lieutenant fetched up his horse and the pony belonging to the young lady. She must have been expectin' him, for she come right out of the house, without keeping him waitin' a minute. He helped her into the saddle, while they talked and laughed as happy as could be."

This was wormwood and gall to the parent, but he did not spare himself.

“Did you overhear anything said by them?”

“I wouldn’t have considered it proper to listen, even if they hadn’t been so far off I couldn’t catch a word that passed atween ’em.”

“Was there anything in their actions to show they intended to take a longer ride than usual?”

“I don’t see how there could be,” replied the puzzled Adams, while Parson Brush, understanding what the distraught captain meant, explained:

“Was there anything in their appearance which suggested that they meant to take anything more than an ordinary gallop?”

“I didn’t think of it at the time, but I can see now there was. Each of them had what seemed to be extra clothing and perhaps they had food, though I couldn’t make sure of that. You know there has been something in the sky that looked like a coming storm, and I thought it was on that account that the clothing was took along. Then, as the lieutenant had knocked off work, it might be he was not feeling very well.”

“The scoundrel made that very excuse for leaving me,” bitterly commented Captain Dawson, “but he wouldn’t have taken the clothing as part of the same design for there was no need of anything of the kind. They laid their plans carefully and everything joined to make it as easy as possible.”

“Your thoughts were precisely what ours would have been,” said the parson, drawn toward the messenger unjustly accused by the captain in the tumult of his grief; “if we had seen the two start, we should have believed it was for one of the usual gallops which the young lady is so fond of taking; but, Vose, if we would have certainly gone astray in the mountains, without your guidance, how will it be with them, when she has never been over the trail and he has ridden over it but once?”

“They are sure to have a tough time of it which will make it all the harder for us.”

“How is that?”

“Some good luck may lead them right; more than likely, howsumever, they’ll get all wrong; therefore, if we stick to the path we may pass ’em a

half dozen times. You see it's the blamed uncertainty of the whole business."

"I would not question your wisdom on such matters, Vose, but when I remember that each of them is riding a horse, and that the two must leave traces behind them, I cannot apprehend that we shall go very far astray in our pursuit. The most likely trouble as it seems to me is that they will travel so fast that it will be almost impossible to overtake them."

"If they can manage to keep to the trail, it is going to be hard work to come up with them. You haven't forgot that when I'm pushing through the mountains I sometimes have to hunt a new trail altogether."

"That is due to the trouble with Indians?"

"Precisely; sometimes it's a long, roundabout course that I have to take, which may keep me off the main course for a couple of days, or it may be for only a part of the day, but Injins is something that you must count on every time."

"And they are as likely to meet them as we?"

"More so, 'cause they're just ahead of you. Oh, it was the biggest piece of tomfoolery ever heard of for them to start on such a journey, but what are you to expect of two young persons dead in love with each other?"

This was not the kind of talk that was pleasing to the father, and he became morosely silent. It was equally repugnant to Ruggles and the parson to hear Nellie Dawson referred to as being in love with the execrated officer. Ruggles was grim and mute, and the parson deftly drew the conversation in another direction.

"I would like to ask you, Vose, how it was that Lieutenant Russell did not take the other horses with him, so as to make it impossible for anything in the nature of pursuit?"

"There might be two reasons; he may have thought it would be mean to hit you below the belt like that; he was too honorable—"

"It warn't anything like *that*," fiercely interrupted Ruggles.

"Then it must have been that if he had took all the animals with him, even though they was a considerable way down the gulch, the thing would have been noticed by others, who would have wanted to know what it meant."¹⁹¹

“No doubt you have struck the right reason. Had the start been in the night time, he would have made sure that not even the mules were left for us. But, Vose,” added the parson gravely, “we would be much better pleased if when you referred to the lieutenant, you said nothing about ‘honor.’”

“Oh, I am as much down on him as any of you,” airily responded Vose; “and, if I git the chance to draw bead on him, I’ll do it quicker’n lightning. Fact is, the hope of having that same heavenly privilege was as strong a rope in pulling me up the trail after you as was the wish to keep you folks from gettin’ lost. But, pards, Hercules is rested and I guess likely your animals are the same, so let’s be moving.”

Although Captain Dawson had been silent during the last few minutes, he did not allow a word to escape him. He knew Vose Adams was talkative at times, due perhaps to his enjoyment of company, after being forced to spend weeks without exchanging a word with any one of his kind, but there was no overestimating his value, because of his knowledge of the long, dangerous route through the mountains. When, therefore, the party were about to move on, the captain said:

“Vose, from this time forward you are the guide; the place for you is at the head; you will oblige me by taking the lead.”

Vose accepted the post of honor, which was also the one of peril, for it is the man in his position whose life hangs in the balance when Indians are concerned. But there was no hesitancy on his part, though he was well aware of the additional risks he incurred.

“There’s one good thing I can tell you,” he said, just before they started.

They looked inquiringly at him and he explained:

“The hardest part of the climbing is over,—that is for the time,” he hastened to add, seeing that he was not understood; “you’ll have plenty more of it before we see Sacramento, but I mean that we have struck the highest part of the trail, and it will be a good while before there’s any more climbing to do.”

“That is good news,” said Ruggles heartily, “for it has been mighty tough on the animals; I ’spose too, the trail is smoother.”

Adams laughed.

“I am sorry to say it’s rougher.”

Ruggles muttered impatiently, but the four took up the task, Adams in the lead, with the rest stringing after him in Indian file. The declaration of Vose was verified sooner than was expected. While the mule was so sure-footed that he seemed to meet with no difficulty, it was excessively trying to the horses, who stumbled and recovered themselves so often that Captain Dawson began to fear one or more of them would go lame. Still in his anxiety to get forward, he repressed his fears, hoping that there would be some improvement and cheering himself with the belief that since all had gone well for so long, it would continue on the same line.

Once, however, his horse made such an abrupt stumble that the captain narrowly saved himself from being unseated. On the impulse of the moment he called to Adams in advance:

“Vose, I am afraid this won’t do!”

The leader did not look around and acted as if he had not heard him.

“I say, Vose, isn’t it better that we should wait till our horses can see the way?”

Since the leader took no notice of this demand, the captain concluded his fears were groundless and said no more.

“If he thinks it safe for us to keep on, I shall not oppose.”

But Captain Dawson might have opposed, had he known the truth, for, strange as it may seem, Vose Adams did not hear the words addressed to him, because he was asleep on the back of his mule Hercules, as he had been many a time while riding over the lonely trail. In truth, there was some foundation for his declaration that he could sleep more soundly on the back of his animal than while wrapped up in his blanket in some fissure among the rocks. Fortunately for him, however, these naps were of short duration, and, while indulging in them, he relied upon his animal, which had acquired a wonderful quickness in detecting danger. The slightest lagging in his gait, a halt, a turning to one side or a whinny was sufficient to bring back on the instant the wandering senses of the rider. In the present instance his slumber was not interrupted until Hercules, seeing exactly where he was, dropped his walk to a lagging gait.

On the very second Vose Adams opened his eyes. So naturally that no one suspected anything, he checked his animal and looked around.

“Pards, we’ve reached a ticklish spot, and it’s for you to say whether we shall wait for daylight afore trying it.”

“What is its nature?” asked the captain, as he and the two behind him also reined up their animals.

“The trail winds through these peaks in front, and instead of being like that we’ve been riding over all along, keeps close to the side of the mountain. On the right is the solid rock, and on the left it slopes down for I don’t know how many hundred feet, afore it strikes bottom. Once started down that slide, you’ll never stop till you hit the rocks below like that mass of stone that tumbled over in front of you.”

“How wide is the path?” asked the parson.

“There’s more than a mile where it isn’t wide enough for two of us to ride abreast, and there are plenty of places where a horse has got to step mighty careful to save himself. Hercules knows how to do it, for he larned long ago, but I have my doubts about your hosses.”

“It might have been better after all if we had brought the mules,” said the captain.

“Not a bit of it, for Hercules is the only one that knows how to git over such places.”

“How do the others manage it?”

“They’ve never tried it in the night time; that’s what I’m talking ’bout.”

Adams’s description enabled the others to recall the place. It was all that had been pictured and they might well pause before assuming the fearful risk. One reason for wishing to press forward was the knowledge that at the termination of the dangerous stretch, the trail was so smooth and even that for a long distance it would be easy to keep their animals at a gallop, while still further the peril appeared again.

Captain Dawson once more struck a match and looked at his watch.

“Half-past three; in two hours it will begin to grow light; if no accident happens we shall be at the end of the ugly piece of ground by that time,

where the traveling is good. It is a pity to lose the opportunity, but I will leave it to you, parson and Ruggles; what do you say?"

"Our horses have been pushed pretty hard, but they are in good condition. I hate to remain idle."

"Then you favor going ahead?"

"I do."

"And you, Ruggles?"

"I feel the same way."

"That settles it; lead on, Vose."

"I'm just as well suited, but keep your wits about you," was the warning of the leader, whose mule instantly responded, stretching his neck forward and downward and occasionally snuffing the ground, as if he depended on his sense of smell more than that of hearing.

The task was a nerve-wrenching one, and more than once each of the three regretted their haste in not waiting for daylight; but, having started, there was no turning back. To attempt to wheel about, in order to retrace their steps, was more perilous than to push on, while to stand still was hardly less dangerous.

The moonlight gave such slight help that the four depended almost wholly upon the instinct of their animals. Hercules never faltered, but advanced with the slow, plodding, undeviating certainty of those of his kind who thread their way through the treacherous passes of the Alps. Once his hind hoof struck a stone which went bounding down the precipice on his left, until at the end of what seemed several minutes, it lay still at the bottom. Neither animal nor rider showed the least fear, for in truth both were accustomed to little slips like that.

"I'm blessed if this isn't the most ticklish business that I ever attempted," muttered Captain Dawson; "I never had anything like it in the army; it reminds me of scouting between the lines, when you expect every second a bullet from a sharpshooter—"

At that instant his horse stepped on a round, loose stone which turned so quickly that before he could recover himself the hoof followed the stone

over the edge of the precipice. The horse snorted and struggled desperately, and the brave rider felt an electric shock thrill through him from head to foot, for there was one moment when he believed nothing could save them from the most frightful of deaths.

The left hind leg had gone over the rocky shelf, which at that point was very narrow, and the hoof was furiously beating vacancy in the despairing effort to find something upon which to rest itself. His body sagged downward and the rider held his breath.

“Steady, my boy!” he called, and with rare presence of mind allowed the rein to lie free so as not to disconcert the steed.

The tremendous struggle of the intelligent animal prevailed and with a snort he recovered his balance and all four feet stood upon firm support.

“That was a close call,” observed the parson, whose heart was in his mouth, while the brief fight for life was going on.

“It was so close that it couldn’t have been any closer,” coolly commented the captain, fully himself again.

CHAPTER XIX

A COLLISION

At this moment, the cheery voice of Adams called:

“There’s only about a hundred yards more of this, but we’ve now struck the worst part of the whole trail.”

“If it is any worse than what we have just passed, it won’t do to try it,” replied Captain Dawson, with the memory of his recent thrilling experience still vivid with him.

“We can do it, but we must follow a different plan.”

“What is that?”

“We must lead our animals. There are plenty of places where you can get off your horses with more comfort, but we can’t stand here doing nothing. Get to the ground the best way you know how.”

It was clear that the advice of the guide would have to be followed, and all four set about the task with the cool daring shown from the first. Since each man was to lead his animal, it was necessary to dismount in front, instead of slipping over the tail, as would have been easier. The beasts showed striking sagacity in this delicate task. The trail was so narrow that to dismount to the left, on the side of the dizzying precipice, made it impossible for a man to keep his poise, while to descend on the right, directly beside the body of the animal was almost certain to crowd him over into the gorge. Each, therefore, lowered himself with infinite care over the right shoulder of his steed, so well forward, that the horse by turning his head to the left afforded just enough room for the trick to be done. Every one dismounted in safety, each drawing a breath of relief when the exquisitely delicate task was accomplished.

Looking around in the gloom, Vose Adams saw that his friends stood on the ground.

“Are you all ready?” he asked.

“Yes,” replied Brush from the rear.

“Hold the bridle so gentle that you can let go if your animal slips off: if he has to go over the precipice, there’s no need of your follering him.”

Each man took his Winchester in hand, and loosely grasping the bridle rein, began stealing forward, the captain’s loss compelling him to make his single arm answer for both purposes. The advance was necessarily slow, for it was made with the utmost care. The path could not have been more dangerous than for the brief stretch between them and the broad, safe support beyond.

Several times the trail so narrowed that each trembled through fear of not being able to keep his balance, while it seemed absolutely impossible for a horse to do so; but one of the strange facts connected with that intelligent animal is that, despite his greater bulk, he is generally able to follow wherever his master leads. So it was that when a miner carefully turned his head, he saw his steed following slowly but unfalteringly in his footsteps.

It was soon perceived that this perilous stretch did not take a straight course, but assumed the form of an immense, partial circle. When half way around, the plodders came in sight of a huge rent in the distant mountain wall, through which the sky showed nearly from the zenith to the horizon. In this immense V-shaped space shone the moon nearly at its full, and without a rift or fleck of cloud in front of its face.

A flood of light streamed through and between the encompassing peaks, tinging the men and animals with its fleecy veil, as if some of the snow from the crests had been sprinkled over them. On their left, the craggy wall sloped almost vertically downward, the projecting masses of rock displaying the same, fairy-like covering, ending in a vast, yawning pit of night and blackness, into whose awful depth the human eye could not penetrate.

On the right, the mass of stone, rock and boulder, rugged, broken and tumbled together, as if flung about by giants in sport, towered beyond the vision’s reach, the caverns, abysses and hollows made the blacker and more impenetrable by the moonlight glinting against the protruding masses.

It was as if a party of Titans had run their chisels along the flinty face of the mountain from the rear, gouging out the stone, with less and less

persistence, until they reached the spot where the men and animals were creeping forward, when the dulled tools scarcely made an impression sufficient to support the hesitating feet.

Captain Dawson was but a few paces to the rear of Vose Adams's mule, whose surety of step he admired and tried to imitate.

"Training seems able to accomplish anything," reflected the captain; "I remember how Lieutenant Russell and I stopped on the further edge of this infernal place when we reached it one forenoon and spent several hours trying to find a safer path. It kept us in a tremor until we were across. Had any one told me that on the next journey I should try it in the night, I would have believed him crazy, but," he grimly added, "I would have thought the same, if I had been told that a necessity like this would compel us to do so."

The bridle rein was looped over his elbow, which extended behind him, the same hand grasping his rifle, so that he advanced partly sideways over the treacherous trail. He attempted to do nothing but look after his own footsteps. Sometimes, when it was a little harder to pull the rein, he slackened his pace. It would not do to hurry the animal, since a slight disturbance might cause him to lose his footing. The horse knew what was required of him and would do it better by being left wholly to himself.

It was because of this concentration of his mind upon the one thing that the captain failed to perceive that the mule in his front had stopped walking, until the rim of his slouched hat touched the tail of the motionless animal.

"Helloa, Vose, what's the matter?"

The guide said something, but kept his face turned away, and his words, instead of being in the nature of an answer, were addressed to some one who confronted him. Adams was of slight stature, so that, although he stood erect, it was easy for the captain to look over his head and see what was beyond. That which was thus revealed was another horseman leading his animal and coming toward them. He was advancing in the same manner as the miners, that is by leading his horse, and, meeting our friends thus face to face, it was impossible for either party to pass: one or the other must give way and retreat.

A startling feature of this meeting was that the individual who thus confronted them was an Indian of gigantic stature. He was more than six

feet in height and of massive proportions. He belonged to what were known³⁰⁴ as the "mountain Indians," who were brave and of irrestrainable ferocity. They were the most dangerous people met by the miners in the early days on the Pacific slope.

Equity demanded that this particular specimen should back his horse over the few yards to the point where the trail broadened, for the task was possible of accomplishment, while the white men were unable to force their animals in safety for one-half of the distance behind them. Moreover, it was evident that this Indian had deliberately started over the trail, with the knowledge of the four white men approaching, so that a meeting was inevitable. He courted an encounter with them and was in a murderous mood.

Vose Adams knew all this and recognized the warrior as one of the dreaded Indians, with whom he was better acquainted than were his friends. He had had several scrimmages with them on his trips through the mountains, and held them in such wholesome fear that he contrived to avoid a direct conflict. The diminutive miner overflowed with pluck, but in a hand to hand encounter, must be only a child in the grasp of the aboriginal giant. The present situation, however, was peculiar.

There can be no doubt that this savage sought the meeting with the party, for on no other supposition can his acts be explained. He must have³⁰⁵ reasoned that on the narrow ledge his enemies would have to meet him one by one and engage him single handed. He was like a chamois that had lived all its life in these wild solitudes and was surer-footed than any white man. What a triumph it would be (and was it unreasonable to expect it?) for him to slay the insignificant pale face immediately in his front, shove his mule over the precipice, and then serve the remaining three in same fashion!

"Get out of this!" were the words which Vose Adams addressed to the Indian, directly after the question of Captain Dawson to himself, and when the enemies were within six feet of each other; "there isn't room for both of us; you knew that before you started; one of us has got to give way and I'll be hanged if I do!"

Inasmuch as the red man did not understand a word of English, it is not to be supposed that he grasped the whole meaning of this command, but the situation must have made it evident that he had been ordered to back his

horse and to open a way for the white men, and inasmuch as he had come upon the trail for the express purpose of bringing about this encounter, it seems hardly necessary to say that he failed to obey the order. Instead, he repeated some words in his own language, which it is not unlikely were of the same import as those addressed to him, for he resolutely maintained his place.

“I tell you,” added Vose, raising his voice, as if that could help make his meaning clear; “if you don’t do as I say, somebody is going to get hurt!”

The warrior, who was carrying a rifle, stooped and gently let it fall beside him. At the same moment he let go of the thong which served as a bridle. Thus both hands were free and he crouched down with his hideous face thrust forward and took a slow, half-step toward Adams.

The coarse black hair dangling loosely about his shoulders, the broad frightful countenance, which, however, was devoid of paint, the glittering, basilisk-like eyes, the sinewy half-bent finger, with the right fingers closed like a vise around the handle of the knife at his waist, while gently drawing it forth, the catlike advance,—all these made him so terrible an enemy that the bravest man might well doubt the result of a meeting with him.

And yet the closest scrutiny of Vose Adams would not have discovered any tremor in his frame, or so much as a blanching of his face. He fully comprehended the nature of the peril that impended, but with the cool readiness of a veteran, he had fixed upon his line of action, in the same moment that he read the purpose of his formidable enemy.

The preliminary actions of the guide were similar to that of the warrior. The bridle rein dropped from his hand, and, slightly stooping, he let his Winchester fall to the ground beside him. Then his knife flashed out and he was ready.

Since only the mule was between Captain Dawson and the combatants, he observed all this and interpreted its meaning.

“Vose, what do you mean to do?” he sharply asked.

“Have a little dispute with the fellow,” replied Adams, without removing his gaze from the face of the savage.

“You mustn’t do it.”

“It sorter looks as if it can’t be helped, captain.”

“I shall prevent it.”

“How?”

“Thus!”

The captain had laid down his rifle and drawn his revolver, in the use of which he was an expert. While thus engaged, he stooped down, so that the interposing body of the mule, prevented the Indian from observing what he was doing. When his weapon was ready and just as he uttered his last word, he straightened up like a flash. Adams being of short stature and in a stooping posture, gave him just the chance he needed. His single arm was extended with the quickness of lightning and he fired. The bullet bored its way through the bronzed skull of the Indian, who, with an ear-splitting screech, flung his arms aloft, leaped several feet from the ground, toppled sideways over the edge of the trail and went tumbling, rolling and doubling down the precipice far beyond sight, into the almost fathomless abyss below.

“That’s what I call a low down trick!” was the disgusted exclamation of Adams, looking round with a reproachful expression.

“Do you refer to the Indian?” asked the captain.

“No; to you; I had just got ready for him and had everything fixed when you interfered.”

“Vose, you are a fool,” was the comment of his friend.

“And why?”

“That fellow was twice as big as you and you hadn’t an earthly chance in a fight with him.”

“Do you ’spose that is the first time I ever met a mountain Injin?”

“You never fought one of that size in this spot.”

“What difference does the spot make?”

“I want you to understand,” said the captain with assumed gravity, “that I didn’t interfere out of any regard for you.”

“What the mischief are you driving at?” demanded the puzzled guide.

“Under ordinary circumstances, I would have stood by and watched the flurry, only wishing that the best man might win. That means, of course, that you would have been the loser. But we need some one to guide us through the mountains; you haven’t done it yet; when your work is over you may go and live on wild Indians for all I care.”

Vose quickly regained his good nature. He returned his knife to its resting place, picked up his rifle, grasped the bridle rein and gently pulled.

“Come, Hercules; I don’t know whether they appreciate us or not; steady now!”

“What are you going to do with that horse in front of you?” asked the captain.

“Hang it! if I didn’t forget about him; back with you!” he commanded with a gesture, moving toward the animal, who showed the intelligence of his kind, by retrograding carefully until he reached the broad safe place so anxiously sought by the others. There he wheeled and trotted off, speedily disappearing from sight.

“Vose, you might have traded Hercules for him.”

“Not much! I wouldn’t give that mule for a drove of horses that have belonged to these mountain Injins.”

“What’s the matter with them? Aren’t they as good as ours?”

“They’re too good; you can’t tell what trick they’ll sarve you; I was once riding through these very mountains, on the back of a horse that I picked up—it isn’t necessary to say how—when his owner gave a signal and the critter was off like a thunderbolt. If I hadn’t slipped from his back at the risk of breaking my neck, he would have carried me right into a camp of hostiles and you would have been without your invaluable guide on this trip.”

“That is important information—if true—helloa! it is growing light off there in the east!”

“Yes,—day is breaking,” added Vose.

The captain looked at his watch and found the time considerably past five o’clock. They had been longer on the road than any one supposed, and the coming of morning was a vast relief to all.

The party were now grouped together, for the trail was broad and safe. Parson Brush asked, as he pointed almost directly ahead:

“Isn’t that a light off yonder?”

The guide gazed in that direction and replied:

“Yes, but it comes from a camp fire, which isn’t more than a half mile away.”

The men looked in one another’s faces and the captain asked in a guarded voice, as if afraid of being overheard:

“Whose fire is it?”

“There’s no saying with any sartinty, till we get closer, but I shouldn’t be ’sprised if it belong to the folks you’re looking for.”

The same thought had come to each. There was a compression of lips, a flashing of eyes and an expression of resolution that boded ill for him who was the cause of it all.

In the early morning at this elevation, the air was raw and chilling. The wind which blew fitfully brought an icy touch from the peaks of the snow-clad Sierras. The party had ridden nearly all night, with only comparatively slight pauses, so that the men would have welcomed a good long rest but for the startling discovery just made.

Over the eastern cliffs the sky was rapidly assuming a rosy tinge. Day was breaking and soon the wild region would be flooded with sunshine. Already the gigantic masses of stone and rock were assuming grotesque form in the receding gloom. The dismal night was at an end.

The twinkling light which had caught the eye of Felix Brush appeared to be directly ahead and near the trail which they were traveling. This fact strengthened the belief that the fire had been kindled by the fugitives. The illumination paled as the sun climbed the sky, until it was absorbed by the overwhelming radiance that was everywhere.

The pursuers felt well rewarded for the energy they had displayed in the face of discouragement and danger. Valuable ground had been gained, and even now when they had supposed they were fully a dozen miles behind the

fugitives, it looked as if they had really caught up to them, or at least were within hailing distance.

Every eye was fixed on the point which held so intense an interest for them. As the day grew, a thin, wavy column of smoke was observed ascending from the camp fire, which was partly hidden among a growth of scrub cedars, some distance to the right of the trail, whither it must have been difficult for the couple to force their horses.

“That lieutenant ought to have knowed better than to do that,” remarked Vose Adams, “his fire can be seen a long way off.”

“What else could they do?” asked the captain.

“The rocks give all the cover he needs.”

“But they could have no idea that we were so near,” suggested the parson.

“It isn’t that, but the lieutenant had ’nough ’sperience with Injins on his way through here before to know he’s liable to run agin them at any time. I never dared to do a thing like that on my trips.”

“Let’s push on,” said the captain, who saw no reason for tarrying now that they had located the game.

The ground was so much more favorable that the animals were forced to a canter, though all were in need of rest. Little was said, and Captain Dawson spurred forward beside Adams, who as usual was leading.

Wade Ruggles and Parson Brush also rode abreast. They were far enough to the rear to exchange a few words without being overheard.

“From the way things look,” said Brush; “we shall have to leave everything with the captain and he isn’t likely to give us anything to do.”

“He’s mad clean through; I don’t b’leve he’ll wait to say a word, but the minute he can draw bead on the lieutenant, he’ll let fly.”

“He is a fine marksman, but he may be in such a hurry that he’ll miss.”

“No fear of that; I wonder,” added Ruggles, startled by a new thought, “whether Vose has any idee of stickin’ in his oar.”

“Likely enough.”

“I must git a chance to warn him that we won’t stand any nonsense like that! The best that we’ll do is to promise him a chance for a crack after you and me miss.”

“That won’t be any chance at all,” grimly remarked the parson.

“Wal, it’s all he’ll have and he mustn’t forgit it. There’s some things I won’t stand and that’s one of ’em.”

“We can’t do anything now, but we may have a chance to notify him. If the opportunity comes to me, he shall not remain ignorant.”

They were now nearly opposite the camp and the two noticed with surprise that Adams and the captain were riding past it.

“What’s that fur?” asked the puzzled Ruggles.

“That’s to prevent them from fleeing toward Sacramento. When they find we are on the other side, they will have to turn back.”

This was apparently the purpose of the men in advance, for they did not draw rein until a hundred yards beyond the camp. Suddenly the two halted, and half-facing around, waited until Brush and Ruggles joined them. The explanation of the guide showed that his plan had been rightly interpreted by Parson Brush.

CHAPTER XX

THE CAMP FIRE

The trail, as has been stated, was broad and comparatively level. The slope of the mountain to the right was so moderate that it could be climbed by a horse almost as readily as by a man. Its face was covered with a growth of cedars, continuing half way to the summit, when it terminated, only bleak masses of rock, sprinkled with snow, whose volume increased with the elevation, being visible above and beyond.

When the four pursuers came together, their faces showed that they comprehended the serious business before them. It was seen that Captain Dawson was slightly pale, but those who had been with him in battle had observed the same peculiarity. Accompanied, as it was in this instance, by a peculiar steely glitter of his eyes, it meant that he was in a dangerous mood and the man who crossed his path did so at his peril.

It was evident that he and Vose Adams had reached an understanding during the few minutes that they were riding in advance. The words of Vose Adams were spoken for the benefit of Ruggles and the parson.

“You’ll wait here till I take a look at things.”

“What do you mean to do?” asked Brush.

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“I’m going up the slope on foot to find out how the land lays.”

“And when you find that out, what next?”

“He is to come back and report to me,” interposed the captain.

There was a world of meaning in these words. It showed that the captain allowed Adams to lead only when acting as a guide. In all other matters, the retired officer assumed control. The opportunity of Vose to pick off the offending lieutenant promised to be better than that of any one else, since he would first see him, but he had been given to understand that he must immediately return and let the captain know the situation. Adams had promised this and he knew Dawson too well to dare to thwart him.

Brush and Ruggles could make no objection, keen though their disappointment was. They watched Adams, as he slipped off his mule, not deeming it worth while to utter the warning both had had in mind. It was the parson who said:

“I suppose we have nothing to do except to wait here till you come back?”

“It looks that way, but you must ask the captain.”

“You won’t be gone long?”

“I don’t think so.”

“Be careful, but there’s no need of waiting,” said the captain.

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The three watched the guide until he disappeared from sight among the cedars, when the captain added:

“Vose told me that it was possible that camp fire had been started by Indians, but it seems to me there is little likelihood of that.”

“Why?”

“Those people are so skilled in woodcraft that they would have been on the alert against our approach, for a brief survey of the trail for the last half hour would have revealed us to them.”

“It may be,” suggested the parson, “that with every reason to believe there is no danger of anything of the kind, for it must be rare that a white man passes along this trail, they did not keep a lookout.”

The captain shook his head.

“From what I know of the American race, it is unlike them.”

“What knowledge have we that they have not maintained such a lookout and discovered us as soon as we noticed the camp fire itself? They may have formed an ambuscade at some point further along the trail.”

“It is a disturbing possibility and I would be alarmed, but for my confidence in Vose. He has been through this region so often and knows these wild people so thoroughly that he could not commit a blunder like that. It seems to me,” added the captain a few minutes later, “that he is absent a long time.”

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“It’s tough,” remarked Ruggles, “that things are fixed so we won’t have a chance to take any hand in this bus’ness.”

The captain looked inquiringly at him and he explained:

“You and Vose have set it up atween you.”

“I have told you that if your help is needed, it will be welcome; I can add nothing to that.”

“The captain is right,” interposed the parson, “but at the same time, he can see what a disappointment it is for us.”

“I admit that, but we are not out of the woods yet.”

Before he could make clear the meaning of this remark, Vose Adams emerged from the cedars, and the three breathlessly awaited his coming. He broke into a trot and quickly descended the slope to where they stood. The expression of his face showed before he spoke that he brought unwelcome news.

“Confound it!” he exclaimed with a shake of his head, “they’re not there!”

“Then they have gone on up the trail,” said the captain inquiringly.

“No; they haven’t been there; it isn’t their camp.”

“Whose is it?”

“Injins; there are five of ’em; they’ve just had their breakfast and are gettin’ ready to make a start.”

“Didn’t they see you?”

“That isn’t the way I do bus’ness,” replied Vose rather loftily; “it’s more’n likely, howsumever, they seen us all awhile ago when we was further down the trail. They’re traveling eastward.”

“How can you know that?” asked the parson.

“The Injin that took his dive off the trail ’bout the time the captain fired off his revolver, was going that way. He b’longed to the party and was sorter leading ’em; he was a chief or something of the kind.”

“Where are their ponies?”

“They haven’t any,—leastways he was the only one that had, which is why I said he was some kind of a chief. We shall hear from ’em agin.”

“Why?”

“I mean after they find out about that little row.”

“Why need they find out about it?”

“They can’t help it; they’ll miss their chief; they’ll run across that horse of his and that’ll give ’em the clue.”

This unexpected discovery put a new face on matters. Five mountain Indians, the bravest and most implacable of their race, were almost within stone’s throw of the party. But for the occurrence of a brief while before, they probably would have permitted the white men to continue their journey unmolested, since the strength of the two bands, all things considered, was about equal, but when the hostiles learned of the death of their leader, they would bend every effort toward securing revenge. They would dog the miners, watchful, alert and tireless in their attempts to cut them off from the possibility of ever repeating the deed.

“But that chief, as you seem to think he was,” said Captain Dawson, “is gone as utterly as if the ground had opened and swallowed him. They will never have the chance to officiate at his funeral, so how are they to learn of the manner of his taking off?”

“It won’t take ’em long,” replied Adams; “his pony will hunt them out, now that he is left to himself; that’ll tell ’em that something is up and they’ll start an investigatin’ committee. The footprints of our horses, the marks on the rocks, which you and me wouldn’t notice, the fact that we met the chief on that narrer ledge and that he’s turned up missing will soon lay bare the whole story, and as I remarked aforesaid, we shall hear from ’em agin.”

“It looks like a case of the hunter hunting the tiger,” said the parson, “and then awaking to the fact that the tiger is engaged in hunting him; it is plain to see that there’s going to be a complication of matters, but I don’t feel that it need make any difference to us.”

“It won’t!” replied the captain decisively; “we haven’t put our hands to the plough with any intention of looking back. What’s the next thing to do, Vose?”

“We’ve got to look after our animals.”

“But there’s no grass here for them.”

“A little further and we’ll strike a stream of water where we’ll find some grass, though not much, but it’s better than nothing.”

Vaulting into the saddle, the guide after some pounding of his heels against the iron ribs of Hercules, forced him into a gallop, which the others imitated. The trail continued comparatively smooth, and, being slightly descending, the animals were not crowded as hard as it would seem. A mile of this brought them to the water, where they were turned loose. The stream gushed from the mountain side, and, flowing across the trail, was lost among the rocks to the left. The moisture thus diffused produced a moderate growth of tough, coarse grass, which the animals began plucking as soon as the bits were removed from their mouths. They secured little nutriment, but as the guide remarked, it was an improvement upon nothing. The men bathed their faces in the cold, clear water, took a refreshing draught, and then ate the lunch provided for them by the thoughtful Adams. Though they ate heartily, sufficient was kept to answer for another meal or two, if it should be thought wise to put themselves on an allowance.

They had just lighted their pipes, when Wade Ruggles uttered ²²³an exclamation. Without explaining the cause, he bounded to his feet and ran several rods to the westward, where he was seen to stoop and pick something from the ground. He examined it closely and then, as he turned about and came back more slowly it was perceived that he held a white handkerchief in his hand. His action caused the others to rise to his feet.

“What have you there?” asked Captain Dawson, suspecting its identity.

“I guess you have seen it before,” replied Wade, handing the piece of fine, bordered linen to him. He turned it over with strange emotions, for he was quick to recognize it.

“Yes,” he said, compressing his lips; “it is hers; she dropped it there—how long ago, Vose?”

The latter examined the handkerchief, as if looking for the answer to the question in its folds, but shook his head.

“Even a mountain Injin could not tell that.”

The parson asked the privilege of examining the article. His heart was beating fast, though no one else was aware of it, for it was a present which he had made to Nellie Dawson on the preceding Christmas, having been brought by Vose Adams, with other articles, on his trip made several months before the presentation. There was the girl's name, written by himself in indelible ink, and in his neat, round hand. It was a bitter reflection that it had been in her possession, when she was in the company of the one whom she esteemed above all others.

"It may have been," reflected the parson, carefully keeping his thoughts to himself, "that, when she remembered from whom it came, she flung it aside to please him. Captain," he added, "since this was once mine, I presume you have no objection to my keeping it."

"You are welcome to it; I don't care for it," replied the parent.

"Thank you," and the parson carefully put it away to keep company with the letter of Nellie Dawson which broke her father's heart; "I observe that it is quite dry, which makes me believe it has not been exposed to the dew, and therefore could not have lain long on the ground."

"You can't tell anything by that," commented Vose; "the air is so dry up here, even with the snow and water around us, that there's no dew to amount to anything."

All seemed to prefer not to discuss the little incident that had produced so sombre an effect upon the party. Wade Ruggles was disposed to claim the handkerchief, inasmuch as it was he who found it, but he respected the feelings of the parson too much to make any protest.

The occurrence was of no special interest to the guide. He had said they were in danger from the Indians and he gave his thoughts to them. While the others kept their seats on the ground, he stood erect, and, shading his eyes with one hand, peered long and attentively over the trail behind them. The clump of cedars from amid which the thin column of vapor was slowly climbing into the sky and the narrow ledge which had been the scene of their stirring adventure were in view, though its winding course shut a portion from sight.

"I expected it!" suddenly exclaimed Vose.

The others followed the direction of his gaze and saw what had caused his words. The five Indians, whom Vose had discovered in camp, were picking their way along the ledge, with their faces turned from the white men, who were watching them. Despite the chilly air, caused by the elevation, not one of the warriors wore a blanket. Two had bows and arrows, three rifles, carried in a trailing fashion, and all were lithe, sinewy fellows, able to give a good account of themselves in any sort of fight.

A curious fact noted by all of our friends was that while these warriors were thus moving away, not one of them looked behind him. Their long black hair hung loosely about their shoulders, and in the clear air it was observable that three wore stained feathers in the luxuriant growth on their crowns.

“Is it possible that they have no suspicion of us?” asked the parson; “their action in not looking around would imply that.”

“Don’t fool yourself,” was the reply of Adams; “they knowed of us afore we knowed anything of them.”

“Why did they allow us to pass their camp undisturbed?”

“Things weren’t in the right shape for ’em. There are only three guns among ’em, though them kind of Injins are as good with the bow as the rifle, and they made up their minds that if we let them alone, they wouldn’t bother us.”

“You said awhile ago that we should have trouble from them.”

“And so we shall; when they reasoned like I was sayin’, they didn’t know anything about the little accident that happened to their chief; it’s that which will make things lively.”

“We can’t see the point where that accident took place,” said Captain Dawson.

“No; the trail curves too much, but we can foller it most of the way; they’re likely to go right on without ’specting anything, but when they find the horse, it’ll set ’em to looking round. After that, the band will begin to play.”

While the party were watching the five Indians, the leader was seen to pass from view around the curve in the trail, followed by the next, until finally the fifth disappeared. All this time, not one of the warriors looked behind

him. It was a singular line of action, and because of its singularity roused the suspicion of the spectators.

While three of the miners resumed their seats on the boulders and ground, Vose Adams kept his feet. Doubling each palm, so as to make a funnel of it, he held one to either eye and continued scrutinizing the point where he had last seen the hostiles. He suspected it was not the last of them. Instead of imitating him, his friends studied his wrinkled countenance.

The air in that elevated region was wonderfully clear, but it is hardly possible to believe the declaration which the guide made some minutes later. He insisted that, despite the great distance, one of the Indians, after passing from view, returned over his own trail and peeped around the bend in the rocks, and that the guide saw his black hair and gleaming snake-like eyes. The fact that Vose waited until the savage had withdrawn from sight, before making the astonishing declaration, threw some discredit on it, for it would have required a good telescope to do what he claimed to have done with the unassisted eye alone.

“You see I was looking for something of the kind,” he explained, “or maybe I wouldn’t have observed him.”

“Could you tell the color of his eyes?” asked the doubting Ruggles.

“They were as black as coal.”

“It is safe to say that,” remarked the parson, “inasmuch as I never met an Indian who had eyes of any other color.”

“There are such,” said Vose, “and I’ve seen ’em, though I’ll own they’re mighty scarce and I never knowed of any in this part of the world. Howsumever, I won’t putend that I could see the color of a man’s eyes that fur, but I did see his hair, forehead and a part of his ugly face. He knowed we was behind him all the time, and this one wanted to find out what we was doing. When he larned that, they kept on along the ledge, but there’s no saying how fur they’ll go afore they find something’s gone wrong.”

Captain Dawson showed less interest in this by-play than the others. He was not concerned with what was behind them, so much as with what was in front. The belief was so strong with him that their persistent travel through the night had brought them close to the fugitives that he begrudged the time necessary for the animals to rest and eat.

Parson Brush felt that Adams was acting wisely in giving attention to the rear. It would be the height of folly to disregard these formidable warriors when they meant trouble. Brush rose to his feet and using his palms as did the guide, scanned the country behind them.

He saw nothing of any warrior peering around the rocks, but he did see something, which escaped even the keen vision of Vose Adams himself. Beyond the ledge and a little to the left, he observed a riderless horse, with head high in air, and gazing at something which the two white men could not see. The parson directed the attention of Vose to the animal.

“By gracious! it’s the chief’s horse,” he exclaimed; “do you see that?”

The other two were now looking and all plainly saw a warrior advance into view, approaching the animal, which, instead of being frightened, seemed to recognize his friends, and remained motionless until the Indian came up and grasped the thong about his neck. Then the two passed from sight.

The identical thing prophesied by Vose Adams had occurred under the eyes of the four pursuers. The steed of the dead chieftain had been recovered, and it would not take the hostiles long to penetrate the mystery of the matter. Vose was wise in taking the course he did, and his companions were now inclined to believe his astonishing assertion that he saw one of the number when he peeped around the curving ledge and watched their actions.

However, it would have been absurd to wait where they were in order to learn every move of their enemies, for that would have been a voluntary abandonment of the advantage secured at the cost of so much labor and danger. Captain Dawson insisted that the pursuit should be pressed without any thought of the red men, and Vose consented.

“But there’s one thing we mustn’t forget, captain,” he said, “and that is that it is daytime and not night.”

“I do not catch your meaning,” replied the captain, pausing on the point of moving off to secure his horse.

“It is this: them people in front will keep as sharp an eye to the rear as to the front; more’n likely it will be sharper, and it will be a bad thing if they discover us when we’re two or three miles off.”

“How shall we prevent it?”

“We can do it, if we’re careful. You’ll remember that when you went over this route last, you come upon places where you could see for a mile or more, ’cause the trail was straight and broad, while there are others where you can’t see more’n a hundred yards. Them that I’ve named last is where we must overhaul ’em.”

“That sounds well, Vose,” said the captain, “but I am unable to see how you are going to manage so as to bring that about.”

“While you’re getting the animals ready, I’ll take a look ahead.”

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This was not in the nature of an explanation, but the three willingly did their part. Vose disappeared almost instantly, and, though they took but a few minutes to prepare their animals for the resumption of travel, he was back among them, the expression of his face showing that he brought news of importance.

“They ain’t fur off,” he said.

“How far?” asked the captain.

“I can’t say anything more than that we’re purty close to ’em. Let’s push on!”

CHAPTER XXI

STRANGERS

The signs of an approaching storm that had been noted with some apprehension the night before, passed away. The sky revealed hardly a cloud rift, and, when the sun had climbed the mountain crests, the scene was grand beyond description. But for the grim errand of the four men, holding relentlessly to the pursuit, they must have yielded to its impressive influence.

The trail remained so favorable for a couple of miles further, that it was passed at the same easy, swinging gallop. Vose Adams retained his place a few paces in advance of the others, who saw him glance sharply to the right and left, often to the ground and occasionally to the rear, as if to assure himself that none of his friends was going astray.

The moderate but continuous descent of the path took them so far downward that the change of temperature again became noticeable. The ground was rough and uneven and the animals dropped to a walk. Sometimes the course led around boulders, through sparse growths of cedar, beside brawling torrents, two of which they were compelled to ford, where it was hard for their animals to keep their feet.

“Last fall,” remarked the guide, at the most difficult of these passages, “I had to wait two days before I dared try to cross with Hercules and one of the other mules.”

His companions nodded their heads but made no other answer. They were not in the mood for talking.

They were now making their way through a cañon similar to Dead Man’s Gulch, with rents and yawning ravines opening on the right and left, before which the party might have halted in perplexity, had it been in the night time. But the path showed plainly and the familiarity of the guide prevented any mistake on his part.

Adams had intimated that by a certain line of procedure the watchful fugitives could be prevented from discovering the approach of the pursuers until too late to escape them. In counting upon his ability to do this, he overestimated his skill, for the task was clearly impossible, and it was because of his efforts in that direction that he made a serious blunder. He had crossed for the third time a stream which was shallow, and, upon reaching the opposite bank, where the ground was moist and soft, he reined up with an exclamation of impatience.

“What’s the matter?” asked Captain Dawson, in the same mood.

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“We’ve passed ’em,” was the reply; “they’re somewhere behind us.”

“How far?”

“That remains to be found out, but I don’t think it’s a great distance.”

The captain angrily wheeled his horse and re-entered the stream.

“If they don’t get away, it won’t be our fault,” was his ungracious comment; “we have done little else than throw away our chances from the first.”

The guide made no response, and the next minute the four were retracing their course, their animals at a walk, and all scanning the rocks on either hand as they passed them.

It was clear by this time that the fugitives held one important advantage over their pursuers. The route that they were following was so devious and so varied in its nature, that only at rare intervals could it be traced with the eye for a quarter or half a mile. Certain of pursuit, Lieutenant Russell and his companion would be constantly on the lookout for it. They were more likely, therefore, to discover the horsemen than the latter were to observe them. Even if their flight was interrupted, there were innumerable places in this immense solitude where they could conceal themselves for an indefinite period.

The question the pursuers asked themselves was whether the others had strayed unwittingly from the trail, or whether they had turned off to elude their pursuers, whose desperate mood they could not but know. The latter supposition seemed the more likely, since the path was marked so plainly that it could be lost only by unaccountable carelessness.

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At the first break in the side of the vast mountain walls Vose Adams again slipped from his mule and spent several minutes in studying the ground.

“They haven’t gone in here,” was his comment, as he remounted.

“Make certain that we are not too far back,” said the captain.

“I have made no mistake,” was the curt reply of the guide. The party had gone less than twenty rods further, when another rent opened on the other side of the cañon, which was about an eighth of a mile wide. It would not do now to slight anything, and Adams headed his mule diagonally across the gorge, the animal walking slowly, while the rider leaned over with his eyes on the ground. Suddenly he exclaimed:

“We’ve hit it this time! Here’s where they went in!”

All four leaped from the back of their animals. Adams pointed out the faint indentations made by the hoofs of two horses. Less accustomed than he to study such evidence, they failed to note that which was plain to him; the hoof prints of one of the animals were smaller than those of the other, since they were made by Cap, the pony belonging to Nellie Dawson. There could no longer be any doubt that the pursuers were warm on the trail of the fugitives.

Such being the fact, the interest of the men naturally centered on the avenue through which the others had made their way.

It was one of those fissures, sometimes seen among enormous piles of rock, that suggest that some terrific convulsion of nature, ages before, has split the mountain in twain from top to bottom. The latter was on a level with the main cañon itself, the chasm at the beginning being ten or twelve yards in width, but, occurring in a depression of the mountain spur, its height was no more than five or six hundred feet, whereas in other localities it would have been nearly ten times as great. The base was strewn with fragments of sandstone, some of the pieces as large as boulders, which had probably been brought down by the torrents that swept through the ravine in spring or when a cloudburst descended upon the upper portion.

Standing at the entrance, it was observed that the gorge trended sharply to the left, so that the view was shut off at a distance of fifty yards. It was noticeable, too, that the path taken by the fugitives sloped upward at so abrupt an angle that it must have sorely tried the horses.

“I thought so,” was the comment of Vose Adams, when he returned from a brief exploration of the ravine; “they got off and led their animals.”

“Have you any idea of the distance they went?” asked Captain Dawson, who was in a more gracious mood, now that he appreciated the value of the services of their guide.

“No; I’ve rid in front of that opening a good many times, but this is the first time I ever went into it.”

“Well, what is to be done?” asked Parson Brush.

“Why, foller ’em of course,” Wade Ruggles took upon himself to reply.

“That won’t do,” replied Adams, “for it is likely to upset everything; I’ll leave Hercules with you and sneak up the gorge far enough to find how the land lays. I’ll come back as soon as I can, but don’t get impatient if I’m gone several hours.”

Brush and Ruggles showed their displeasure, for, while admitting the skill of the guide, they could not see adequate cause for the impending delay. They had made so many slips that it seemed like inviting another. It was clear that they were close upon the fugitives, and the two believed the true policy was to press the pursuit without relaxing their vigor. But Captain Dawson, the one who naturally would have been dissatisfied, was silent, thereby making it apparent that Adams was carrying out a plan previously agreed upon by the two.

Vose paid no heed to Ruggles and the parson, but started up the ravine, quickly disappearing from view. Believing a long wait inevitable, the three prepared to pass the dismal interval as best they could. Here and there scant patches of grass showed in the cañon, and the animals were allowed to crop what they could of the natural food. The men lounged upon the boulders at hand, smoked their pipes and occasionally exchanged a few words, but none was in the mood for talking and they formed a grim, stolid group.

Hardly ten minutes had passed, when Ruggles, with some evidence of excitement, exclaimed in a guarded undertone:

“Helloa! Something’s up!”

He referred to the horses, who are often the most reliable sentinels in the presence of insidious danger. Two of them had stopped plucking the grass,

and, with their ears pricked, were staring up the cañon at some object that had attracted their attention and that was invisible to their owners in their present situation.

Convinced that something unusual had taken place, Ruggles walked out into the cañon where he could gain a more extended view. One sweeping glance was enough, when he hurried back to his companions.

“Thunderation! all Sacramento’s broke loose and is coming this way!” 238

The three passed out from the side of the gorge to where they had a view of the strange procession. There seemed to be about a dozen men, mounted on mules, with as many more pack animals, coming from the west in a straggling procession, talking loudly and apparently in exuberant spirits.

“I don’t like their looks,” said Brush; “it is best to get our property out of their way.”

The counsel was good and was followed without a minute’s delay. The four animals were rounded up and turned into the ravine, up which Vose Adams had disappeared. They gave no trouble, but, probably because of the steepness of the slope, none of the four went beyond sight. Had the three men been given warning, they would have placed them out of reach, for none knew better than they how attractive horses are to men beyond the power of the law. But it was too late now, and the little party put on a bold front.

As the strangers drew near, they were seen to be nine in number and they formed a motley company. Their pack mules were so cumbrously loaded as to suggest country wagons piled with hay. The wonder was how the tough little animals could carry such enormous burdens, consisting of blankets, picks, shovels, guns, cooking utensils, including even some articles of furniture.

Our older readers will recall that for years after the close of the war, tens of thousands of the blue army overcoats were in use throughout the country. It looked as if every man in the present company was thus provided, including in many instances trousers of the same material, though each person had discarded the army cap for a soft slouch hat, similar to those worn by the miners. All the garments were in a dilapidated condition, proving their rough usage as well as their poor quality. Many of the heavy boots 239

disclosed naked toes, while the mules had not known a curry comb for weeks and perhaps months.

The faces of the men were anything but attractive. Most of them were heavily bearded, with long, frowsy, unkempt hair, dangling about the shoulders. Every one displayed side arms, and there could be no mistake in setting them down as a reckless lot, whom a peaceable citizen would not care to meet anywhere.

The leader of this mongrel gang was a massive man, who bestrode so small a mule that his feet were only a few inches from the ground. There was little semblance of discipline in the company, but a certain rude deference to the fellow, who kept his place at the head, and did the loudest talking, ornamented with plenty of expletives, indicated his prominence among his fellows.

The mountain tramps had descried the three men standing at the side of the cañon, watching them as they approached. They ceased their boisterous talking and studied them as they drew near.

“Howdy, pards?” called the leader, raising his two fingers to his forehead and making a military salute, to which our friends responded coolly, hoping the company would keep on without stopping.

But they were disappointed. Colonel Briggs, as his men called him, suddenly shouted “Whoa!” in a voice that could have been heard a mile off, and pulled so hard on his bridle rein that he drew the jaws of the mule against his breast, while the rider lay back almost on the haunches of his animal, who showed his contrariness by walking round in a short circle before standing still.

“Which way, pards?” asked the leader, while his followers, who with more or less effort succeeded in checking their mules, curiously surveyed the three miners.

“We intend to visit Sacramento,” replied Captain Dawson.

“Huh! that’s where we come from.”

“On your way to the diggings I presume?” continued the captain courteously.

“That’s what’s the matter; we’re going to New Constantinople, which is the name of a mining settlement in Dead Man’s Gulch. Do you know anything of the place?”

“We live there.”

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“The deuce! Queer town, ain’t it?”

“In what respect?”

“Don’t like visitors; Red Tom and Missouri Mike, two of the gang with me, stopped there a year or so ago with the idee of staying; the best they could do was to sleep there one night and git fired the next morning. That went agin the grain,” continued Colonel Briggs, “and the more the boys thought it over the madder they got. When they told the rest of us, we made up our minds that the trouble was the diggings had panned out so rich in them parts that the folks meant to keep ’em to themselves. I don’t call that square, so we’re going down to divvy with ’em. Big scheme, ain’t it?”

Our three friends were astounded. The addition of this gang to New Constantinople meant nothing less than its moral ruin. It would bring a peril from the first hour and doubtless precipitate a murderous conflict with a doubtful issue.

“They are a peculiar people,” said Captain Dawson, repressing all evidence of his anger; “it’s a mistake to attribute their prejudice against immigrants to the richness of the diggings, for though they have been worked for years, they have not produced much. But they want no strangers among them, and I know they will not allow you and your friends to make your homes in their settlement.”

Colonel Briggs threw back his head, opened his enormous mouth and broke into uproarious laughter, most of his companions joining him to the extent of a broad grin.

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“Do you hear that, boys? Won’t let us settle among ’em, eh? And there are nine of us and we hain’t had a scrimmage since we left Sacramento, except with the Injins, which don’t count. Stranger, we’re yearning to hear your folks say we shan’t jine ’em, ’cause if they try to stop it, it’ll make things lively.”

It was not a pleasant recollection of our friends that, since their departure from New Constantinople, the force left behind would be hardly a match for this desperate gang of marauders, who no doubt were as eager for trouble as they professed to be.

“Why not make a settlement of your own?” was the conciliating question of Parson Brush; “there’s plenty of room in this country.”

“That would be too peaceable like; it don’t suit us; we’re looking for trouble.”

“And you’ll find it powerful quick,” said Wade Ruggles, “if you try to shove that gang of yours into New Constantinople.”

“That’s music in our ears; that’s what we’re hungry for; we’re ready to start an opposition hotel to the Heavenly Bower, too; we’ve got the stock to furnish it.”

“Wade,” said the parson, “keep your temper; we can’t afford to quarrel with these men.”

“It wouldn’t take much for me to shoot that chap off his mule as he sets there.”

“Leave matters to the captain; it looks as if we shall have a fight, but it is best to keep cool.”

The observant trio had noticed an additional cause for uneasiness. More than one of the party were surveying the three horses and mule with admiring eyes. Some of them spoke to one another in low tones, and there could be no doubt they looked with envy upon the animals, which, tiring of their confinement in the ravine, had come forth as if with the purpose of passing under review, on their way to crop the grass from which they had been driven.

“Colonel,” called one of the men behind him, “them is likely animals.”

“I had obsarved that fact myself; strangers, I’ve made up my mind to buy them critters; what’s your price?”

“They are not for sale,” replied Captain Dawson.

“Why not?”

“We need them for our own use.”

“Then we’ll trade.”

“You won’t do anything of the kind,” said the captain, speaking with the utmost coolness, but with that paling of the countenance and glitter of the eyes that Colonel Briggs would have done well to heed.

“Strikes me, stranger, you’re rather peart in your observations,” said the leader with an odd chuckle; “we ain’t used to having people speak to us in that style.”

“It is my custom to say what I mean; it saves misunderstanding.”

“It’s my opinion, stranger, you’d better say trade.”

“It is of no importance to me what your opinion is; we need the horses and the mule for our own use and we shall keep them.”

“But you’ve got one more than you want.”

“He belongs to a friend who is not far off and will soon return; we can’t spare one of them.”

“If we give you four of ours for the lot, that’ll make an even thing of it. Besides, we’ll throw in something to boot.”

“I wouldn’t give one of the horse’s shoes for all the trash you have piled on top of your animals; the stuff isn’t worth house room, but it is what I should expect to see in the hands of a lot of tramps like you and yours; I wouldn’t trade our mule for the whole party which, to judge by their looks, ought to be in jail.”

Brush and Ruggles were amazed to hear the captain use such language, for it sounded as if he was trying to provoke instead of avoid a fight. The truth was the veteran was thoroughly enraged by the evident purpose of the fellow before him. Although his voice was low and deliberate, the captain’s temper was at a white heat. The point had been reached where a desperate struggle seemed unavoidable, and he wished to precipitate the crisis, inasmuch as it had to come.

Colonel Briggs did not laugh, but turning his head, talked for a minute with the man nearest him, their words so low that no one else heard them. Then the leader turned back in a quick, decisive way.

“There don’t seem much use in talking, stranger, so ’spose we make a fight of it.”

“As you prefer.”

The gang hardly expected so firm a front. Some of them muttered to one another. They were not a unit on the question, though it was evident that the majority preferred to fight.

The three men stood with their backs almost against the mountain wall. Each had a Winchester and revolver and all were expert in the use of the weapons. The others were gathered in an irregular group around their leader. They, too, were provided with all the weapons they could use, not to mention the extra guns strapped upon the pack mules. They outnumbered our friends three to one.

Captain Dawson could use his rifle as well with his single arm as formerly with two.

“He can’t fire before me,” he said in an undertone to Brush, standing next to him; “when the shooting begins, I’ll drop him off his mule before he knows what’s coming. When I say the word, let fly as quick as lightning! Likely enough they’ll win, but we’ll make them pay high for their victory.”

“Do you notice that tall thin man at the rear?” asked Brush, in the same guarded voice; “his eyes shine like a rattlesnake’s; he’ll be *my* first target.”

CHAPTER XXII

FRIENDS

Colonel Briggs was nonplussed for the moment. He had failed to scare the men whom he meant to despoil of their property and some of the mutterings behind him showed that he lacked the unanimous support of his followers.

“Boys,” he said, looking round in their faces; “you’ve heerd what these strangers say to my mild requests. Since they are too mean to trade, I leave it to you to say whether we shall let up on ’em or make ’em trade; which is it?”

“Trade! trade!” was the response, given with such ardency that there seemed to be no dissent, though there was.

“That hits me right; trade it shall be; the first one of the strangers that kicks, fill him full of holes.”

“And the first man that lays a finger on my property,” said Captain Dawson, in the same deliberate voice, “will be shot down like a dog!”

The person whom Parson Brush had selected a few minutes before for his first target and whom he was watching closely, now did an extraordinary thing. This individual was thin to emaciation. His beard was scant and scraggly, and his large black eyes gleamed like those of a wild animal. He had a very long body, and sat so upright in his saddle, with his Winchester resting across in front, that he towered head and shoulders above his companions. From the first, he fixed his penetrating eyes on Captain Dawson and studied him closely. It was this persistent intensity of gaze that attracted the notice of Brush, who set him down as being even more malignant than the leader of the disreputable party.

When a collision was impending, and must have come the next second, the singular looking man, grasping his revolver, raised his hand above his head and called:

“Hold on a minute!”

His commanding voice and manner hushed every one. From his place at the rear, he spurred his mule straight toward the three men standing on the ground.

“Keep off!” commanded the parson; “if you come any nearer I’ll shoot!”

The extraordinary looking individual gave him no heed, but forced his mule in front of Captain Dawson, upon whom he kept his eyes riveted.

“Don’t fire till I give the word,” commanded the captain, who had become suddenly interested in the tall, slim man.

Halting his mule directly before Dawson, and with no more than a couple of yards separating them, the stranger craned his head forward until his chin was almost between the long ears of his animal. He seemed to be trying to look the officer through, while every other man watched the curious proceeding.

Suddenly the fellow resumed his upright posture in the saddle, his manner showing that he had solved the problem that perplexed him. Through his thin, scattered beard, he was seen to be smiling.

“What’s your name?” he asked.

“Maurice Dawson.”

“Formerly captain of the Iowa — cavalry?”

“The same at your service.”

“Don’t you know me, captain?”

The officer thus appealed to took a single step forward, and looked searchingly in the face of the man that had thus addressed him.

“There is something familiar in your looks and voice, but I am unable to place you.”

“Did you ever hear of Corporal Bob Parker of the — Missouri?”

“Yes; you are he! I recognize you now! I am glad to greet you.”

And shoving his Winchester under the stump of his arm, Captain Dawson extended his hand to his old comrade and shook it warmly, the two seeming to forget the presence of every one else.

“Something in your face struck me,” said the corporal, “but I wasn’t sure. The last time I saw you, you had both arms.”

“Yes; I got rid of this one at the very close of the war.”

“Things were pretty well mixed up around Petersburg; I tried to get on your track, but failed; I knew you meant to come to California, and when we drifted here, I was hopeful of finding you, but I didn’t think it would be in this style.”

While speaking the corporal had retained the hand of the captain, shaking it occasionally as he spoke. He now gave it a final pressure and dropped it.

“Captain, you and I went through some pretty tough scrimmages and you were always dead true and game; when we lost our colonel and major, you took command and led the charge that day at Cold Harbor; Grant or Sheridan couldn’t have done better.”

“It *was* rather warm,” smiled the captain, blushing at the compliment; “but, corporal, it looks as if we are going to have something of the kind here.”

Corporal Parker deliberately turned to the wondering group behind him.

“Jim and Tom, you know what we agreed on, if this should prove to be ³⁵¹my old commander. You two wore the gray, but you are true blue now.”

At this reminder, two of the company without a word rode forward and placed themselves beside the corporal.

“Now, we’ll face the other way.”

His suggestion was followed. The three wheeled their animals around, so that their riders, like the footmen, were in a line confronting Colonel Briggs and his astonished company.

“Dress,” said the corporal, looking down and moving his mule about until the alignment would have drawn a compliment from a West Point cadet.

“Now, boys, are your shooting irons ready?”

“They gin’rally air,” was the significant response of one of the men.

“All right, colonel,” added the corporal making a military salute; “everything being in readiness please let the skirmish proceed.”

Colonel Briggs emitted a forceful exclamation.

“What’s the meaning of all this? I don’t understand it.”

“There are six on each side; that evens matters; shall you start the music or do you prefer to have the captain fire the opening gun?”

“But you haven’t told me what this means.”

“It means that Captain Dawson and Corporal Bob Parker have drunk from the same canteen.”

It must be conceded that Colonel Briggs had one merit; no one was quicker than he to grasp a situation. So long as there were nine men on one side and three on the other, the success of the former was promising. He meant to crowd the defiant miners to the wall and would have done so but for the unprecedented turn of affairs. Now it was six to six and he knew the mettle of the three recruits that had joined the miners. Bob Parker was the most terrific fighter in the whole company. He was one of those men, occasionally seen, who was absolutely without fear. He would have stood up alone and fought the other eight. During that single week in Sacramento, he gained the name of a terror and caused a sigh of relief on the part of the authorities when he left for the mountains.

The corporal always fired to kill, and his skill with rifle and pistol was marvelous. While talking with Colonel Briggs, he fixed his brilliant black eyes on him, as if to intimate that he had selected *him* for his pet antagonist. All this was disconcerting.

In this crisis, when every nerve was drawn tense and the question of life and death hung on the passing of a breath, Colonel Briggs leaned backward and elevating his chin in the way that had become familiar, emitted one of his resounding laughs. Then he abruptly snapped his jaws together like the springing of a trap.

“Why, Bob, this puts a different face on things,” he said cheerily; “if the man’s a friend of yours, of course we can’t quarrel with him.”

“I rather think not,” replied the corporal.

“I was in the army myself,” added the colonel, “but didn’t stay long; me and General Grant couldn’t agree as to how the war should be run, and one night when no one was around, I resigned and left.”

“Then you didn’t win your title in the service,” remarked Captain Dawson, who felt that he could afford to show good will, now that the situation had taken so remarkable a turn.

“Scarcely; the boys think that no officer lower than a colonel is fit to command this crowd, so that’s how I got the handle.”

Captain Dawson could not forbear saying:

“I think it much more befitting that a true and tried soldier, like Corporal Parker, should be in your place.”

“It was offered to me,” said the corporal, “but I refused it.”

“No; we agreed to make him a full-fledged major-general, but he declined the honor with some sarcastic remarks,” said the colonel; “howsumever, boys, now that things have been straightened out, do you intend to go with the captain or with us?”

Corporal Parker addressed his two comrades.

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“Wheel and salute!”

They faced their animals around, and, taking the cue from the corporal, made an elaborate military salutation to Captain Dawson and his companions. Then they wheeled again and rode back to their former places.

“With my best regards,” added the colonel, also saluting, while the rest half-nodded and grinned over the odd turn of affairs. Dawson, Brush and Ruggles unbent sufficiently to respond, but kept their places, side by side, and watched the curious procession until it passed out of sight beyond a sweeping curve in the cañon.

“I wonder if we are likely to see any more of them,” said the parson; “they are an ugly lot and badly want our horses.”

“Not badly enough to fight Corporal Parker and his two friends. The corporal is the bravest man I ever saw. I know he was disappointed when the colonel was so quick in backing down. He will go hungry for two or three days, for the sake of a fight. It is he and not the colonel or any one in the company that is spoiling for a row.”

“And I picked him out as the first one to shoot,” grimly remarked Brush.

“The chances are ten to one that he would have dropped you first, but it shows how easily one may be mistaken.”

“I tell you,” said Ruggles earnestly, “when that gang strikes New Constantinople, there’ll be trouble.”

“There’s no doubt of it,” commented Brush; “the forces will be about equal; if the boys at home could have warning of what is coming, they would make it so hot for Colonel Briggs and his tramps that they would be glad to camp somewhere else.”

“That wouldn’t improve matters, for of necessity there would be passing back and forth, and there are some people at New Constantinople who would welcome the change. That’s the worst of it; a good deal of this evil seed will fall on soil waiting for it.”

“We may be back in time to take a hand in the business,” said the parson; “I don’t know whether your friend, the corporal, can be secured as an ally.”

“It is doubtful, for about the only merits he has are his bravery and his loyalty to his friends.”

“In my ’pinion the same is considerable,” commented Ruggles.

“He would be a powerful friend to Nellie, because she is a female and because she is my daughter, but,” added the father with a sigh, “I have my doubts whether I shall ever take her to the settlement again.”

This announcement strangely affected the two who heard it, for the dearest schemes which they secretly nourished included the spending of their days in the mining settlement. The hope of each had flickered into life once more with the prospect of recovering and punishing her abductor. They knew that she would bitterly mourn his loss, and would probably be inconsolable for a time, but the months and years would bring forgetfulness and then—who should say what *might* come to pass?

“We thought,” remarked Ruggles, as they resumed their seats, “that we should have a weary wait for Vose, but it didn’t prove so dull after all.”

The captain looked at his watch.

“He has been gone more than an hour, and there’s no saying when he will be back. He has his own way of managing this business, and, though I

concede his skill and superior knowledge in this part of the world, it is hard to keep my patience when I see the hours slipping away without bringing any results.”

But the patience of the three men was tried more sorely than ever before, and to a greater extent than any one of them anticipated. Noon came and passed and without bringing Vose Adams. The party partook sparingly of their lunch, leaving enough for their absent friend, but the lagging hours wore away and they still waited. They said little to one another, but the captain, unable to restrain his restlessness, wandered down the cañon. The two left behind watched him until he passed from view in the direction taken by Colonel Briggs and his company. A few minutes later, the report of his rifle came back to them.

“I wonder if *he’s* got into trouble,” exclaimed the parson, rising to his feet and peering to their left, without seeing everything to explain the sound that had reached them.

“I shouldn’t wonder,” replied Ruggles; “everything is going wrong; Vose wouldn’t stay away so long, unless he, too, was in difficulty.”

“The captain may need us; he can’t be far off.”

Gun in hand, the couple walked hurriedly down the cañon, on the alert for Indians, for it seemed more likely that if any danger threatened, it was from them. To their relief, however, they soon found their alarm groundless. The captain was seen coming, apparently as well as ever.

“Nothing is wrong,” he explained when they were within speaking distance; “I saw an antelope among the rocks and took a shot at him.”

“How near did you come to hitting him?”

“He made only a single jump after he received my bullet; it’s a pity he didn’t make a couple of them.”

“Why?”

“It would have brought him over the outer rock and into the ravine; then we should have had something for supper. Haven’t you seen Adams yet?”

Instead of answering directly the three looked toward the fissure in the side of the cañon, and there, to their unspeakable relief, they saw the man who

had been absent for so many hours. As is the rule at such times, their ill-humor deepened.

“Why didn’t you wait till morning?” was the question of the captain.

“I was afraid I would have to do so,” replied the guide, whose flushed face and agitated manner proved that he brought important news; “but I didn’t have to, and got away in time to reach you afore night.”

“Not much before,” commented the parson; “you must have had a remarkable experience to detain you so long.”

“Rather, but I’m starving, give me something to eat, while I talk.”

The lunch was produced, and he fell to with avidity, but he saw they were in no mood for frivolity, and he did not presume upon their indulgence.

“Wal, pards, after leaving you, I picked my way as best I could up the gorge, which runs back, with the bottom rising more or less all the way, for ’bout two hundred yards when you reach level ground. That is to say, the gorge ends, but the ground is anything but level.”

“And they went all that distance ahead of you with their animals?” asked Brush.

“That’s what they done; the tracks of the horses were so plain there couldn’t be any mistake ’bout it. At the top of the gorge, the trail slanted off to the right, toward a big pile of rocks, caves and gullies, where it didn’t look as if a goat could travel. There was so much stone that it was mighty hard to keep on the trail and I lost it.”

“And didn’t you find it again?” demanded the captain.

“Yes, but it took a good deal of time; that’s one reason why I was gone so long, but it wasn’t the only reason by a jug full. When I struck it agin, it led straight toward a high rocky place to the left, where I made up my mind the two were hidin’.”

“That would imply that they knew we were close behind them.”

“There can’t be any doubt of that. What bothered me was to learn what they had done with their horses, fur the prints that I followed was made by the folks’ feet. I couldn’t figger out what they had done with the animals, and I spent some more time in trying to larn, but it was no use.

“Bime by I struck better ground, where the trail was so clear I could have trotted over it.”

“Why didn’t you do it?” asked Ruggles.

Adams shook his head.

“It wouldn’t have done; as I said they must have found out, purty early in the day, that we was after them, for if they didn’t, why did they turn off the reg’lar track?”

“Never mind asking questions,” replied the captain; “go on with your story.”

“Wal, pards, by that time I must have been a mile from here and it looked as if I’d have to go that much further. I had a good mind to come back after you, for time was important, but when another rocky, walled-up place showed in front of me, I was sartin I was close upon ’em. Their horses couldn’t make their way through such a spot, and I was sure I had ’em fast.”

“Why didn’t you come back at once?” said the captain, “but, never mind, go on with your account.”

“I thought it would be best to find out just how they was fixed. At the same time, it would never do to let ’em diskiver that I was about. So I was powerful careful and crept forward as if into an Injin camp. It wasn’t long before I smelled burning wood. That told me they had come to a stop, built a fire and didn’t dream I was anywhere in the neighborhood.

“But I wasn’t through with the bother yet; it took me another long time to find where that fire was burnin’, but I hit it at last. A little faint streak of smoke was climbin’ from behind a ridge, among a growth of pines. I begun creeping forward when I changed my mind. I thought that if one of ’em happened to be on the watch and see me, they would be off afore I could git anywhere near ’em. So I worked round to the other side to come upon ’em from that. Then you see if they took the alarm, they’d have to come back toward you or make another long circuit. Anyway, I was sure of a chance to meet ’em.

“Wal, pards, I don’t want to make a long story of what is a short one. I got round to tother side, but it took me a good while, and it’s hardly an hour ago that I caught my first sight of their camp.”

“What passed between you and them?” asked the captain.

“When I rested my eyes on the little bundle of wood burnin’, there wasn’t a man, woman or horse in sight.”

The listeners were dumbfounded for the moment. After the waste of the greater part of the day, they were no nearer seeing the fugitives than before. In a voice, husky with passion, Captain Dawson exclaimed:

“It will take hard work to convince me that all this was not done on purpose by you.”

“What do you mean?” demanded Vose, showing more anger than at any time since the strange hunt had been begun.

“If you had spent a week trying to fix things so as to help them get away from us, you couldn’t have done any better than your own account shows you to have done. The whole day has been lost and we stand just as near success as we did twenty-four hours ago.”

“You ought to have returned to us as soon as you located them,” added Brush in the effort to soothe the ruffled feelings of the two.

“P’raps I didn’t do the wisest thing,” replied Adams with unexpected meekness; “but I ain’t the first person in the world that has made a mistake. Howsumever, there won’t be any more slips by me.”

His companions looked inquiringly at him.

“I don’t understand that remark,” said the captain, “when you are sure to blunder as long as you attempt to manage things.”

“That’s the p’int; I resign from this time forward; I haven’t given satisfaction and you may now do the work to suit yourselves.”

“It’s just as well,” commented the captain, “for we can’t make a greater mess of it than you.”

The story told by Vose Adams was a singular one, but the most singular feature about it was that it did not contain a grain of truth. Every statement was a falsehood, deliberately intended to deceive, and, seeing that he had succeeded in his purpose, he was satisfied.

CHAPTER XXIII

VOSE ADAMS

Lieutenant Russell gave no hint to Nellie Dawson of the scheme upon which he had fixed his hopes, until after she had confessed her love for him, and he was certain beyond the shadow of a doubt, that he possessed the sole affection of her heart. Even then he hesitated for he knew the shock it would cause the gentle one, who was devotedly attached to her father. But the resolution of Captain Dawson to spend the remainder of his days at the mining settlement, and his intention of selecting her husband from among those that had made New Constantinople their home for years, crystallized the determination that had been vaguely shaping itself in his brain for weeks.

As he expected, she recoiled shocked by the proposal to leave her father; but love is eloquent, and he won by convincing her that the separation would be only temporary. Her father would be quick to see the great wrong his course would inflict upon his child, and he would not only consent to the union, but would follow and make his home with them. It was this implicit belief which made her the companion of Lieutenant Russell in the flight from the mountain settlement.

The project having been carefully planned and arranged, the preparations were more complete than those of their pursuers. They took sufficient extra clothing in the form of wraps and blankets, and enough food to last for several days. They were well mounted and had the companionship of the huge dog Timon, with his almost human intelligence.

The lieutenant's memory of places was good, and, having a number of hours of daylight at command, he escaped the mistake of his pursuers. The turn from Dead Man's Gulch was made at the right point, and they were miles on their way before their flight was discovered by Captain Dawson and his friends.

Both of the fugitives did not doubt they would be pursued. They knew the consuming anger that would take possession of her father, who would probably collect several companions and start after them with furious haste. He would take frightful vengeance upon the man that had dared to steal his daughter. Everything, therefore, must be done to keep beyond his reach until his wrath had time to cool. The intention was to make Sacramento ahead of him. At that city, the lieutenant would seek out his future father-in-law and plead his cause.

When night closed around them, they had penetrated to a distance of perhaps fifteen miles in the Sierras. It was at sunset that they passed a spot, where horses and riders, the latter on foot, had to pick their way with extreme care, while even Timon, who clung faithfully to them, showed timidity, though he had been over the place before. The sagacious brute knew that a mis-step on his part meant death. The passage, however, was made without mishap, and Russell, as he helped his companion into the saddle, assured her that nothing so trying to the nerves was to be expected during the rest of the journey.

There was no fear of pursuit until after nightfall, but Russell frequently pointed his glass backward and scanned the trail over his whole field of vision. When the gathering darkness shut out everything, he had seen nothing of enemies, either white or red. He could not forget that on his previous journey, he and the captain had desperate fighting with the Indians and the same peril still impended.

Nellie was eager to cover all the ground possible, while the opportunity was theirs, and the flight was pushed longer than Russell would have advised. Finally, he insisted they should stop and rest themselves and horses for the remainder of the night. The halting place was selected with much care. The animals were turned loose, where the grass was growing and a small stream wound its way toward a larger one. Then the two, accompanied by Timon, pushed in among the rocks to where the final halt was made.

They were in profound darkness. The lieutenant decided to start a fire, and, with much difficulty, gathered a sufficiency of dried branches. They were fortunate enough to find a partial cavern, so open in front that it would have given slight shelter in the event of a storm. When the blaze threw out its

cheerful light, it served to dissipate the gloom which in spite of themselves had oppressed them with the coming of night.

They partook of food and the lieutenant's spirits rose, for he saw nothing to prevent the full success of the dream which had inspired and thrilled him so long. His buoyancy was infectious, and he brought a smile to the beautiful countenance by his merry sallies, and his picture of the happy future that was close at hand.

"Your father will be angry at first," he said; "it would be strange if he were not, but he loves you and I think has a pretty fair opinion of me. When he gains time to think over the matter, he will admit the wisdom of what we have done and we shall receive his blessing."

It was this assurance, more than all else, that served to lift the gloom from her. Deep as was her love for the one at her side, it would not have sufficed to draw her from her adored parent, had she believed that his resentment against her would last. As it was, she grieved that even for a brief time, ²⁶⁷ as she thought would be the case, he should hold harsh feelings toward her.

No chivalrous knight of the Crusades could have been more scrupulously considerate of lady intrusted to his charge than Lieutenant Russell. He would have died before offending Nellie Dawson by act, word or presumptuous thought. When, as the night advanced, the bright eyes began to grow drowsy, he arranged a couch for her, saw that she was well provided with blankets and then turned to the immense dog, who had never left them and who looked as if he understood everything.

"Now, Timon, you are to stay right here," he said, bending over and impressively shaking his finger at the animal; "you are not to venture a dozen feet from your mistress without permission. Do you understand?"

A whine and wagging of the tail left no doubt that the wishes of his late master were clear to him.

"You have your gun at your side," he added, turning to Nellie; "I do not think you will have any call to use it. We have not met any Indians and your father cannot overtake us before morning. Timon will be sure to give you warning of the approach of danger, and, if your gun goes off, I shall be here in a twinkling."

He bade her good night and departed. Enough wood had been flung on the fire to keep it going for an hour or two, but long before it sank to ashes, the girl had drifted into dreamland.

The lieutenant carefully selected his own sleeping quarters. He finally fixed upon a large flat boulder, at the rear of the cavern occupied by Timon and his charge; but, although beyond sight, he was near enough to reach the spot on the instant needed. Spreading out his blanket, he lay down upon it.

“This recalls the old days in Virginia, when mud a foot deep, with the rain dashing in our faces, was what we had for weeks at a time. This couch doesn’t equal a feather bed, but it will answer.”

The night passed without incident and it was hardly light when the young officer was astir. He visited the horses and found them cropping the grass, but he waited until Timon came to him before calling upon Nellie. She, too, had been awake for some time and they partook of their morning meal with rugged appetites.

She was so eager to hurry on that he lost no time in taking the road again. Neither could doubt that their pursuers were on their trail, and, with the aid of his small glass, he carefully studied the country behind them. It was not long before he made the discovery he dreaded: four horsemen were following their footprints, and beyond them were the five Indians picking their way along the ledge in the opposite direction.

The lieutenant passed the glass to his companion who scrutinized the party with the keenest interest.

“They must have traveled all night,” remarked her escort, while she still peered through the instrument.

“That shows how dreadfully angry father is; I hope it will not last.”

“Can you make out the members of the party?”

She studied them a minute or two more before answering:

“I think that is father who is close to the man on a mule.”

“The one on a mule must be Vose Adams, for he is more accustomed to that sort of animal. I am sorry he is with the party.”

“Why?” asked Nellie, lowering the glass and looking at him.

“He is so familiar with the trail, that it will be hard work to outwit him; he isn’t the man to make mistakes. Did you recognize the others?”

“I cannot be sure, but I suspect they are Mr. Ruggles and Mr. Brush.”

“I have no doubt you are right,—not because I was able to identify them, but because the two are partners and your father would naturally go to them first. I do not think any one of the four has a glass, so, despite their sharp eyes, we have a big advantage in that respect.”

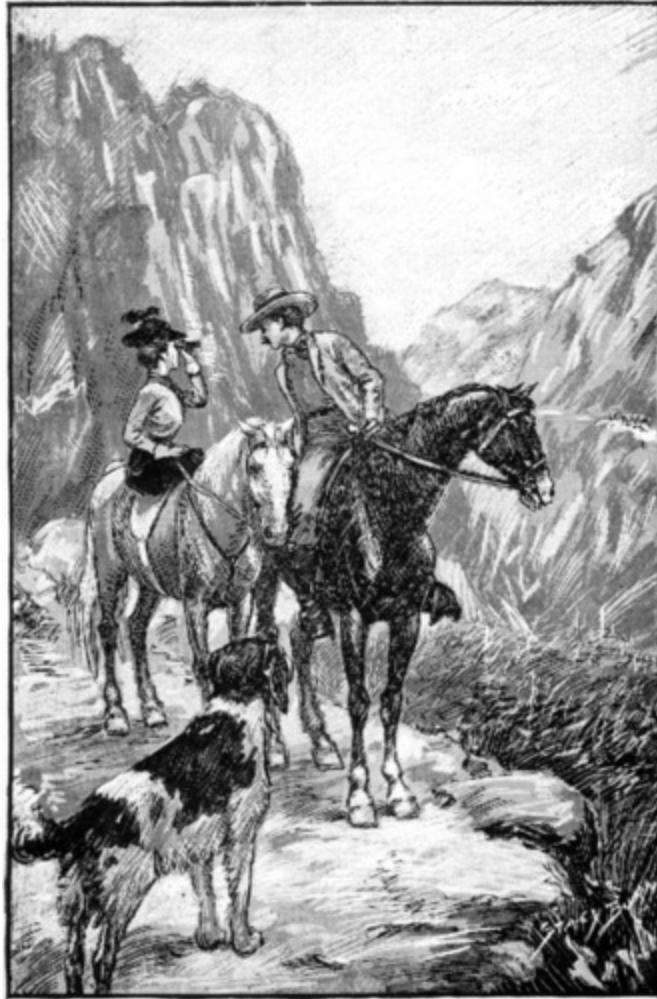
“But they know the route better than we, and we are losing time.”

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The course of the trail took them out of the field of vision of their pursuers. It was at the suggestion of Russell that the two turned aside from the cañon into the fissure-like gorge. This would have been a serious mistake, except for the plan he had in view, for it must place the pursuers in advance, the very thing which it would seem the fugitives ought if possible to prevent.

The lieutenant had believed from the first that Vose Adams, in threading his way through the mountains, traveled a good many miles more than was necessary. It was quite likely that, if he could follow a straight line, he would shorten the distance one-half. Although this was impossible, the young man, nevertheless, was convinced that by changing the route, a good many miles could be saved: and it was in his mind to do that thing.

The lieutenant’s experience in campaigning had taught him the danger of going astray, when picking his way through an unfamiliar country, but the little compass attached as a charm to his watch chain would help him to keep track of the variations and windings, and he was confident of coming out right. He and Nellie were well mounted and armed, all of which being impressed upon his companion, she offered no objection to the radical change of plan which took them out of the cañon into the ravine that led them they knew not whither, but it was ominous of disaster that at the top of the fissure, when the two were leading their animals, a grievous mishap occurred. The pony of Nellie slipped and sprained his ankle so badly that he whined with pain and paused with his weight supported on three legs.



THE LIEUTENANT PASSED THE GLASS TO HIS COMPANION, WHO SCRUTINIZED THE PARTY WITH THE KEENEST INTEREST.—PAGE 269.

“That’s a bad go!” exclaimed the dismayed Russell; “it will be several days before he is able to travel.”

She examined the ankle, as best she could, trying to soothe the pain by passing her hand over the injured part, but it was plain that neither she nor her companion could give any help.

“Poor fellow,” she said sympathetically; “you cannot go any further; what shall be done, Fred?”

“Only one thing seems possible,—take you on my horse.”

“And what will become of Cap?”

“We must leave him behind.”

“What will happen to him?”

“Some one will pick him up, or, after his leg recovers, he may find his way back to the settlement.”

The impulsive girl flung her arms about the animal’s neck and touched her lips to the silken nose.

“They shall not part us, Cap,” she exclaimed with tears in her eyes.

The lieutenant watched this by-play, full of sympathy for the girl, but he was in a quandary. Prudence seemed to demand that everything should be sacrificed to speed by abandoning the pony. In all probability, the latter would serve as a dinner for some of the bears, wolves or other denizens of the mountains, who would quickly harry him to death. To wait where they were until the animal was able to travel rendered certain a speedy meeting with their pursuers. The woodcraft of Vose Adams would enable him to discover with slight delay the point where the fugitives had left the cañon, and he would guide his companions with the skill of one of the mountain Indians themselves.

On the other hand, the plan he had in view imposed prodigious work upon his own animal. Between the halting place and Sacramento were many miles of easy traveling, over which he could walk, but for long distances the beast would be compelled to carry double. In the event of close pursuit, this must prove a fatal handicap.

In his perplexity, the lieutenant again examined the hurt of the pony.

“It would be cruel to make him take a single step, but he may soon recover. I am afraid to leave him behind and to continue our flight with only my horse. You know how dangerous it is to linger, Nellie, when it is certain *they* are not far off——”

She caught his arm and whispered:

“Look at Timon! he has discovered something!”

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The dog was standing a few paces in front of them, with his nose pointed toward the cañon. He emitted several growls and pricked up his ears in a way that left no doubt that he was angered. The lieutenant had hardly time

to place himself in an attitude of defence with his Winchester, when a soft footfall was heard, and the next moment Vose Adams emerged from behind the pile of rocks and approached them.

It was proof of the guide's woodcraft that he was able to come thus close before being detected by Timon, who advanced threateningly toward him. A word, however, from the lieutenant stayed the dog.

"Well, Vose," said the young man, "this is unexpected."

"So I judge and I've a 'spicion that you ain't tickled half to death to see me."

"We were always friends, but I can't say that either Nellie or I am glad to meet you under the circumstances; for in truth, we have been doing all we could to prevent such a meeting."

"Things has that look," added Vose, standing on guard as may be said, for he was not free from misgiving concerning the young lieutenant whom he had managed to run down. His positive orders forbade him to assume the aggressive, but no one could forbid him to defend himself, and he did not mean that this handsome officer should catch him unprepared.

"Whom have you with you?" asked Russell.

"The captain, Wade Ruggles and the parson."

"What we suspected; I presume no one of the three feels specially affectionate toward me."

"It is all the captain can do to prevent the other two from quarrelin' as to which shall have the first chance to shoot you."

"Why does Captain Dawson prevent them?"

"'Cause he means to have the first chance himself."

"How about *you*?" grimly asked Lieutenant Russell.

"I'm left."

"How's that?"

"A low down trick was played onto me; as near as I can find out, the captain comes first, Wade and the parson next and me fourth. You can see for

yourself that there won't be any chance at all left for me after them three is through."

"It doesn't look so,—that's a fact. But where are the three?"

"Along the main trail, down in the kenyon."

"Why did they not come with you?"

"I advised 'em to wait till I found out how the land laid and they won't leave the spot till I get back."

Lieutenant Russell gave no expression to the thought that flashed upon him. Why not keep Vose Adams a prisoner? The loss of his services to the party would be irreparable, for, as it was, the present hiding place of the fugitives never would have become known to them without the help of the guide. It was a daring scheme, but there were so many objections to carrying it out, that the officer dismissed it. In truth he thought of a much better plan.

"You have told me enough, Vose, to prove that the four men—for I may as well include yourself—feel bitterer toward me than I suspected: do you think this enmity of theirs will last?"

"Not for long."

"How long?"

"They'll let up as soon as you're shot."

Lieutenant Russell could not restrain a smile at this way of putting it, while Nellie was so horrified that she gasped and stared and listened in silence.

"There can be little doubt that you are right, but I meant to ask whether you do not think the captain will moderate his anger when he is given time to think it over."

"He has had all night to do that, and this mornin' he was hotter if anything, than at any time since he larned what you had done."

"When did he learn it?"

Thereupon, Vose told the facts which have already been made known to the reader, the most interesting feature of which was that Adams was not an original member of the pursuing party. But, although the guide was so pronounced in his opinion of the continuance of the enmity of Captain

Dawson, the lieutenant believed otherwise. He was confident that if he and Nellie could reach Sacramento before meeting the irate father, the latter would be open to reason, and all would turn out well.

Vose turned to the young woman.

“Nellie, do you want a little advice from me?”

“I am glad to have it at any time.”

“Howsumever, what I say is as much for the leftenant as for you, which the same is that both of you should give up this bus’ness.”

“But,” said Nellie, “you have just told us that father is so angry with Lieutenant Russell that he will shoot him the moment they meet.”

“We can fix that easy ’nough; let the leftenant stay here while you go with me; I think we can explain matters to the captain and the others so they won’t bother the leftenant.”

“And what am *I* to do?” asked Russell.

“Push on to Sacramento as fast as you can, for though I think I can fix it, I wouldn’t advise you to take too many chances.”

“In other words, after Nellie and I have fled from the settlement and got this far on the road to safety, you urge me to give her up forever.”

“Wal, that’s lookin’ a little further ahead than I meant to, but I ’spose it amounts to that.”

“You mean well, Vose, but do you imagine that Nellie and I did not count the cost before turning our backs on New Constantinople? Don’t you suppose we knew we should be pursued and were prepared for the consequences?”

“I can’t say as to that, but it strikes me that the plan I laid before you is the only one there is.”

“Why?”

“You cannot get away from the captain and the men with him.”

“Well, there is no call for me to repeat my opinion, but I will say that the decision shall rest with Nellie herself. If she wishes to go with you I will interpose not a word of objection.”

He looked toward her as an invitation for her to speak. There was a world of affection and faith in the lustrous eyes, as she walked resolutely forward and placed herself by his side.

“Only death shall separate us!”

CHAPTER XXIV

AN UNEXPECTED ALLY

The lovelight shone in the eyes of Lieutenant Russell, as he looked down at the slight figure beside him. He tenderly passed his arm around the girl and touched his lips to her forehead.

“It was not that I doubted you, Nellie,” he said, “but that Vose might know the full truth.”

Then turning to the guide, he asked:

“Do you still advise her to leave me?”

Vose Adams was unaccustomed to scenes like this. He moved about uneasily, coughed, cleared his throat, and for a few minutes was at a loss for words.

“I don’t know what to advise,” he finally said; “but don’t you think, if she could go to the captain and let him see how she feels, he will give in? How would it do for both of you to walk back with your arms round each other’s neck and sayin’ sweet words—wouldn’t that fetch him? Hanged, if I know what to tell you!” he exclaimed desperately, observing the smiles on their faces.

“I am afraid your plan wouldn’t work,” said the lieutenant, “but you have proved yourself the very friend we need.”

These words were a hint of the scheme that had come into the brain of the young officer. Had he made a prisoner of Vose Adams, as he thought for a minute of doing, the guide would really be more dangerous, since there was no way of guarding against his treachery, but if he could be turned into a friend, it would be almost equivalent to saving the fugitives. It was that for which the young man planned, but he felt that the real work must be done by Nellie. He could not win the good will of Vose, but she could, for who was able to resist her appeals?

It was a proof of the brightness of the girl that she caught the purpose of her escort the moment his last words were uttered, and she performed her part with a cleverness that could not have been surpassed.

Tears were in the eyes of the emotional Nellie, but she stepped across the brief intervening space and laid her hand on the arm of Adams.

“How glad I am, Vose, that you will help us, for you have told enough to show that it will not do for us to meet father for some time to come; we are now in your hands.”

“Blamed if I won’t do anything I can! But what can *I* do? ’Spose I sneak back, shoot the captain and then plug Ruggles and the parson? Will that suit you?”

“Gracious; I should rather you would kill me than harm a hair of father’s head.”

“Wal, ’spose I shoot you and the lieutenant and the captain and the rest? No; that won’t do; how the mischief shall I fix things?”

The cooler headed Russell saw that the problem had been solved; Nellie Dawson had won over Vose Adams, as may be said, by the turn of her finger. He was eager to do all he could to help them, but in the flurry of the moment could not reason with his usual acumen.

“We don’t want any shooting, Vose; I am sure that if we can reach Sacramento without meeting the captain, his anger will pass away. In Sacramento, I shall be able to arrange a meeting between him and his daughter, and his love for her will break down the barriers and do the rest.”

“I’m in too deep water when you get to figgerin’ that way, but there seems to be reason in what you say, but what about Ruggles and the parson?”

“We’ll leave them out; they are in this as the friends of Captain Dawson, and will not dare go contrary to his wishes, but if they do, it can make no difference to my plan.”

“They’re just as savage as the captain,” said Vose significantly; “and it won’t do to forget ’em; but what did you expect to do, when you left the kenyon? If you come back, you would have been sartin to meet us, and what then?”

“My intention was not to return, but to keep away from the main trail and hunt a shorter road through the mountains to Sacramento.” 281

Vose Adams gave a low whistle of astonishment.

“That’s the worst I ever heard!”

“And why?”

“You’re not follerin’ any trail at all; you would be sartin to get lost and would never find your way through the mountains; anyhow it would take you three or four years, which I ca’clate is longer than you want to wait.”

“How can you be so positive?”

“It’s true I never went to Sacramento and back, except by follerin’ for most of the way the trail that I know so well, but other folks as smart as you have been lost in the mountains and you couldn’t help it.”

“You advise against it then?”

“I’m so sure of your goin’ wrong that I won’t try to help you unless you give up the idee.”

“Then I hereby give it up.”

Since Vose Adams had committed himself to Russell and Nellie’s interests, there was no more talking at cross purposes. The object of the three was the same, and they sat down on the rocks for consultation. There was abundance of time in which to do this, since those whom they feared would not leave the cañon until the return of their guide, and he did not mean to go back until the day was so far spent that further delay was unavoidable. 282

“They will be mad when they see me,” he said with a grin, “but it won’t do them any good and I’ll fix up a yarn about gettin’ on and then off your trail agin, that they’ll have to be satisfied with.”

“That will serve for to-night, but you will all be astir at an early hour to-morrow morning.”

“They will still have to depend on me to guide ’em, and I rather think I can steer ’em off the track, so as to give you plenty of time to get out of the way.”

“How?”

“As soon as they leave the kenyon, that is as soon as the way is clear, you must ride back to it and put on all steam for Sacramento, for I understand, lieutenant, that you’ve give up your idee of finding a new route through the mountains.”

“I have.”

“You’ve got two good animals and you’ll gain a full day’s start.”

“You forget about poor Cap,” said Nellie.

“So I did! if he can’t go with you, you’ll have to leave him behind and ride double, but it will be rather tough on your horse, lieutenant.”

“Nellie doesn’t weigh enough to make any difference, and I expect to walk most of the distance.”

An unexpected piece of good fortune raised the spirits of the three. To the amazement of all, Cap, the pony, was seen hunting for grass and bearing upon the lame foot with little inconvenience. That which was thought to be a bad sprain was only a wrench, from which he promised speedily to recover.

“He’ll be as well as ever by to-morrow mornin’,” said Vose Adams; “you’ll need to humor him at first, but not for long.”

As has been intimated, the guide remained with them through most of the afternoon, for, if he had gone back to his friends earlier than he did, he would not have dared to offer any excuse for not leading them in the pursuit, and he meant to avert all possibility of that. The reader understands by this time why the guide formulated such an astounding fiction when attempting to explain the cause of his delay. Had his listeners been in cooler mood, they might have tangled him up with a few questions, but their exasperation and disgust prevented.

Before parting with the fugitives, Vose assured them that he was confident their plans could not fail.

“All they’ve got to do,” he reflected, “is to do nothing afore to-morrow and then when the road is open, strike out over the main trail as hard as they can travel. I hope none of them Injins that we had the row with will be pokin’ round to-night, for if there’s to be any trouble, it’ll come from them.”

It will be recalled that the story of Adams was received with such coolness that he indignantly resigned and told the captain to run matters himself.

“And he’ll make purty work of it,” chortled Vose “he won’t be able to come within miles of where they are hidin’.”

When the moody silence had lasted for some time, the guide was moved to remark in a more conciliatory spirit:

“There’s one thing that mustn’t be forgot: Colonel Briggs and his folks won’t make any trouble, but we’re not done with them Injins.”

“Isn’t there likelihood that Colonel Briggs will divert them?” asked the parson.

“No; for the redskins can’t be fooled; they’ll know it wasn’t any of the colonel’s folks that give their chief his walkin’ papers, but us, and they’re the sort of people that don’t forget a thing of that kind.”

“I was thinking of hunting up enough wood to start a fire,” said the captain; “but we don’t need it, and I suppose it will be safer without it.”

“It seems to me,” observed Ruggles, “that what we’ve got the most to fear is that the Injins will run off with our animals: we would be left in a bad fix.”

“We must look out for that; I’ll stand guard the first part of the night.”

Each was ready to take his turn, and it was arranged that Captain Dawson should act as sentinel until midnight, when he would awake Vose Adams, who would assume the duty till morning. Soon afterward, the three wrapped themselves in their blankets and stretched out on the ground, near the boulders, where they speedily sank into deep slumber.

It seemed to Adams that he had slept less than an hour, when the captain touched him. Rising immediately to a sitting position, he asked:

“Is it midnight?”

“It’s a half hour past.”

“Why didn’t you awake me afore? Have you seen anything wrong?”

“I am not sure; my doubt made me hold on a little longer, but I learned nothing of account.”

“What was it anyway?”

“It is only that the animals appear to be uneasy, but it may mean nothing, or it may mean a good deal.”

“It’s more’n likely it means something. Where are they?”

“Lying down off there to the right, almost near enough to be seen.”

“They can’t be too close; wal, you can sleep and I’ll take my turn.”

Thus warned by Captain Dawson, Vose Adams assumed the duties of sentinel with his senses on the alert. He had become so accustomed to the delicate duty, when aware that the slightest slip on his part meant death, that he was better fitted for the task than any member of the party, though the experience of Ruggles and the captain in the army had given them the ability to awake at any moment fixed upon before sinking into slumber, and they were sensitive to the least disturbance while enjoying refreshing rest.

Adams believed what he had remarked more than once that the little company of mountain Indians would do their utmost to revenge themselves upon the men who had taken off their chief. He suspected that the five were prowling in the neighborhood, looking for some such opportunity, and that they would strike a blow before the rising of the morrow’s sun.

Nothing was to be hoped for in the way of a diversion, created by the intrusion of Colonel Briggs and his vagrant miners. Not that the Indians were not eager to strike at any members of the hated race, but the all-controlling motive was lacking in the case of the larger party.

Although the moon was in the sky, only a small part of its light penetrated the cañon. Peering into the darkness, Vose dimly made out the forms of the four animals, who, having ceased their cropping of the grass, had lain down for the remainder of the night. They were so near that they could not be stampeded or stolen without the effort being known to the sentinel.

It would have been the height of rashness to start a camp fire, for all the figures within its circle of illumination must have formed the best of targets for their stealthy foes. As it was, an enemy would have to steal from the gloom and approach near enough to touch them, before striking a blow or firing a shot.

Vose Adams, with his Winchester in his right hand and held close to his side, took his seat on the ground, resting his back against the nearest boulder. As a rule, a sentinel can keep awake for an extended time only by motion and exercise, such as walking to and fro, but the trained hunter often takes the risk and there is little danger of his succumbing, especially after he has just finished a nap, as was the case with the guide.

Thus seated, with the boulder rising several feet above his head, Adams's only reliance was upon his keenness of hearing and sight.

He had not waited long when he saw proof of what the captain had told him: the animals were restless, or rather one of them was. The quadruped thus affected was Hercules, his own mule, who, although lying down, twice rose to his feet, shifted his position and lay down again. Then he sniffed as if the air contained an odor that was displeasing to him.

"I wouldn't think much of it, if it was one of the horses," reflected his master, "but Hercules has brains; he knows more'n all the others together, and yet it may be it ain't that after all."

One of the singular facts regarding cattle and other quadrupeds is that they are sometimes troubled with disquieting dreams, the same as ourselves. This trifling cause has resulted many a time in the stampeding of a drove numbering tens of thousands.

"I've knowed Hercules to kick and snort in his sleep, and one time he come mighty near breakin' a leg of mine; howsumever, I don't think that's the trouble with him to-night. I 'spect it's Injins this time!"

When Captain Dawson lay down to sleep and Vose Adams assumed his place as sentinel, the moon was near the zenith, but the contour of the cañon shut out its beams. While Vose was striving to pierce the gloom, over and about the four animals, he noted a flickering tremor against the vast wall which formed the other side of the cañon. A faint, fleecy veil of moonlight having been lifted over the mountain crests, was now flung downward and caught against and suspended upon the projecting rocks and crags. It was but a frosty shimmer, but the veil dangled lower and lower, pendant here and there until the fringe rested on the bottom of the gorge.

The sleeping miners and horses were wrapped in deep shadow, but the tremulous, almost invisible veil still fluttered on the further side of the

cañon. By and by, the shifting moon would whisk it up again and all would be gloom as before. 289

The sentinel lay flat on his face and peered over the prone animals toward the faint light across the cañon, and, looking thus, he saw the outlines of a man moving among the horses and mule. A shadow could not have been more noiseless. Not the faintest rustle betrayed his footsteps.

“Just what I expected,” thought Vose; “I’ll wager Hercules against a dozen of the best horses in Sacramento that that shadder is one of them five Injins we seen stealin’ along the ledge this mornin’. All the same, I can’t imagine what the mischief he is driving at.”

The guide’s first impulse was to bring his rifle to his shoulder and let fly. The intruder was so near that it was impossible to miss him, but two causes operated to prevent this summary course: Vose wished first to learn the business of the intruder, and there was a single possibility in a hundred that he was neither an Indian nor an enemy.

The latter doubt could be solved by challenging the prowler with a threat to fire, if instant satisfaction was refused, while the firing could be made so promptly that the stranger would have no chance of whisking out of reach. Vose decided to wait until he got some idea of the other’s business.

He could still dimly discern the form, but it was so obscure that had it not been moving about, he would not have been able to distinguish it or make sure it was within his field of vision. 290

While studying the phantom, the lower part of the veil of moonlight on the other side of the cañon was twitched up for a hundred feet. Lingered thus a minute, it was twitched still higher; then a third flirt snatched it out of the gorge. The shifting of the moon had left the cañon shrouded in darkness as before.

Nothing could have attested more strikingly the marvelous stealth of the intruder than the fact that not one of the horses was awakened by him. The approach of the great Geronimo and several of his Apaches was betrayed under somewhat similar circumstances by the neighing of a horse that they awakened, apparently when making no noise at all.

This prowler was a shadow in a world of shadows. If Hercules detected his presence, the man succeeded in soothing the fear of the hybrid.

“Halt or I’ll fire!”

Vose Adams’s voice was low, but in the tomb-like stillness a thunderclap could not have been more distinct. The hail, however, produced no response. The angered Vose drew his Winchester to a level, with his finger on the trigger, but when he ran his eye along the barrel, he failed to perceive any target. He lowered the muzzle a few inches and peered over the top. Nothing was discernible.

“You’re there somewhere and I’ll find you!”

Instead of rising erect, the sentinel advanced in a crouching posture, so that his head was no higher than if he were on his hands and knees.

This clever strategy was thrown away. Within five seconds, he was at the side of Hercules, prepared and expecting to grapple with his enemy, who, to his exasperation, continued invisible. Vose did not require to have the matter explained to him, for he understood it. Upon being hailed, the intruder instead of throwing up his hands or starting to run, had also assumed a stooping position. It was as if he had quietly sunk below the surface of a sea of darkness through which he was wading, and swum with noiseless celerity to a point beyond reach.

Vose was angered but took his defeat philosophically.

*“You was too smart for me that time; I never had it played finer on me, but I guess it’s just as well; you’ve learned that we’re on the lookout and you can’t sneak into camp without *some* risk of having a hole bored inter you.”*

But Vose was not yet through with his nocturnal experiences. He held his seat for some fifteen or twenty minutes without seeing or hearing anything to cause the slightest misgiving. The horses still slept, and even the uneasy Hercules appeared to have become composed and to have made up his mind to slumber until morning.

“I don’t b’leve there’ll be anything more to disturb me, onless some wild animal wants his supper——”

The thought had hardly taken shape, when a shiver of affright ran through him, though the cause was so slight that it might have brought a smile, being nothing more than a pebble rolling down the ravine, up which the fugitives had passed the day before. The stone came slowly, loosening

several similar obstructions, which joined with it, the rustling increasing and continuing until all reached the bottom and lay at rest a few feet from where he sat.

Nothing could have been easier than for this to occur in the natural course of things, since hundreds of such instances were taking place at every hour of the day and night, but in the tense state of the sentinel's nerves, he was inclined to attribute it either to the Indian that had just visited camp and slunk away, or to one of his comrades trying to steal a march upon him.

"I 'spose the next thing will be for him to climb over this boulder behind me and drop onto my head. Howsumever, if he does, he'll find me awake."

Vose sat thus, depending almost wholly upon his sense of hearing to apprise him of the stealthy approach of an enemy, while the long silent hours gradually passed, without bringing additional cause for alarm.

CHAPTER XXV

INSTINCT OR REASON

As the night wore away without bringing any further evidence of the presence of enemies, the solicitude of Vose Adams was transferred to the two, who, hardly a mile distant, were awaiting with equal anxiety the coming of morning. They and he had agreed upon the plan to be pursued, but now, with the crisis at hand, the guide became apprehensive about the final issue.

Suppose the couple should leave their hiding place to return to the main trail before their pursuers were out of the way? Mutual discovery was certain with the dreadful catastrophe that none dreaded more than he. But it would seem that Lieutenant Russell was too cautious to run the risk of so fatal a mistake. He would reconnoitre the ground and keep out of sight until the coast was clear, but the restless Adams was astir at the first streakings of light in the cañon.

He first visited the animals. It was possible that the stealthy prowler of the night before had done them injury, but, so far as he could ascertain, nothing of the kind had occurred. Except for what he had seen and heard during the darkness, he would not have known that a visitor had been in camp.

It was not fully light when the others rose from their primitive couches.⁸⁹⁴ Water was at hand, and after drinking and ablution, the group sat down to their morning meal, which disposed of the last remnant furnished by Vose Adams. While they were eating, he told of the occurrences of the night and was surprised that his companions made light of them. To them it was of less importance than to him.

“So long as they do no more than prowl about the camp,” remarked Captain Dawson, “we need feel no concern.”

“It seems to me,” said Brush, “that if the fellow intended mischief, he would have done it, but he has left no traces of anything of the kind.”

“Which was because the right kind of chance didn’t show itself,” said Vose; “if we don’t have a lively fight before this bus’ness is over, I’m much mistook, but it’s time we was moving.”

The guide seemed to have forgotten his resentment of the night before and his friends were too considerate to refer to it. It took but a short time to make the animals ready, when the procession started up the gorge, Vose, as usual, leading, with the captain next, then Wade Ruggles, while the parson brought up the rear, that position naturally falling to him.

Men and beasts were refreshed by their rest and food, and it required but a brief while to reach the top of the gorge, where, as will be remembered,⁸⁹⁵ it terminated. It was here that Vose Adams began his fine work, and he showed no more hesitancy in drawing a “long bow,” than on the previous night, when pretending to account for his long absence.

“The trail leads to the right,” he said, with a glance at the ground, as if to refresh his memory.

His first thrill of misgiving came when he saw the parson pause and look searchingly at the ground. Had he possessed one-half the skill of Vose in trailing, he would have discovered that the guide was misleading them, but he did not have that cleverness nor did any other member of the party. The glance of the parson was perfunctory and his brief pause was to regain his breath after the short but laborious climb of the steep slope. Vose was watching him closely and quickly saw the meaning of his action, for, whatever Brush may have observed on the ground in front of him, it was not the faint impressions left on the stones by the fugitives. Neither the

captain nor Ruggles so much as looked at the earth, accepting the dictum of their guide without question.

It was not deemed best to mount the animals, because of the roughness of the ground and the belief that they were close upon the parties for whom they were searching. Vose took care to turn so sharply to the right that they were speedily out of sight of the spot where he had parted from the fugitives. Everything was going promisingly when Wade Ruggles startled his companions by the exclamation:

“Helloa! there’s that dog Timon!”

A hundred yards to the left rose a pile of rocks, the highest of which reached an altitude of two hundred feet or more. Upon the crest of one of the lower rocks, which had only a slight height, the immense dog stood in plain sight. It looked as if he had started to ascend the rocks, when he discovered the party and paused to learn their business.

The picture was a striking one. The enormous size of the brute gave the impression at first that he was a wolf or some wild animal that had challenged the advance of the four men. This error would have been made had not each been so familiar with the creature. As he stood, his formidable head raised, his forequarters being slightly higher than the remainder of his body, his position was diagonal. He was surveying his acquaintances, who surveyed him in turn with equal curiosity.

Vose Adams’s heart sank. What was the meaning of this? As he viewed it, the presence of the dog could have no other significance than that the lieutenant and Nellie Dawson were close at hand. Timon was in their company and would not have strayed far, so that he had betrayed them. From some cause, which the guide could not comprehend, Lieutenant Russell had made a change of plan and placed himself almost in the path along which Vose was leading the pursuers, in the belief that the fugitives were at a safe distance.

The four men looked at the dog for several moments in silence, when the captain spoke:

“We must be very near them.”

“You’re dead right,” added Ruggles in the same undertone; “we’ve got ’em cornered sooner than we expected.”

“They can’t go far,” said the parson, “without being stopped by the rocks, when we shall have them in the nicest trap that was ever set for any game.”

The reflection of Vose Adams was of a different nature.

“If they make fools of themselves and upset all my plans, what can I do to help ’em? Why didn’t they stay where they promised to stay, and why didn’t they kill that blamed dog afore he played this trick on ’em?”

Timon stood for two or three minutes so immovable that he suggested a stone image of himself, carved out of the rock on which he was perched. Then he emitted a single husky bark and leaped lightly down from where he had been standing. It was no more than a dozen feet, and he alighted as gracefully as a panther. He trotted part way to the horsemen, who were closely watching his movements, stopped, barked again and wheeling, trotted forward over precisely the course Vose Adams was taking when checked by the appearance of the canine.

The men looked at one another in astonishment. The action of the dog was unaccountable, but Captain Dawson’s explanation sounded reasonable.

“That shows we are on the right track and he has come to guide us to where they are awaiting him.”

There could be no doubt of it. The actions of the brute said as plainly as so many words: “Come with me and I will take you straight to the people you want to see.”

Instead of following Timon at once, the party kept watch of him. He trotted a dozen steps and then paused and looked back. Observing that he was not understood, he emitted several more barks, took a couple of steps and then repeated the performance. His object was so evident that Captain Dawson said:

“That’s as plain as the nose on your face; the animal is worth a dozen guides like you, Vose.”

“Then why don’t you foller him?” sulkily asked the latter.

“That’s what we shall do; come on.”

Observing that the captain left his horse standing, the parson inquired the reason.

“They are of no use to us and will be only a bother; leave them here until we need them; I will follow the dog and you can take what order you choose, but,” he added with unmistakable earnestness, “every one of you must keep in the background till I’m through.”

Timon held his motionless position until the four men had taken several steps toward him and there could be no error as to their intention. Vose Adams observed that he was following, without a hair’s variation, the course he had in mind.

“It serves ’em right,” was his angry reflection; “when the lieutenant spoke ’bout hunting up a new trail through the mountains, I oughter knowed he hain’t no sense and was sure to make a mess of things. Now’s he gone and sneaked off where these folks will stub their toes agin him; I’m ’sprised that the Queen didn’t hammer a little sense into his head.”

The guide was in a torture of apprehension. The impending outcome was likely to betray the deception he had used, but it was not for that he cared. There could be no mistaking the deadly mood of Captain Dawson and the equally intense hatred of Ruggles and Brush. A meeting with Lieutenant Russell made a frightful tragedy inevitable, and no one could be more vividly aware of the fact than the young officer himself, for Vose had impressed it upon him, but the guide in his anguish of spirit, saw no possible escape from it. He stolidly followed, striving to brace himself for what must soon come.

Meanwhile, the strange leadership continued. Timon seemed to be impatient, for occasionally he broke into a trot, abruptly pausing and looking back, as if to urge his followers to use more haste. Since they did not do so, he checked himself, when about to pass beyond sight and waited for them to draw near. He led them around boulders and masses of rocks, over ridges, down declivities, across one small stream, through a ravine and again among the precipitous piles of stone, until even the hardy men were well nigh exhausted. They had traveled fully a mile over a route that was of the most trying nature.

It was about this time that an extraordinary suspicion began forming in the mind of Vose Adams. He hardly dared give credence to it, but it took greater hold upon him with every few rods of advance. Nothing in the world would have induced him to make known his suspicion, but it continued to grow.

Suddenly Captain Dawson stopped. As he looked around his face was agitated.

“Boys,” said he, “there’s something infernally strange about this.”

Vose Adams saw that his own suspicion had entered the mind of their leader, but the countenance of the guide was as blank as that of a child.

“It’s the worst tramp I ever had,” remarked the parson, removing his hat and mopping his forehead.

“If there’s any harder work,” added Ruggles, “count me out.”

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Captain Dawson looked angrily at Vose.

“Do you know the meaning of this?”

Vose shook his head and prevaricated still further by adding:

“Nor what you’re driving at either.”

“That dog has misled us; instead of conducting us to the couple he has taken us away from them.”

It was true and every one of the four knew it. The suspicion of the guide had become certainty. Was it instinct or reason that controlled the animal? Who shall draw the line in explaining many of the actions of the brute creation?

Vose Adams was silent a moment and then emitted a low whistle.

“Hang me, if I don’t b’leve you’re right, captain. I’ve been told that that dog knowed more than a good many folks and there ain’t no doubt of it now.”

The disgusted parson exclaimed:

“Why didn’t one of us think of that? The idea of all four being fooled by a dog!”

“It wouldn’t have been so bad if there had been two dogs,” said Ruggles, who saw the grim humor of the thing, “but it is tough to have our eyes shet by only one.”

It was impossible for Vose Adams wholly to restrain all evidence of his pleasure. When in the depths of despair, he was awakened to the fact that

the canine had performed one of the most brilliant exploits conceivable. He could not help smiling. The captain was in an ugly mood and in a threatening voice asked:

“Did you have anything to do with this?”

“Certainly; me and Timon fixed up the thing afore he left Dead Man’s Gulch; it took us a good while; the dog didn’t think it would work, but I stuck to it and finally he promised to have a try at it; certainly we fixed it up atween us.”

The guide did a clever thing in thus turning the fantastic belief of the captain into ridicule. Had he protested, he might have added to the suspicion against himself. It was further in his favor that it was known he had never had much to do with Timon. As already related, the brute had few friends among the miners and Vose Adams never sought his acquaintance.

Nevertheless, it was impossible to brush out of sight one significant fact,—the long absence of Adams the day before. But for the last occurrence, nothing would have been thought of the former, but it was clear that Captain Dawson had begun to entertain doubts of the loyalty of his guide.

“He’ll never repeat his trick anyway,” exclaimed the officer, facing about and bringing his rifle to his shoulder. But his intention of shooting Timon was frustrated, for the brute was nowhere in sight. Unreasonable as it might sound, it looked as if he suspected how things would turn out and took the occasion to place himself beyond danger from the indignant men.

“In the army we shoot spies and traitors,” remarked the captain, so angered by his repeated disappointments that he could not govern his feelings. In giving expression to the remark, the officer made a serious mistake, which he saw the moment the words left his lips. He was suspicious of Vose Adams, but he should have concealed all evidence of it, until the proof appeared. When that took place, he would shoot the man with no more hesitation that he would have shot the dog. But he had now put Vose on his guard and the difficulty of detecting him was increased tenfold.

As if to obliterate the memory of his words, the captain said in the most matter of fact tone he could assume:

“The mistake we made has taken us from the right spot; they must have been near the rocks where Timon showed himself.”

“No doubt,” said the parson, “and were watching us.”

“The one thing to do is to retrace our steps; perhaps the two may be fools enough,” bitterly added the captain, “to wait for us, since that seems to be the only way by which we shall ever come up with them.”

A single short bark startled them. The captain wheeled like a flash with his gun at his shoulder. But Timon was too cunning to show himself. It is not improbable that he meant the expression for a note of triumph over his inimitable exploit, while such a wonderful dog was too wise to run any risk of punishment from his indignant victims.

The hunter is sustained against fatigue by the excitement of the chase; and, despite the severe labor of following the canine guide, all four men stood it far better than the return to the spot where the pursuit began. Angered, chagrined and in desperate mood, even the grim leader was forced occasionally to stop and rest. Nearly two hours passed before they descried the familiar pile of rocks in their front.

“That’s the spot,” he said, “but what good can it do us? It’s a wonder if they have not run off with our horses; it would be a fitting climax to this folly.”

It was the secret wish of Adams, from the moment of discovering the cleverness of Timon, that this very thing should be done. If Lieutenant Russell took such a precaution, it could not fail to be effective. Returning to the main trail after his pursuers were out of the way, he would have an open path through the mountains to Sacramento. If the lameness of Nellie’s pony continued, her saddle could be transferred to one of the other horses, and, leading or driving the remainder of the animals, the four men would soon find their task a hopeless one.

But the young officer was restrained from such action by a certain chivalry that governed all his actions. He could not consent to take so unfair an advantage of an enemy, even though the fate of one dearer than his own life was at stake. And yet it must be confessed that the lieutenant drew it very fine. His course did not win the respect of his enemies, who were inclined to attribute it to stupidity, rather than courtesy.

But no time was to be lost in deciding their line of action.

“I think we’d better make a hunt among them rocks,” suggested Wade Ruggles.

The others studied them with as much interest as if it were the first time they had been seen. If the couple had taken refuge among the caverns and crevices of this immense pile of stone, they must have left their animals on the ground below where they could be readily discovered.

“We may as well have a look,” remarked the captain; “what do you think, Vose?”

“I don’t think anything; don’t ask me any questions.”

He never looked more angry. He had not forgotten the slur of the captain and had spirit enough to resent it. Dawson was too proud to apologize and he could not do so, when his suspicion of the fellow’s loyalty was as strong as ever. On the contrary, having made his blunder, the officer drove the arrow home.

“I am sorry you didn’t take that resolution in the first place; it would have been better for all of us, though not so good for those we are looking for.”

The captain and Ruggles now turned to the right, while the other two took the opposite direction. They were thus enabled, after more hard work, practically to pass around the mass of rocks, returning to their starting point, without having discovered any traces of man, woman or their animals. On the journey, Adams and the parson exchanged few words, but it was different with the other couple.

“What do you think of his long absence yesterday?” asked the captain.

“It has a bad look,—worse than I thought when he come back.”

“Why so?”

“I take it with the action of that dog. You didn’t fail to notice that Timon took us along the exact route that Vose was leadin’ us over and we found out that it was the wrong one.”

“And you believe he purposely misled us?”

“It’s almost sartin.”

“Suppose it was certain, Wade?”

“I’d shoot him quicker’n lightning.”

“So would I.”

“But you see we can’t be sartin just yit; if Vose is in that kind of bus’ness, he’ll give himself away purty soon.”

“I agree with you and we’ll watch him.”

Thus was the momentous bargain made.

When the four came together once more, the parson remarked:

“It’s my belief that after we were well out of the way, the two went down the gorge to the main trail and are now making haste to Sacramento.”

The exact line of action that had been agreed upon! Vose Adams was firmly convinced that this was the very thing that had taken place and the utmost he could do was to prevent the horsemen from acting on that theory until the fugitives were given opportunity to pass beyond reach.

Except for the words of Captain Dawson, the guide would have striven to delay the pursuit, but he dared not attempt it after the warning. Ignoring the captain, he said to Felix Brush:

“It’s more’n likely you’re right, parson; that would have been the most nat’ral thing for them to do and it’s no use of our standing here and talking, when every minute counts.”

“We can quickly learn the truth; it isn’t far to the gorge, where they must have left traces; leave the horses here, for we can soon return for them ³⁰⁸if it proves necessary.”

Forgetting their fatigue, the four walked back over their own trail. The forenoon was well advanced, and, by this time, the fugitives were probably a good way off. Adams was relieved because of this action, for it promised more delay.

Reaching the beginning of the gorge, all began an examination of the ground, for the imprints of the horses’ feet were plainly seen. To the amazement of every one, each hoof pointed upward, that is away from the cañon. There was no evidence that any quadruped had descended the slope. All had gone up. Vose Adams was in despair.

“They have let their only chance go by,” he bitterly reflected; “it’s too late now to save them!”

CHAPTER XXVI

AT BAY

Lieutenant Russell held a long consultation with Nellie Dawson, after the departure of Vose Adams. His first intention had been to press their flight with all possible vigor, and, as will be recalled, Adams carried away that belief with him.

“My view of matters has undergone a change,” he said after a time to his companion, who looked up in his face for an explanation.

“Instead of waiting until we reach Sacramento for a meeting with your father, I believe it will be much better to have it as soon as possible.”

“Why?” she asked, though curious to say, she had been wavering for some time in her belief.

“It will add to rather than lessen his anger, if he is obliged to follow us that far, and the fact that he is in a city instead of the mountains will not decrease his determination to do me injury.”

“What about those who are with him?”

“Your father is the only one to be considered. My proposal is that we wait here till to-morrow morning until they come up; what is your opinion?”

“I believe you are right; let us do so; I don’t think father will cast me off when I go to him.”

The plan was carried out, though the young man felt more misgiving than his companion suspected. He remained on guard a part of the night, sharing the duty with Timon, whose almost human intelligence made him as reliable as a trained scout himself.

Straight to the spot came the pursuers soon after daylight, when the horses were saddled and bridled. Nellie was in a state of feverish expectancy. When she caught sight of her father, leading the others, she joyfully uttered his name and ran toward him with outstretched arms.

“Father, my own father, are you not glad to see your Nellie?”

Still holding his Winchester half-raised, he glanced sternly at her and replied:

“Come no nearer; you are no daughter of mine!”

She stopped as if shot, and with hands still outstretched stood motionless, with her eyes fixed yearningly upon him. She was like a marble statue, without the breath of life in her body. All were silent. Even Timon looked from one to another without moving. The whole thing was beyond his comprehension.

Then the dreadful truth seemed to force itself upon the consciousness of the girl, who staggered backward to the nearest boulder, upon which she sank and covered her face with her hands. She did not weep, for her grief was too deep.

And who shall picture the sorrow that wrenched the heart strings of the parent? There was a strange look on his face and his massive frame trembled. But he quickly recovered his self-poise, and looking away from his child, fixed his eyes upon Lieutenant Russell.

“It is with *you* that I have to settle.”

“I am ready.”

The young officer was standing beside his pony, with one arm resting on the saddle, across which his rifle was supported, while the other hand lay idly on his hip, and his body was borne upon one foot. His pose was one of negligence, as if he and his animal had taken position before the camera, and the world contained no such thing as hatred and enmity. He looked calmly into the angered countenance, while he waited for the next words of the man who was impatient to send a bullet through his heart.

Wade Ruggles and Felix Brush would have been glad of the privilege of doing this, but they felt that for the time they were out of it. The right of calling Lieutenant Russell to account lay with the father of Nellie. They had nothing to do or say until that tragedy was ended, and they stood apart, silent, grim and watchful of everything.

The coolness of the young man disconcerted the captain for the moment. Feeling it unnecessary to hold his weapon, he lowered the point, but, never

once removing his eyes from the face of the other, said:

“I will give you the same chance as myself for your life; though you do not deserve to live, it shall never be said I took any advantage over you. Each of us has a revolver and knows how to use it; you may pace off the distance for yourself, but make it short.”

“Captain, I decline to fight you,” replied Lieutenant Russell, without a change of pose and in his usual voice.

“Why?” demanded the other.

“You have saved my life on the battle field; we have been comrades; we have drank from the same canteen; shoot me if you wish; I will keep the position I now hold and you may stand where you are; you have your Winchester in your hands; you have but to raise it and it will be all over in a twinkling, but nothing that you can say or do will induce me to harm one of your gray hairs.”

This reply was unexpected to all, but it served if possible to intensify the wrath of Captain Dawson. He shook with tempestuous rage, and it was several seconds before he could command his voice. Ruggles, Brush and Adams did not stir or whisper a word to one another. The white-faced Nellie remained seated on the boulder, but she lowered her hands and stared at the two, as if she could not comprehend it all. Once she made a motion to rise, but sank back and stared with a fixidity of gaze that went to the hearts of the three spectators.

“You are a sneaking scoundrel to use those words,” said Captain Dawson, when able to command his voice; “all the past is wiped out except that of the last two days; I shall shoot you for stealing my child from me.”

The lieutenant looked calmly into the countenance of the man, and, lowering his tones almost to a whisper, that was perfectly audible to all, replied:

“I am at your disposal.”

From the moment Captain Dawson learned of the flight of his child, he had been eager for but one thing,—the opportunity to draw bead on the miscreant, without giving him an instant to prepare for death. That

opportunity was his but he hesitated. Something that he could not explain, but which incensed him, held his hand motionless.

But perhaps the end would have been the same, when he rallied from the momentary struggle, had not his daughter awakened from the daze that had held her mute and motionless. Like Pocahontas, she sprang forward, with arms again outstretched, and with a faint shriek, flung them about the form of her lover.

“Shoot father, if you will, but you shall kill me too!”

Felix Brush shivered and turning away his head, muttered in a broken voice:

“My God, Wade! I can’t stand this!”

Ruggles attempted to reply, but the words choked in his throat. Still he and Adams kept their eyes upon the three before them. Ruggles was on the point of interfering when Nellie Dawson averted the necessity.

Lieutenant Russell was disconcerted. His lip quivered, and, with infinite tenderness, he sought to loosen the arms that entwined him, but she would not permit it.

“No, no, no! He shall not part us! Let him slay us both! Do not repulse me! I will die with you!”

The situation of Captain Dawson was awful. He was scarcely himself. The dainty form of his child could not fully shield the athletic figure of Lieutenant Russell, strive as much as she might, and the opening for the threatened shot was as clear as ever. Whether he would have persisted in his intention can never be known, for at that juncture the startling incidents were succeeded by one still more startling and unexpected.

CHAPTER XXVII

NO BRAVER DEED EVER WAS DONE

The hearts of two of the party were wrung as never before. Wade Ruggles and Felix Brush saw with noonday clearness the dreadful mistake they had made in the past in hoping to win the heart of the maiden who had declared that if her beloved was to die she would die with him. It was contrary to nature and the laws of God, and it was characteristic of each that he felt a thrill of gratitude over the belief that no person suspected his secret. Both would have died rather than allow it ever to become known.

With this awakening came a transformation of feeling toward the couple. They sympathized with Lieutenant Russell, but more than all, they pitied her whose soul was distraught with grief. They had never before seen her in the agony of distress and neither could stand it.

“Brush,” whispered Ruggles, “this must stop.”

“*Hold!*” called Brush in a loud voice, striding commandingly forward with his arm upraised; “I have something to say!”

There was a majesty and an impressiveness of mien like that of the Hebrew prophet who hushed the tempest. Captain Dawson, without moving body or limb, turned and glared at the intruder; Ruggles kept his position; Nellie Dawson, with arms still clasping the neck of her betrothed, looked over her shoulder at her old friend; Lieutenant Russell reached up so as to hold the wrists of the girl, while still retaining his grip upon his rifle and fixed his eyes upon the tall, gaunt figure that halted between him and Captain Dawson and a little to one side of him.

“Lieutenant Frederic Russell, do you love Nellie Dawson?” was the astounding question that fell from the lips of Brush.

“Aye, more than my life,” was the prompt response.

“And you have started for Sacramento with the purpose of making her your wife?”

“That was my resolve with the help of heaven.”

“And, Nellie, you agreed to this?”

“Yes, yes; we shall not be parted in life or death.”

“Such being your feelings,” continued Felix Brush, in the same loud, clear tones, “I pronounce you man and wife, and whom God hath joined together let not man put asunder!”

It was a thunderclap. No one moved or spoke for a full minute. Felix Brush was the only one who seemed to retain command of his senses. Stepping forward, with a strange smile on his seamed countenance, he extended his hand to the groom.

“Allow me to congratulate you, lieutenant; and, Nellie, I don’t think you will deny me my fee.”

With which he bent over and tenderly kissed her.

“O, Mr. Brush, are we really married?” she asked in a faint, wild voice.

“As legally as if it were done by the archbishop of Canterbury and if—”

But he got no further, for her arms were transferred from the neck of her husband to those of the parson, whom she smothered with her caresses.

“Bless your heart! You are the nicest, best, sweetest, loveliest man that ever lived,—excepting Fred and father—”

“And *me*,” added Wade Ruggles, stepping forward.

“Yes, and you, you great big angel,” she replied, bestowing an equally warm embrace upon him.

The two rugged fellows had won the greatest victory that can be achieved by man, for they had conquered themselves. When the great light broke in upon their consciousness, each resolved to let the dead past bury its dead and to face the future like the manly heroes they were.

And no braver deed ever was done.

Poor Captain Dawson! For a time he believed he was dreaming. Then, when he grasped the meaning of it all, his Winchester dropped from his nerveless grasp and he staggered and would have fallen, had not Lieutenant Russell leaped forward and caught him in his arms. He helped him to the boulder

from which Nellie had risen and then he collapsed utterly. The soldier who had faced unmoved the hell blast of battle had fainted for the first time in his life.

Nellie ran to the brook a few paces away, and catching some of the water in the hollow of her hand darted back and flung it into his face.

“There, dear father; it is all right; rouse yourself; O, Mr. Brush, suppose he is dead!” she exclaimed, turning terrifiedly toward him.

“He is as likely to die as you are, and you don’t look just now as if you mean to put on wings and fly away.”

In a few minutes the veteran revived and looked confusedly around him. He seemed unable to comprehend what it all meant and his gaze wandered in a dazed way from one countenance to another without speaking. Nellie was still caressing him, while Lieutenant Russell stood back a couple of steps, looking pityingly into the face of the man who had suffered so much.

Felix Brush was the hero of the occasion. Turning to the group, he said:

“Lieutenant, you and Nellie and Ruggles and Vose move off for a short distance and leave him with me for a little while.”

Understanding his purpose the three withdrew, and the two men were left alone. The captain instantly roused himself.

“What does all this mean, Brush?”

“It means that you and Ruggles and I have been the three infernalist fools that ever pretended to have sense.”

“How?”

“How? In every way conceivable. Wade and I, as we told you, saw that those two were in love with each other; instead of persuading you to consent, we have helped you to prevent it. I must say, captain, that though Wade and I played the idiot, I think the championship belongs to you.”

“I begin to suspect it.”

“There’s no doubt of it.”

“But, you see, parson, I had never thought of anything like this.”

“Which goes to prove the truth of what I have just said. If you hadn’t been blind you would have seen it.”

“I got the belief into my head that his intentions were not honorable toward Nellie.”

“You never made a greater mistake; Lieutenant Russell is the soul of honor; heaven intended him for the husband of Nellie, and we were flying in the face of Providence when we tried to prevent it.”

“I suppose it is all right; but how is it possible for a man to make such a consummate ass of himself?”

“You have just given a demonstration of how it is done, Wade and I adding material help in the demonstration.”

The captain looked to the ground in deep thought. When he raised his eyes there was an odd twinkle in them.

“I say, parson, wasn’t that a rather cheeky performance of yours, when you made them man and wife?”

“The circumstances warranted it. There’s no saying what might have happened, if it had been deferred for only a few minutes.”

“True,” replied the veteran thoughtfully; “it begins to look as if the hand of Providence was in it.”

“It is in everything that occurs in this life. It was in your coming to New Constantinople; in the blessed influence of your child upon that barbarous community; in the impulse that led you to bring Lieutenant Russell to us, and now comes the crowning Providence of all in their marriage.”

“Parson, you ain’t such a poor preacher after all.”

“Perhaps I can preach a little, but my practice has been away off, though I hope to get back one of these days to where I was, but—”

He suddenly turned and beckoned to his friends to join them. They came smilingly forward, for they suspected what it meant.

Captain Dawson rose to his feet, and, without speaking extended his single arm toward his child. With a glad cry she flew into his embrace and

pillowed her head on his breast. No one spoke, but there was not a dry eye among the spectators, while the silent embrace lasted.

Finally the daughter was released and then the captain reached his hand toward his son-in-law, who eagerly stepped forward and grasped it.

“Yes, lieutenant, we have drunk from the same canteen,” he said, “and now let’s all go home.”

And it was accordingly so done.

THE END

*** END OF THE PROJECT GUTENBERG EBOOK A WAIF OF THE
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